



LEGAL TOOLBOX FOR PARTICIPATORY FISHERIES MANAGEMENT

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Community
Partnerships for
Sustainable
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Management in
Malawi

Legal Toolbox for Participatory Fisheries Management: User Manual and Templates

*Prepared for the Department of Fisheries, Ministry of Natural Resources & Environmental
Affairs by:*

John Balarin (Consultant)

Development Alternatives, Inc.
7250 Woodmont Ave., Suite 200
Bethesda, MD 20814
USA

Tel: 301-718-8699
Fax: 301-718-7968
e-mail: dai@dai.com

In association with:

Development Management Associates
Lilongwe

COMPASS
Phekani House
Glyn Jones Road
Private Bag 263
Blantyre
Malawi

Telephone & Fax: 622-800
Internet: <http://www.COMPASS-Malawi.com>

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November 2002:	2 nd CBNRM Workshop precipitates concept of Legal Toolbox for CBNRM.
Jan-June 2003:	GTZ sponsors PFM Group to prepare Lake Malombe Management Plan.
January 2003:	Cabinet Committee on Natural Resources and Environment approve the Chambo Strategy and need for legal framework.
January 2003:	Save the Chambo Campaign Launched.
May 2003:	Stakeholder consultation to develop Chambo Restoration Strategy (CRSP).
July-September 2003:	COMPASS/USAID sponsors consultants to prepare draft PFM Toolbox and draft BVC Constitution.
July 2003:	Stakeholder consultation on draft Lake Malombe Management Plan.
July 2003:	Lake Chilwa and Chiuta BVCs review draft Constitution.
July 2003:	Cabinet Committee on Natural Resources and Environment approve the CRSP.
August 2003:	Stakeholder consultation on draft PFM Toolbox.
Aug-Sept 2003:	BVC consultation on draft PFM Toolbox.
September 2003:	Final CRSP issued as COMPASS Document 73.
September 2003:	Final draft BVC Constitution issued as COMPASS Document.
September 2003:	Stakeholder consultation on second draft PFM Toolbox.
Oct-Nov 2003:	GTZ sponsors legal consultation to review Toolbox and Lake Malombe Management Plan.
November 2003:	Toolbox was discussed at 3 rd CBNRM Conference in Malawi.
December 2003:	Department of Fisheries internal review and acceptance of First Edition of PFM Toolbox.
January 2004:	Final draft of First Edition of PFM Toolbox, Templates and User Manual issued.
January 2004:	Final Toolbox issued as COMPASS Document.
###	Cabinet Committee on Natural Resources and Environment approve PFM policy supplement.
###	PFM Toolbox officially launched.

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**MINISTRY OF ENVIRONMENT AND NATURAL RESOURCES
DEPARTMENT OF FISHERIES**

Annex 5

(National Fisheries and Aquaculture Policy Supplement)

Cabinet Paper To be approved by Cabinet Committee on Natural Resources and the
Environment
Meeting of..... In

PARTICIPATORY FISHERIES MANAGEMENT POLICY (Supplement)

1. Preamble:

The National Fisheries and Aquaculture Policy, developed in 1996/7 (but gazetted in 2001), promotes Participatory Fisheries Management (PFM) as “a joint activity between Government and local fishing community institutions”. It is however not cognizant of the Decentralization Policy and Local Government Act of 1997. Consequently, there is no corresponding tiered “fishing industry” leadership hierarchy and administration system to correspond to that of the local administration. There is therefore no legal representation of the interests of the fishing industry, no lobby force. Although 300-400 Beach Village Committees (BVC) have been formed over the past 10 years, none are as yet “legal personalities” capable of representing the fishing industry and entering into dialogue and co-management agreements with government.

The above “joint partnership role” of “Central Government”, local government and a devolved Department of Fisheries is therefore not clear. “Local Fisheries By-Laws” are mentioned in the Act but these are not defined. The Fisheries Conservation and Management Act of 1998 was never translated into “local government by laws”. The very legal tools and instruments envisaged in the Act and Policy as essential for PFM were not available to the Director of Fisheries, local government and to communities. As a consequence, Government has been unable to fulfill its part of law enforcement to protect the Act. Consequently, the way the Fisheries Policy and Act was interpreted is ambiguous and confusing. The way PFM was implemented seems not in conformity with the legislation. After 10 years of PFM, no Beach Village Committee (BVC) is as yet legally constituted. The BVCs that were formed do not represent the “fishing industry” as defined by the Act. Commercial aspects of the industry have been ignored. The way BVCs seem to operate is they represent beach communities, hired labor or boat crews. To a large degree, BVCs exclude the vested interests, the commercial investors, the businessmen who own gear and boats, who buy, sell and process fish, the transporters and others who control the markets and economic chain. The term BVC is therefore a misnomer; it does not represent the fishing industry and should be re-defined or changed. The bulk of the fishing industry is in the informal economy and government’s revenue share is so small, insufficient to finance enforcement of the law. In addition, fees, fines and the like are dated 1997 and as such, due to devaluation and the rise in price of fish, the government revenue system has fallen behind in value and in severity of punitive measures.

This policy supplement strives therefore to secure universal proportionate representation, including subsistence as well as the influential small-scale (and large scale) commercial sector in a true co-management partnership, with local government and Fisheries Department.

2. Guiding Principles:

The government recognizes that the fishing industry in Malawi, although small-scale, nevertheless is “commercial”, the bulk of the catch is sold. Subsistence fishing for “home consumption” is minimal. The fishing industry community is therefore made up of an economic chain of small and large scale vested interests who control the sector (i.e. individual owners, investors, businessmen, transporters, traders, processors, gear and boat owners), self-employed gear and boat owners and hired hands/laborers. PFM to succeed must involve a representative cross-section of all those who are influential enough to understand sustainable management principles and regulate fishing pressure. Government for its part must enter the partnership with the capacity and resources to enforce the law and instill knowledge and understanding of sustainable management. To do this, Government needs a “legal Toolbox” of instruments and by laws to empower the fishing industry community and local government as the custodians and patrons of PFM. Legal agreements complete with management plans must be binding on members of the fishing industry and they **MUST** be convinced that implementation of the law is in their own best interest for sustainability. To achieve this, there is need for a knowledge transfer system to convey to all levels the importance of sustainable management. To achieve this there is a need for a “technical Toolbox” to convey in a functional way knowledge vital to the sector. In addition, to fund this endeavor, fish must enter the formal, tax based economy and valued at current prices as economic goods and the fees and fines for exploitation of this natural resource must correspondingly represent the true current value of the industry and provide the state with sufficient income to be able to co-manage the sector.

3. Goals:

Malawi in September 2002, made a commitment at the World Summit to adopt the millennium goals. In line with the National Strategy for Sustainable Development, Malawi has pledged that by 2015, through PFM, to restore the fisheries of Malawi to its maximum sustainable yield through a co-management partnership between government, local government and the fishing industry community.

4. Objective:

The objective of this policy supplement is to make clear and legal the active participation and equitable representation of all levels of the influential representatives of the local fishing industry. To self-regulate sustainable management of the sector and to develop a tax based economy to fund local government and government enforcement in a co-management partnership.

5. Strategies:

- a. The term community based fisheries management shall here mean the **fishing industry community** for any given water body. This “community” shall comprise

anyone involved in the complete economic chain that cultivate, catch, land, process, trade, transport and market the product, including investors, businessmen, owner operators, gear makers and hired hands. Basically, equitable representation of anyone that has an influential and vested interest in sustainable fishing and fish as an economic good and livelihood, protecting the interests of small scale and large scale operators.

- b. The BVCs (*or a reconstituted name*) shall be **restructured as Fisheries Management Authorities, along the lines of equitable, elected representation of the influential, authoritative segments of the fishing industry community.** This shall be aligned in an association of decentralized hierarchy that has a fisheries sub-committee representation at VDC, ADC, Assembly and National Fisheries Board. The BVC shall be registered with the Local Trustees Act, a lobby group for the industry, a co-management partner to government and a knowledgeable institution, trained and conversant in the principles of sustainable management with authority and power to enforce the law.
- c. The Fisheries Management Act 1997 shall be made into district by-laws to be gazetted as the **“Local Government Fisheries Conservation and Management By-Laws”** and shall be the basis for devolution of the Department of Fisheries. It shall place PFM authority with the Assembly and the creation of a Fisheries Sub-Committee to advise the Assembly. These by laws shall govern PFM at the lowest appropriate level and be enforced by BVCs and the local magistrate courts.
- d. The by laws shall also govern establishment of protected areas. The Land Act describes “land covered with water” as governed by the Act. Accordingly, the Minister of Lands is empowered to convey “ownership of land covered by water” to communities to establish **fish sanctuaries and fish protected areas.** This shall including the use of artificial reefs, placed on land underwater, in strategic localities to protect fish breeding and nursery grounds and enhance production in support of the Chambo Restoration Strategic Plan (2003).
- e. The above “fisheries by-laws” shall be accompanied by a **Legal Toolbox of templates of all the legal tools and instruments needed for PFM**, notably: Local Government By-Laws, Fisheries Management Plans, Fisheries Co-Management Agreements, Fishing Industry Community Constitutions, licenses, gear restrictions, fees and fines schedules, etc.
- f. The **Department of Fisheries (DOF) must re-constitute itself after devolution**, retaining and strengthen centrally its capacity to service PFM, especially as the community enforcer of the law, protecting fishing industry community interests and provider of sustainable management knowledge. The Director of Fisheries shall retain planning, M&E, training, research capability, setting standards, laws and regulations and the authority to make and enforce Fisheries Management Plans, regulations and any subsidiary legislation or amendments. The Assembly shall take on all outreach and extension, formalization of the fishing industry community, knowledge transfer and local enforcement of the law to protect the interests of all levels of investment in the sector.
- g. **Fish must be treated as an “economic good”**, enter the formal, tax based economy, with licenses, lease fees and fines for breach of law, each year revised, valued at current market prices and approved by Cabinet so that the sector is taxed accordingly and the state can generate revenue to operate. There must be an in-built mechanism for annual revision of fees and fines to keep up with inflation. **Government and local government should receive an incentive for operation costs by retention of a revenue share** ceiling target of 10 % of the total value of

the fishing industry, secured through fees, fines, taxes and inter-district levies. This shall go to the Fisheries Fund and the District development Fund, reserved for PFM, law enforcement and outreach.

- h. Finally, all matters pertaining to sustainable fisheries management shall, in addition to the “legal Toolbox”, be compiled into a **“technical Toolbox”**. A simple to use, universally understood, functional literacy presentation to demystify knowledge to all levels of the fishing industry to promote a common understanding of sustainable fisheries management, offering options for alternative livelihoods.

Signed:

Chairman

Cabinet Committee on Natural Resources and Environmental Affairs

ACRONYMS

ADC	Area Development Committee
BVC	Beach Village Committee
CBNRM	Community-Based Natural Resource Management
CCNRE	Cabinet Committee on Natural Resources and Environment
CRSP	Chambo Restoration Strategic Plan
CBO	Community-Based Organization
COMPASS (USAID)	Community Partnerships for Sustainable Resources Management
CURE	Co-ordination Unit for Reconstruction of the Environment
DA	District Assembly
Danida	Danish International Development Assistance
DC	District Commissioner
DDP	District Development Planning
DEAP	District Environmental Action Plan
DESC	District Environmental Sub-Committee
DFO	District Fisheries Officer
DLG	Department of Local Government
DOF	Department of Fisheries
DNPW	Department of National Parks and Wildlife
DSOER	District State of the Environment Report
EAD	Environmental Affairs Department
EDO	Environmental District Officer
EFZ	Economic Fishing Zone
EIA	Environmental Impact Assessment
EMA	Environmental Management Act
ESP	Environmental Support Program (Malawi)
FAO	Food and Agriculture Organization
FMA	Fisheries Management Agreement
FMP	Fisheries Management Plan
GNP	Gross National Product
GOM	Government of Malawi
LDF	Local Development Fund (= DDF District Development Fund)
LFA	Logical Framework Analysis
LFMA	Local Fisheries Management Authority
LGA	Local Government Act
LGFC	Local Government Finance Committee
LMNP	Lake Malawi National Park
LNP	Liwonde National Park
M&E	Monitoring and Evaluation
MOAI	Ministry of Agriculture and Irrigation
MEET	Malawi Environmental Endowment Trust
MONREA	Ministry of Natural Resources and Environmental Affairs
NARMAP	National Aquatic Resources Management Project
NBSAP	National Biodiversity Strategy and Action Plan
NEAP	National Environmental Action Plan
NGO	Non-Governmental Organization
NRC	Natural Resources College
NRM	Natural Resource Management

NSOER	National State of the Environment Report
NSSD	National Strategy for Sustainable Development
OVI	Objectively Verifiable Indicators
PCE	Parliamentary Committee on the Environment
PFM	Participatory Fisheries Management
PRA	Participatory Rural Appraisal
PRSP	Poverty Reduction Strategy Program
PS	Principal Secretary
SADC	Southern Africa Development Convention
SOER	State of the Environment Report
TA	Traditional Authority
UNDP	United Nations Development Program
USAID	United States Agency for International Development
VDC	Village Development Committee
WESM	Wildlife and Environment Society of Malawi
WSSD	World Summit on Sustainable Development
WWF	World Wide Fund (for nature)

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Foreword

Malawi is proud of its forward thinking in the field of Community Based Natural Resource Management (CBNRM). In particular, Malawi embarked on Participatory Fisheries Management (PFM) as early as 1993 and became recognised as a leader in this field in Africa. Regrettably, despite this history, Participatory Fisheries Management does not appear to have contributed significantly to improvement in fishery stocks. Undeterred, in the past 6 months, my Ministry has been inward looking and from lessons learnt in line with the adage “*out of the ashes will rise the phoenix*”, Malawi feels confident this tool-box will give rise to a new wave of renewed effort in PFM.

Over recent years we have seen a sliding decline in fish catches, which, when coupled with population growth, it is alarming to note that fish consumption rates are now less than 50 % of what they once were. Fish is the single most, traditionally important animal protein in the Malawi diet. Once contributing as much as 70 % of animal protein consumption, fish was undoubtedly, the cheapest form of protein available to every Malawian, poor and rich alike. Declining catches, increasing population, rise in fish prices all mean that fish is no longer available in the same quantities and is no longer within the economic reach of the poor. The majority of Malawi’s population therefore is eating less fish and consequently total animal protein intake is down. The government is very concerned at the ramifications this will have for food security and for the physical and mental development of our youth. Also, at a time when Malawi is experiencing an HIV/AIDS pandemic, animal protein is considered vital to better health to fight and resist HIV/AIDS. The same applies to other diseases like cholera. The government is therefore taking the situation seriously as reflected by the Poverty Reduction Strategy Program (PRSP) and the National Strategy for Sustainable Development (NSSD). In 2003, my Government launched a Campaign to Save the Chambo, complete with a Chambo Restoration Strategic Plan (CRSP). It is hoped that this Toolbox will provide a set of vital legal instruments to implement the PRSP, NSSD, CRSP, the Fisheries Policy and the Act.

On analysis of the situation, Government noted that although over 300-400 Beach Village Committees (BVC) were in place, none had legal entity, none were constituted as per the Act and few were functioning as intended. In fact, there seemed to be many different interpretations of the Act and what constituted PFM and a BVC. BVC formation had focused on village level, excluded the small and large scale fisheries business element, the absentee investor, the transporters, processors, traders, gear owners and businessmen. Lessons learnt from this analysis was that not only had government failed to “formally” institute the concept of BVCs as equitably representative of the sector, but that government had failed to keep up its side of the co-management bargain. Government revenue from the sector was too small to enable the State to enforce the law and to protect BVC and investor interests. The Fisheries Act has not been enforced. The Act had not been translated into implementation instruments to empower PFM. BVCs had no formal constitutions; there were no fishery management plans and fishery agreements in place. The emerging decentralisation institutions had no by-laws and were not clear on their roles and played no part in enforcement. In short, the extrapolation of the Act into a “legal

Toolbox” to implement the legislation was not in place. Government has therefore decided to act on this!

More important was the realisation that the fishery was not entirely subsistence. The bulk of fish caught entered the commercial sector and were sold. The commercial economic chain from gear/boat owner, producer (i.e. fishermen/hired crews), through processor, trader, transporter to market seller and finally to the consumer, saw a 4-5 fold mark-up on the beach price. The beach community (i.e. the fishermen/hired crew) therefore only benefited from 15-20 % of the economy. Over 80% of the industry was in the hands of vested business interests, investors who were not represented in the BVC and associated institutions. This target audience, the “fish business sector” had therefore not been reached by PFM. They were unaware of sustainable management opportunities. They were NOT participating in the management of the sector!

Equally important, from the total fishery industry, government revenue was a mere USD 10 000.0 (i.e. less than 0.05% of an estimated USD 15 million industry). This means that the fishing industry is in the “informal economy”. Fish has not been treated as a national “economic good”. Fish has not entered the “national tax based economy”. As a result, government is unable to raise the necessary resources to enforce the law and provide services to better research and manage the sector. This is an unsustainable state of affairs!

This first edition of a “Legal Toolbox for PFM” is therefore seen by government as a way of bringing the fishery industry in Malawi into the formal, tax economy. The objective is to formalise PFM with a true and legal, equitable representation of all the vested interests in what is a commercial sector. Jointly, in a co-management partnership with government, combined efforts of all interest groups can be brought to bear to institute PFM. Investors in the sector can therefore also be brought on board as partners to jointly develop more sustainable approaches to sector management. To this end, government will soon embark on the next stage which is to prepare a “Technical Toolbox for PFM”, a tool to communicate and demystify knowledge in a user-friendly format for all levels of the sector.

Government in this Toolbox has therefore expressed its willingness to enforce policy and now welcomes formal co-operation from all parties involved in the fishing sector to take up the challenge to join government in a co-management initiative to sustainably manage our national fishery heritage for present and future generations.

Uladi B. Mussa (MP)
Minister
Natural Resources and Environmental Affairs

Acknowledgements

At the recent Participatory Fisheries Management (PFM) Conference held in December 2003 in Cape Town, it was acknowledged that this was perhaps the first PFM Legal Toolbox of its kind in Africa. It would appear that no other state had developed legal instruments of this nature to empower communities in Participatory Fisheries Management. Malawi is therefore proud to be recognised as a leader in the field of PFM legislation and for having laid a milestone in the history of CBNRM.

For this we are indebted to the USAID funded COMPASS project and to the GTZ funded NARMAP Project for their financial and technical support which has made this a reality. We also acknowledge the financial support received through the USAID funded NATURE Programme which to a large degree acted as a catalyst to inspire the Department of Fisheries to translate its Fisheries Management Policy into action through the Chambo Restoration Strategic Plan (CRSP). As a result of this support, not only does Malawi now have a Toolbox of the templates for the legal and technical instruments for PFM, we also have a policy and strategy for their implementation. This is very much in line with commitments made by Malawi at the World Summit for Sustainable Development (WSSD) to restore its fishery to its Maximum Sustainable Yield (MSY) by 2015.

We are also grateful to the financial support from the Malawi Environment Endowment Trust (MEET) that enabling the mass printing and circulation of this Toolbox. Only by this form of mass communication can we make all levels of the sector aware of their role as partners to the state.

All these achievements would not have been possible without the many individuals and organisations who contributed their time and valuable inputs and ideas and critics. In particular we acknowledge the work of the advisory team of John Balarin and Dr. John Wilson who respectfully, drafted the Legal Toolbox and the BVC Constitutions. We also appreciate the technical support of Dr. Olaf Weyl and the legal advice of Justice Kenyatta Nyirenda (and Ernest Makawa) that ensured that the tools and instruments conformed to the laws of Malawi. To the PFM Task Force, Dr. Steve Donda, Friday Njaya, Orten Kachinjika, Dr. Moses Banda, R. Kachale and others, we thank you for your efforts to prepare the Lake Malombe Management Plan that gave rise to some of the instruments in this Toolbox. To the CRSP Task Force, including those not already mentioned above, Dr Daniel Jamu, Alfred Maluwa, Maurice Makwira and Dr. Emanuel Kaunda, we also say thank you for the translation of these tools into action. Finally we must say thank you to all the field teams, too numerous to mention, who went out and consulted the communities and BVCs as to the acceptance of these tools. In particular we acknowledge the support we received from the Wildlife Society of Malawi and the District Fisheries Officers of Zomba, Mangochi and Nkotakota.

To the participating communities, especially the BVCs of Lake Chilwa, Lake Chiuta, Lake Malombe and Lake Malawi, we thank you for the time you have dedicated to participate in stakeholder consultations. We hope that this Toolbox shall edge us a little closer to a better understanding of your needs and aspirations. We hope that the instruments when applied will strengthen the co-management relations with the

Department of Fisheries so that together we may enforce the law in the best interest of sustainable management of our national heritage and treasure, our fishery.

Finally, and by no means least, to the inspiration of the Minister of Natural Resources and Environmental Affairs who initiated this process, and to the strong political support and direction we have received from the Cabinet Committee on Natural Resources and Environment, Sirs, we say thank you. You have been our guiding light and we hope for your continued political support and influence to secure commitment from all sectors of the fishing industry community to adopt the recommendations you have made here, today.

Sloans K. Chimatiro
Director of Fisheries

**LEGAL TOOLBOX
FOR PARTICIPATORY FISHERIES MANAGEMENT**

MALAWI

SECTION 1

HOW TO USE THIS MANUAL

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Annex 2: Factors Influencing Sustainable Development
Annex 3: Case Studies of PFM Institutions.
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LEGAL TOOLBOX FOR PARTICIPATORY FISHERIES MANAGEMENT: HOW TO USE THIS MANUAL

1. PREAMBLE

1.1. Background to the Manual

This manual is designed as a user-friendly guide laying out the background to the Toolbox and describing how each template should be used. It is a product of an intense round of consultations of communities, assemblies, extension staff, management, donors and scientists alike. It culminates almost 10 years of work in PFM by the Department of Fisheries. The Toolbox is the first edition of its kind and is designed to grow as more and more experience is gained in its use. The Manual is for users at all levels of the fishing industry. Primarily to target audience is the government departments and extension services of the Assemblies and NGOs, ultimately targeting the fishing industry community as the end beneficiaries.

To ensure the correct institutional status of the toolbox and its legal instruments, they have been designed as supplements to the Fisheries Policy and Act. As such, at present they have no legal status and serve as templates to guide officers in the field. However, anticipated is that the Director of Fisheries will in time, refine and submit these instruments to be gazetted as legal supplements to the Fisheries Policy and Act and become part of the institution of PFM in Malawi.

1.2. Legal Background to the Manual

The templates in this Manual have been designed along the lines of the legal and policy framework laid out in the following documents:

- *1996 National Decentralization Policy (published 26.1.1996).*
- *1997 Fisheries Conservation and Management Act No 25 (published 28.11.1997).*
- *1998 Local Government Act No 42 (published 31.12.1998)*
- *2000 Fisheries Conservation and Management Regulations (published 1.7.99).*
- *2001 National Fisheries and Aquaculture Policy (published October 2001).*

And a great deal has been gleaned from the following NARMAP publications:

- Guidelines for the formation and training of BVCs.
- 1998 A Guide to the Fisheries Conservation and Management Act 1997.
- 2002 Guidelines for the Formation of Community Institutions.

This Manual has the status of being a government publication and its contents are, at this stage, primers for cabinet papers on policy and drafts that will go forward to be gazetted as official state documents, tools and instruments to regulate the implementation of policy and act. This Manual is part of the institution of government.

1.3. How to use this Manual

The Manual has been made in 4 sections as follows:

Section 1: How to use this Manual: This Section is more or less a summary of the proceedings of meetings, workshops and consultations leading up to the manual and lays the foundation of an argument for changes that have been made to policy, strategies, laws and by laws.

Section 2: Policy Supplements, Strategies and Guidelines: Contained here are some of the policy changes needed to strengthen PFM and instill a code of conduct to reduce HIV/AIDS and the environmental impact of aquaculture.

Section 3: Devolution of Fisheries: Although not an entire strategy on “Decentralized Fisheries Management”, this section is a pre-cursor to the DOF formulating such a strategy.

Section 4: Local Government Fisheries and Conservation by Laws: In pursuance of the Local Government Policy, this Section lays down the basis for a legal framework for devolution of authority to empower PFM. PFM is considered synonymous with decentralization.

The above provide a host of arguments for change in PFM and provide a spectrum of tools and instruments in a template format that DOF could extract and use as required for a given situation. Anticipated is that these shall be embedded in law and become part of the fisheries statutes.

2. BACKGROUND TO PFM:

Since 1994, Malawi has explored several initiatives in participatory fisheries management (PFM). In all cases (Lake Chilwa, Malombe and Malawi), the lowest administrative unit selected was a Beach Village Committee (BVC). Over 300-400 BVCs have since been instituted with varying degrees of intermediate administrative structures (i.e. associations and management units) linking them to the local authorities.

2.1. Status of PFM

Despite 10 years of efforts in PFM, catch rates of a number of fisheries have dramatically declined (i.e. Lake Malombe, Chambo Fishery, etc). A number of reasons have been put forward why PFM has not worked and the problems and lessons learnt to date include ([Annex 1](#)):

- a. The BVC are too low an administrative unit to regulate the fishery.
- b. BVCs are not part of decentralization. They are not mainstreamed in local government.
- c. Devolution has not yet placed authority in the districts to support BVCs.
- d. The BVCs are not legal personalities. They have no powers no formal, legal status.
- e. The institutional structure of BVC, AFC, FMU, DFA and FAB is not functional.
- f. BVCs are more like DOF extension groups. They do not do law enforcement.
- g. There is no co-management relationship between Assembly, DOF and BVCs.
- h. User access rights of BVCs are not legally regulated. The fishery is still free access!
- i. BVC composition does not represent the “fishing industry” as defined in the Act.

- j. Licensing, fee collection and revenue sharing by BVCs and DOF is not working.
- k. There is no democratic BVC lobby group to represent the interests of BVCs.

In essence, the 1997 Fisheries Conservation and Management Act and the 2000 Fisheries Conservation and Management Regulations did not provide the Director of Fisheries with the required legal instruments and guidelines to implement the Act, especially with reference to BVCs.

2.2. Solutions to the Problem

An analysis of the situation at various forums has arrived at the following recommendations:

- a. A **PFM Toolbox of legal instruments** is needed to provide the legal framework to translate the Fisheries Act into action, to empower CBNRM in fisheries.
- b. A **technical Toolbox** of alternative livelihoods is needed as a knowledge base and guide to sustainable options of management to take pressure off the resource.

To explain the need for the above it is first important to place this in the context of “poverty reduction”. Poverty can be explained diagrammatically in [Annex 2](#) as the nexus between the prevailing conditions and overlays between the status of development of the communities “social system”, “literacy system” and “natural resource system”. The natural resource base must be seen as the “economic goods” of society, the foundation for all economic growth and the degree of exploitation will decide economic status. To utilize these resources sustainably, communities need a literacy system, a vehicle to convey knowledge to offer income generating activities and alternative livelihood strategies to emerge from poverty. The ability of communities to realize the economic potential of their environment depends on the “social system” which protects their rights to these resources and empowers enforcement through the law and good governance to ensure sustainable exploitation. This triangulation is vital for success! If any one sector is weak, like a three legged pot, the other 2 cannot hold up the pot should one be weak.

The state therefore provides the thread binding all 3 elements together and external support can bring with it much needed support and resources. Perhaps the most important external input is where this support overlays with the “social system” and “literacy system” providing missing elements to the tool box required to repair these elements to make them functional. These toolboxes respectfully represent the “legal” and “technical” toolboxes described above.

2.3. Toolbox Defined:

A “Toolbox” is akin to something you will use to fix a problem with a car or at home, is defined here as: **“a set of tools and instruments that can be used in almost every situation to deal with or solve a problem”**. A PFM Toolbox is therefore a set of legal tools and instruments that complement the Act and can be used as templates to implement elements of policy. In short, the legal instruments required to implement the Fisheries Act were never formally constituted. The materials that were prepared were available in “gray” or project literature and not in the formal DOF domain. This Toolbox offers managers, administrators, extension workers, investors and hired hands

in the fishing industry an array of options of tools and instruments that can be used to translate the Act into law.

2.4. Strategic Approach to the Development of the Toolbox:

GTZ in a follow-up to a ten year program entitled National Aquatic Resource Management Project (NARMAP), in 2003 made available to DOF resources to produce a legal instrument, the Lake Malombe Fisheries Management Plan. Part of this Plan requires a legal framework for PFM. The PFM task force who participated in development of the fisheries management plan with communities, made available the drafts as part of this Toolbox. In addition, a great deal of the ideas generated during NARMAP have been incorporated in the institutional memory of the Toolbox.

At the NARMAP meeting of November 2002, it was determined that the legal framework for PFM was not in place. The DOF then received support from COMPASS/USAID to develop and field test an array of legal tools and instruments that were needed for PFM to become a reality. The focus was on Lake Chilwa/Chiuta and Nkhotakota. Under NATURE, DOF has also received support to develop the legal instruments needed for the Chambo Restoration Strategic Plan (CRSP). COMPASS also supported this process, as did MEET.

Three funding agents therefore come together to assist the Department of Fisheries to prepare this toolbox. In all, 4 work groups were formed so as to derive synergy from the process, share resources and consolidate thinking on a PFM legal toolbox. The 4 groups are:

- Lake Malawi (Nkhotakota)(COMPASS and WESM)
- Lake Malombe (NARMAP)(GTZ)
- Lake Chilwa/Chiuta (COMPASS)
- Chambo Strategy (NATURE/COMPASS).

The strategic approach to the development of the PFM Toolbox was for 2 separate consultants to work with the above groups of lead authors to design the draft templates. A national consultative meeting was organized for stakeholders to develop and design draft templates of the instruments for the toolbox. A second meeting was organized for stakeholders to finalize the templates. Between the 2 meetings, field testing was organized by the groups to obtain feedback from the BVCs and a separate initiative was supported to develop the BVC Constitutions. A draft Legal Toolbox of Templates was then published for review by a legal advisor and by the Department of Fisheries.

During the second meeting a way forward action plan was formulated as to “what next”? DOF have reviewed this action plan and in December 2003 have taken it on board so as to decide how to continue to put the templates into effect in the 3 sites.

2.5. Consultative Process Outcomes:

During the consultative workshops, from a Zopp brainstorming on the analysis of problems, solutions and needs for tools/instruments, stakeholder views are summarized in [Annex 1](#), and discussed below:

2.5.1. Problem Analysis

In general, the stakeholders felt that the main reason BVCs had not been able to stop the decline in the fishery over the past 10 years could be attributed to:

- BVCs had no legal empowerment; they were not linked to the local community or the Assembly.
- The institutional framework, composition, structure and linkages to local authority was wrong.
- Roles of BVCs were misleading and as poor people they had no capacity to implement.
- The BVCs were influenced by corruption, intimidation, lack of motivation.
- DOF created confusion, had no systematic approach and left the BVCs with too much, too quickly.
- There was a need for sustainable financing.

The general solutions to the problems were listed as:

- Legal empowerment of BVCs by constitution and by laws.
- BVC membership should be restricted to 100 % fishers, restructured and restarted.
- The T/Authority in the BVC needs recognition.
- BVCs need to be financially empowered with IGA and ALS.
- DOF to improve extension and civic education outreach.

In conclusion, the BVCs needed the following instruments:

- PFM constitutions, by laws, management plans and agreements.
- Devolution manuals, roles and tools for DOF and BVCs.
- PFM institutional framework developed in line with decentralization.
- Strategic plan for PFM developed.
- Policy white paper developed on rights, authority, etc.

The following templates were required and formed the basis for this toolbox:

- PFM institutional framework.
- Licenses for FPO, FMA, BVC, gear, boats, etc and ID cards.
- Assembly by laws, fees, fines, regulations.
- BVC association constitutions, register, management formats.
- Technical Toolbox on IGAs, ALS, etc.

2.5.2. Template Analysis:

The following feed-back was received on the templates:

- A copy of the act and policy should be made available to BVCs.
- The templates should be in Chichewa.
- BVCs should register as inspectors to do fish quality.
- The FPO should be presented to the police.

- The ID should be laminated.
- Fish quality standards are required.
- The schedule of fees should have a % for the BVC as part of their revenue.
- Noted is that since 1997, Chambo have exhibited a five fold increase in unit price. During the same time fees and fines have remained static. Fees and fines should be increased annually to match inflation.
- Hand lines and fish traps should be included in the fees schedule for licenses.
- A Social Development Fund should be added to the license fee. Government gets the fee; the BVC retains the SDF for local projects (i.e. toilets, water supply, better markets, schools, etc).
- BVCs shall have codes and the register should have district and area association name.
- Fees for processor and traders should be included.
- On revenue sharing, an observation can be made with DNPW. Whereas DNPW makes 99 % of the revenue earned from protected areas through eco-tourism, DOF only charges fees and fines and therefore do not have much revenue to share. In the case of fisheries, 99 % of the revenue accrues to the private sector, to fishers and NOT to government. The revenues from DOF are small and should therefore go to fund DOF activities of enforcement and extension. In fisheries a reverse trend is required to DNPW. The fishers should contribute an element of revenue sharing to the community. In other wards, BVCs should collect a % of the fees and fines (egg. Confiscated gear) as motivation and incentive and the revenue can be used for their operations. The BVC should also charge fishers a levy or SDF which goes towards the development for the community of the Beach (i.e. water supply, schools, toilets, etc). See Annex.

These observations have been taken into account in this Manual.

2.6. Institutional Analysis

All 3 groups analyzed the institutional arrangements of L. Chilwa, L. Malombe and Nkotakota District, L. Malawi. The institutional frameworks, as seen by fishers, of these systems is illustrated in [Annex 2](#) L. Malombe and L. Malawi groups choose similar structures. L. Chilwa is based on the fishermen's choice and is different, as follows:

2.6.1. Lake Malombe/Lake Malawi Institutional Model:

- The BVC is made up of fishers and traders/processors. Community members are excluded as they fall under the VDC.
- Each BVC elects a committee of 10 members which is a fisheries sub-committee to the VDC.
- BVC Chairmen automatically represents the BVC at the Area Fisheries Association, a sub-committee of the ADC.
- The AFA elects a chairman to represent them at the District Assembly and Fisheries Advisory Body.
- The Assembly shall have a Fisheries Sub-Committee (FSC) where the BVC are represented by the AFA Chairman of any water bodies in the District.

- For larger water bodies, like Lake Malawi, all the AFA Chairman shall also meet at an Inter District Fisheries Association as a sub-committee to the Inter-District Lake Basin Authority.

2.6.2. Lake Chilwa Institutional Model:

- The BVC is made up of fishers and traders/processors. Community members are excluded as they fall under the VDC.
- Each BVC elects a committee of 10 members which is a sub-committee to the VDC.
- All BVCs in an ADC, elect 10 members (separate from the above) to represent them at the District Fisheries Association (DFA).
- The Traditional Authority is the patron of the DFA.
- All the Chairman of the DFA's in a District collectively meet at the Fisheries Sub-Committee of the Assembly.
- 2 members of the DFA and the representatives of the ADC jointly make up the L. Chilwa Fisheries Association.
- The LFA is part of the Fisheries Sub-Committee to the Inter-District Lake Chilwa Basin Authority.
- The LFA registers the DFA Constitutions with the Registrar General of the Trust and Deeds Office.

2.6.3. Analysis of BVC Hierarchy:

The Act and Regulations lays down a clear guide to establish an institutional hierarchy for PFM as follows:

BVC (Reg. Rule 2-3)
 BVC Sub-Committee (Reg. Rule 8)
 Area Fishermen's Association (Reg. Rule 18-19)
 District Fishermen's Association (Article 59) (Reg. Rule 19)
 Group of Fishermen's Association (= *National*)(Reg. Rule 22)
 Fisheries Advisory Board (Article 5)(Reg. Rule 20-23)

Reg. Rule 24 requires that Associations should have office bearers. Logically these office bearers should come from the BVC Sub-Committee so as to establish a hierarchical chain of command. However, the Regulations seem to imply that the "office bearers shall be selected from the members of the association" (Reg. Rule 24). The use of the term "selected" is not clear and intimated is that this may be a misspelling of "elected".

Communities on the other hand (i.e. especially Lake Chilwa) appear to want that the office bearers of BVCs (i.e. the Chairman) are not automatically representing them at higher levels. Their wish is for new elected positions (from among the non-office bearers) should chair associations. The logic for this is not apparent! Hinted was that it had something to do with the way allowances were shared. People on committees got incentives and there was a feeling that these incentives should be shared around. There was also suggestions that the local leaders feel threatened by the "power" of the BVC Chairman and saw this as a challenge to their authority and therefore wanted to reduce the sphere of influence.

Whatever the reason, the fishing community suggestions transcends any logic of a normal “society institutional hierarchy and chain of command”. Recommended, to maintain a continuum in the chain of command, to ensure BVC governance can be effectual and influential, a representative lobby group, the office bearers of associations should automatically be a composite of all the chairman of respective BVCs (i.e. either at Area level or District level). This collective committee shall represent all BVCs at the appropriate level and shall from amongst themselves, elect its own sub-committee to represent it at the next tier of the hierarchy. To clarify this, the proposed hierarchy as described in the Act, is illustrated in Section 2, Schedule 2, [Annex 3](#). Each tier therefore communicates down to the next tier and eventually fishermen should have a powerful voice at the table of then Fisheries Advisory Board.

2.7. Legal Analysis

Most of the feed-back received has been included as direct edits and up-grades of the templates and appears in the final draft. However, a number of unresolved issues did arise and these have been highlighted below as topics for DOF to resolve before the templates can be completed. Most of the contentious issues seem to hinge on the interpretation of the Act and on definitions.

2.7.1. Co-Management and PFM Defined

The co-management role of state and community appears to have become misconstrued. The state has more or less expected that BVCs will from the start (i.e. from day one, literally), take up all law enforcement. When asked, the DOF law enforcement services were unable to clarify the number of prosecutions under the Fisheries Act in 2002. The estimates were less than a handful! Department of National Parks and Wildlife (DNPW) on the other hand reported prosecutions near 1000, during the same period. The latter signifies that the DNPW are prosecuting under the law in protected areas. So effective is this legal system that DNPW were in December 2003 able to reverse a poor court judgment on an ivory poaching case and bring the full force of the law to bear. This was not happening in fisheries! State control of fishery resources was poor mainly due to:

- DOF had limited resources to run law enforcement.
- No-one had been appointed as a Fisheries Protection Officer with powers to arrest.
- No BVC had been granted “honorary” powers as a Fisheries Protection Officer.
- There was a political sensitivity if arresting someone whose livelihood depended on fishing.
- Staff fears retributions from the offenders.
- There was a DOF miscomprehension that CBNRM meant that BVCs now were to maintain enforcement and there was no need for state inputs.

Co-management can be illustrated as in [Annex 3](#). The objective of Co-management is a partnership between state and community (i.e. this is the very definition of PFM). In a number of cases, the state has 100 % control on all resources and the community none (i.e. protected areas of Lake Malawi National Park are one such example). Ideally, CBNRM, through the concept of co-management, strives that for common property or communal areas, the state hands over some degree of power to

communities and pro-rata, diminishes its own role. As the community grow in capacity and governance to handle this new role, more power and authority to manage the fishery can be progressively handed over from state to community until the community is fully capacitated with power to sustainably manage the resource. Normally however, communities still need state and local government support to protect them and their rights from influential and unscrupulous persons who would cheat them of their rights. Consequently, it is not uncommon in most PFM fisheries to remain at a co-management partnership equitably distributed (50:50) between state and community. The community regulate community activities and the state enforces the law.

In Malawi, it would appear that CBNRM has been taken literally to mean that communities should have 100% control. The state therefore, other than licensing fishermen, appears to have taken a very rapid and diminishing role and has not provided the enforcement in the partnership. This happened too soon, before the BVCs could mature into their new roles and develop capacity. As a consequence, the situation has ended up more or less confused and a “free for all”. One of the main reasons for low state inputs is lack of resources (i.e. financial, manpower and equipment). The other is that PFM was never institutionalized. Clear government instructions (orders), terms of reference and mandates for PFM have never been issued. What exists, exists in “project documents” and this has no legal binding status!

Another reason is that under decentralization, the role of the local authorities in managing the fishery has not been established. Under the National Decentralization Policy, Section 12. Fisheries, stated is that “Functions and services to be assigned to the Assemblies include”:

- Licensing and inspection of fishing gears (i.e. nets and boats).
- Fisheries extension.
- Community participation in fisheries management.

The Local government Local Government Act, Schedule 2, Section (e)(i) and (f) empowers the Assembly with this authority, but DOF has yet to devolve PFM to local government. The tools and instruments were not there. This Manual provides these legal tools and these have been included here as local government by laws in Section 4. The intention is that at the time of devolution in July 2004, these by laws will be enacted and shall go some way to empower Assemblies to protect the fisheries and the rights of BVCs.

2.7.2. The Membership of BVCs (BVC defined)

Perhaps the most contentious issue was the interpretation of the terminology BVC. It would appear the way this has been applied under PFM is not in conformity with the Act and Regulations.

The term BVC does not appear in the Act. The Act (Article 9.2.c) refers to Fisheries Management Authority (FMA) defined as (Article 2) “any local community organization established for the purpose of promoting local participation in the conservation and management of fisheries in Malawi”. The Regulations do not equate BVC with FMA but go on to give BVCs the jurisdiction over fishing waters of a beach community (Reg. 15) and requires that they form legal Fishermen’s Associations (Reg.

18.1) and that office bearers of the Fishermen's Association shall be Honorary Fisheries Officers (Reg. 25).

Local Community Participation Rules (In the Fisheries Regulations) elaborate that "persons engaged in fishing in a particular fishing beach, may form a Committee" (i.e. a BVC) (Article 3). The Rules go on (Article 7) to elaborate "A Committee (implying a BVC) shall consist of persons who are engaged in any aspect of the fishing industry associated with a fishing beach". Fishing industry here includes "fishing, fish processing, fish marketing and fish trading" (Article 2).

Analysis reveals that the way the PFM guidelines have been directed has actively encouraged the "non-fishing industry" community members to join the BVC. Under PFM, the documented guidelines specify that 30 % of BVC members were to be formally classed as "others" (i.e. **not in the fishing industry**). This is in direct contradiction of the law and needs to be revised!

In some incidences it was encountered that perhaps as low as 26 % of the BVC members represented the category of "fishing industry", the rest were villagers and chiefs. Thus it would seem that the way PFM was interpreted favored village communities and hired labor. Influential parties such as "absentee" gear owners, investors in the industry and fish businessmen, were actively excluded! The latter represent a sizeable portion of the industry. In Lake Malombe, 300 gear owners are registered! It is they who hire 3 000 crew members. In this case, 10 % of what can be defined as the "fishing industry community" as in the Act, actively control the crews, the boats and the gear...and therefore the fishing! It is unlikely therefore that any committee constituted without equitable representation of these vested interests, will have the power to influence decisions in the fishing industry. Without these parties included in the BVC, any other formulae for committee composition are very unlikely to have the right, the power or the capacity to regulate those whose livelihood depends on fishing. The vested interest must be brought on board, and they, like any other in the "fishing industry community" need as much capacity building in sustainable fisheries management as any other.

Recommended was that BVCs should be constituted as defined in the Act and should only consist of persons whose livelihoods is vested in the "fishing industry", especially with fair representation of the influential elements of the industry.

2.7.3. BVCs and Fishermen's Associations as Commercial Fishing Unions:

There seemed to be a general comprehension that the bulk of fishermen in Malawi were subsistence fishermen and needed protection. It was noted however, that some fisheries in Malawi (like Lake Malombe), is, by the definition in the Act, a **commercial fishery**. The Act defines Commercial Fishermen as "a person who is engaged in fishing for sale throughout the year and who relies on his fishing activities for part of his income..." Commercial fishing means taking fish for sale as opposed to subsistence fishing which means "taking fish for home consumption".

With this understanding a parallel comparison could be drawn between how fisheries are being managed in Malawi and how commercial fisheries are managed in a western situation. In Malawi the approach of making a BVC a composite of persons to be

found on a “fishing beach” would be akin, in a western society context of going down to the “fishing dock yards” and making a committee of persons found in a dock yard (i.e. workers, laborers, etc). The spectrum of persons found in a fishing dock yard could not make up a representative committee with authority to negotiate quotas with government. People in the dock yards would be employees of “absentee” persons who own the vessels or are the investors in a fishing company. They would NOT be in the decision making chain. In a western society the state negotiates fishing quotas with fishing vessel owners or companies. Once the vessel is licensed, the state policies compliance and conformity. It would seem therefore that the principles that have been applied to BVCs composition is not practiced in fisheries elsewhere so why should it be done this way in Malawi?

People who live on the fishing beach like those in the dock yards are often “hired hands”. They are not necessarily the influential nor the vested interests, the owners of gears and the trade and therefore they are not likely to be influential in the “chain of command of the fishing industry” but are rather influenced by local leadership. What is important if a BVC is to regulate the fishery and to have teeth to implement the law in co-management with government is that there must be fair representation of the influential, the vested parties, and the investors in the industry. The state should negotiate with and build capacity of the people who stand to gain the most from a sustainably, well managed fishery. Government can then negotiate with these influentials, establish co-management plans, set rules and make these persons aware of sustainable management so as to fix size and effort limitations. In this way, if the state works with those who “control” or own the industry (even absentee investors), these vested interests, in turn will regulate their hired hands....

Recommended is that DOF re-examine BVC composition to align it with the power structure in much the same way as the Commercial Fishermen’s Association of Malawi. This power structure, like any other will be receptive to knowledge on sustainable utilization and would therefore also benefit from capacity building to explain the need to regulate gear and off-take. Re-iterated is that a full socio-economic profile of the fisheries industry is necessary so as to ascertain fair and proportionate representation on the BVC.

2.7.4. BVC as a Misnomer:

The Act and Regulations imply that “A BVC (BVC = Committee) shall consist of persons who engage in any aspect of the fishing industry associated with a fishing beach (Rules, Article 7). It goes on to qualify that (Article 8), “for the proper management of the affairs of a BVC, each BVC shall form a sub-committee which shall consist of Chairman, Treasurer, etc”. These office bearers become Honorary Fisheries Protection Officers (FPO) to uphold the Act (Article 9).

What has actually transpired under PFM is that the term BVC was interpreted as the Fishermen’s Committee which comprised of 10 elected persons (i.e. Chairman, Secretary, Treasurer... etc). These 10 represent a fishing beach.....! The concept of a BVC being a composite of “all members of the fishing industry” and that it had a elected Sub-Committee of 10 members, appears NOT to have been set-up as in the Act. Consequently, the members of the fishing industry were never constituted into a legal entity, collectively called a BVC! No formal constitutions or fishermen’s

associations were registered with the Registrar General of the Trustees Act. And, no BVC chairmen were empowered as honorary Fisheries Protection Officers. BVCs as a committee of 10 persons, less than 50 % representing the fishing industry therefore were powerless with no authority to enforce the law. They had not set up a mechanism to derive a legal mandate from the mass of their members. The authority to implement the Act still sits with DOF and has not been devolved! DOF however, were of the opinion that the BVCs were now the legal enforcers of the law ...confusion!

Recommended is that the term BVC is perhaps a misnomer and should have better been referred to as a “Beach Fishing Community” (BFC) (or Fishing Industry Community = FIC, or something similar) with an elected Committee to represent it and a constitution registered under the Trustees Act to establish legal status. BVCs also need to be bestowed with honorary FPO status so that legally they may enforce the law on behalf of DOF, and all this needs the support of local government.

2.7.5. Authority to Produce Fisheries Management Plans

PFM as practiced in Lake Malombe (and Chilwa) believes in devolving full responsibility to the BVC to make their own regulations, by-laws and fisheries management plans. This assumption negates the concept of “co-management”. BVCs have been assumed to be the sole managers of the resource and to a large degree, DOF have been excluded from law enforcement. This presumes that fishermen have the capacity (scientific, managerial, influential and governance) to take on this responsibility almost overnight. The Act on the other hand (Reg. 21) states that:

“fishing management plans, regulations and any other subsidiary legislation related to the conservation and management of fisheries shall not be made nor amended unless the Director provides the fishermen’s association with the proposed management plans, regulations or any subsidiary legislation, or amendments thereto...”

Bottom-up planning and legislation is possible only where the capacity, authority and science (or knowledge) exists at the appropriate level to make these plans and laws. However, the Act clearly spells out that for the time being, in PFM, the DOF is responsible for planning and legislation and encourages that this be done in consultation with the BVCs, and that BVCs enforce the regulations in conjunction with DOF and local authorities. This reinforces what was said above about co-management! The Local Government Act also implies that enforcement is retained by the state and local authorities.

Recommended is that DOF, based on science, should prepare the fisheries management plans and by laws for BVCs. BVCs may comment and advise on adjustments, BUT basically like any fisheries management system in the world, it is the state that decides the law, sets fishing limits and enforces them. BVCs should be encouraged to participate in co-management with the state, with DOF and Assemblies playing the role of enforcer and scientific provider of management guidelines.

2.7.6. Revenue Sharing and the Principles of a Tax Based Economy

It would seem that DOF has for some time been pre-occupied with the concept that they needed to share a portion of the revenue generated by the state with the community. On analysis, during CRSP it was determined that in 2002, the state generated USD 10 000 from fisheries fees, licenses and fines. In a fishing industry worth USD 15 million, this represented a tax income to the state of less than 0.07 %. The whole of the fishing sector therefore is in the “informal sector”. The state therefore derives such an significantly low portion of revenue that it is understandable why the DOF is unable to perform and enforce the law... prorated to the size of the industry, the state simply does NOT generate sufficient revenue. Malawi does NOT have a tax based economy and the fisheries sector has not been treated as a national economic good!

Most government staff were not aware of the concept of a “tax based economy” and [Annex 5](#) goes some way to explain this. The principles are that government staff are paid by tax revenue. The state in turn is supposed to support the income generating sector by research, extension and infrastructure. The better the services provided by the state, the more revenue generated by the private sector, the more tax revenue accrues to the state, the better the state can pay its staff and research, extension and enforcement. This economic cycle will escalate until surplus is generated as a Social Development Fund for social services. This is the principle behind western economies and the surplus tax dollar is what development aid is founded on.

Natural resources (like fisheries) can have 2 types of produce, those that are for domestic or home consumption or those that are sold commercially for a livelihood. The concept of CBNRM is that local communities rally around a group structure and each member contributes a share hold to buy in to the right to use resources. This CBNRM group, or BVC in fisheries is registered as a legal entity and obtains licenses or permits from government. Government generates some revenue from this. The BVC may also lease out some of its fishing rights to commercial operators and in turn generate some income for the community. Commercial users also pay revenue to the state for trade licenses and taxation. From this revenue, the state can now support the community. This revenue-benefit stream however needs a legal framework on which to protect the user groups and according to the local administration layers, legal tools and instruments are needed at each level to communicate the law and protect user rights. In Malawi, under decentralization this will be embedded at central level, local government and community level. Thus a BVC though its own rule and regulations should be able to deal with minor infringements. When the local leaders cannot solve the issue, they can go to traditional courts or the local district assembly and magistrate for a ruling. If the infringement is serious, they can go to the central judiciary. Likewise, the state may use the same recourse to enforce the law.

In Malawi, the state takes almost 99% of all revenues generated from protected areas, communities are excluded, but in fisheries, the community gets over 99%, the state is excluded ([Annex 6](#)). Under recent legislation review, the state has agreed to share as much as 50 % of revenues generated from national parks with communities. Some will go to VNRMC some will go to social development funds. In fisheries therefore, there is a need to pass legislation to ensure that the state gets sufficient revenue to manage

the sector, enforce the law and rehabilitate the over-fishing damage that has already been done.

This needs to be put before Cabinet and one area for tax consideration is that the fees and fines have not kept pace with inflation and the rise in value of the fishing industry. **Annex 7** illustrates that chambo have increased in price from 1977 by 4.5 fold, meanwhile the fees and fines in the Act have remained static. Suggested is that each year, Cabinet should review the fees and fines and instill a fair value based on inflation so as to generate tax for the Fisheries Fund to operate. This has been dealt with in Section 4, **Schedule 6 and 7**. BVCs in turn may add their own share of revenue to the fees and fines they collect on behalf of DOF as an incentive scheme.

2.8. Conclusion:

The Toolbox has gone as far as it can under the present assignment. Lake Malombe PFM will provide an opportunity to apply these templates in the field and to come up with final versions.

The concluding agreements reached were:

- The legal Toolbox was a positive way forward to legally empower the BVCs.
- Agreed was the need to restructure the BVC institutions to align them with decentralization and to provide the guidelines necessary to define the new roles and responsibilities.
- Revenue sharing should be based on additional revenues raised by the BVC as part of their duties to fine fishers who violated the rules and to collect levies as SDF for the benefit of the community so that they support the BVCs in time of need.

3. HOW TO USE THE TEMPLATES

3.1. Section 2: Policy Supplements, Strategies and Guidelines:

This Section deals with policy issues that arose during the preparation of the toolbox. The annexed templates were prepared at the request of the Director of Fisheries as instruments to strengthen PFM and other relevant issues as follows:

Annex 1: Strategic Plan for HIV/AIDS Mainstreaming.

HIV/AIDS is a serious issue in Malawi, almost at pandemic proportions with an estimated average 16 % infected. This policy statement suggests a sector wide approach to HIV/AIDS. It is in the form of a draft Cabinet Paper to lobby government to establish a strategy whereby HIV/AIDS is mainstreamed in fisheries management. It makes the case that animal protein is vital to fight the disease and lobby's for resources to be allocated to fisheries to include an outreach campaign in all BVCs, fish beaches, markets, etc.

The draft Cabinet Paper is in a format ready to consult the CCNRE for approval.

Annex 2: Chambo Restoration Policy Supplement.

This policy was formulated as part of the toolbox to support the Chambo Restoration Strategic Plan (CRSP). During the course of preparing this Manual, Cabinet on 23.7.03 agreed to adopt this policy. It now needs to be turned into action.

The CRSP which was produced as part of this Manual has been published as a stand alone document.

Annex 3: Red Book Declaration of Endangered Fish Species.

An analysis using IUCN criteria intimates that 11 species of fish in Malawi could qualify to be on the IUCN Red Data Book of Endangered Fish Species. This short Cabinet Paper is to sensitize Cabinet to this issue and to ask for action to help stem the pressures which threaten these fish.

The draft Cabinet Paper is in a format ready to consult the CCNRE for approval.

Annex 4: Environment Mitigation Protocols for Aquaculture.

During the course of the toolbox development, a Code of Conduct for Fisheries was envisaged. On reflection, it was decided that the Fisheries Management Plan (Section 3), is perhaps a more legal framework to lay down a Code of Conduct for Fisheries, however, no such framework existed for aquaculture. At the request of the Director of Fisheries, templates for Environmental Assessment for aquaculture projects were developed.

These templates provide the tools needed for the aquaculture plan of the CRSP and need to be instituted by Cabinet or NCE, as the legal basis for aquaculture project EIAs. The following tools are available in draft based on Namibian and Ghanaian instruments:

a. EIA Checklist for Aquaculture.

This user-friendly format allows a fast track assessment of any aquaculture project. The proponent filling in the document has to verify for each category if the likely environmental impact is positive or negative, and if so to what degree (i.e. is the impact major or minor)? The potential environmental impact is then described in the next column and if the impact is negative, mitigating actions can be recommended in the last column.

The Director of Fisheries could ask District Staff to rapidly conduct such a checklist to inform the Director if further detailed analysis is required.

b. Environmental Assessment of Aquaculture Project Cycle

For any project, developmental or private investment, this template is for environmental audits of the project cycle in line with ISO 14000. It goes through identification, feasibility, appraisal, implementation/construction, and periodic reviews. Designed as a set of simple questions, any negative answer would suggest an

oversight, or omission and the project status vv the question can be answered. Thereafter, the final column is for recommendations to remedy the situation.

Any donor or investor would use this as a guide to environmental sustainability of a project. Conversely, government could use it as a guide to check any project proposal.

c. Preliminary Screening Process for Fish Species Introductions

With the unique biodiversity of Lake Malawi it is significant that government restrict the introductions of exotic fish which could have adverse effect to the ecological balance of the lake ecosystem. With the proposed expansion of aquaculture in the CRSP, this tool provides a rapid screening process to the DOF to ascertain if any application to introduce an exotic fish meets with international accepted practices of screening BEFORE introduction.

Should this preliminary test suggest introductions are acceptable, full EIA is advised.

d. List of Prohibited and Acceptable Fish Species for Introductions

To assist the authorities in the screening of proposed candidates to be introduced for aquaculture, this list is an accepted FAO format of species which should under no circumstance be considered and those which have elsewhere been known to be beneficial to aquaculture and friendly to the environment.

Malawi could gazette the prohibited list.

Annex 5: Participatory Fisheries Management Policy Supplement.

This annex has been used as the front piece of this Manual as it sums up all the observations and recommendations and suggests their inclusion in to policy as a supplement so as to re-mould the legal framework for PFM.

The draft cabinet paper is ready for CCNRE approval.

3.2. Devolution of Fisheries Department:

The devolution templates could not be completed as DOF has not given thought to which functions it wished to retain and which to devolve and as a consequence, which offices would be handed over to local government.

Annex 1: Devolution of Fisheries Policy Centrally, Assembly and BVC.

The National Fisheries Policy of 2001 has been broken down into a narrative description of each of the statements and a set of verifiable indicators have been selected as the tools and instruments that need to be prepared in response to each policy statement. Who should take responsibility for the policy element has been elaborated further under a devolution situation and divided between central government, local government and community or BVC.

This tool forms a framework for the devolution strategy of the DOF.

Annex 2: Fisheries Devolution Plan and Budget.

The MoNREA in 2002 launched a campaign to prepare devolution plans for all its sectors. The draft fisheries plan is attached as a tool to this toolbox as it outlines the thinking of DOF vv devolution. It is the basis of a framework to include elements from Annex 1 above. Government plans are that by July 2004, all sectors in the first round (includes fisheries) will devolve responsibilities to the Assemblies.

This plan and budget was to have been approved by the Decentralization Commission in June 2002. DOF should pursue the status of this and see if resources have been allocated for the planned activities.

Annex 3: Department of Fisheries Organizational Chart

The DOF staff situation has been described in 2 parts:

- a. Current Situation 2003.**
- b. Future Devolution Situation (July 2004)**

The organigram proposed for devolution places all the extension and outreach offices under the Assemblies. Research and aquaculture stations remain centrally controlled as is policy, planning, M&E, training, and enforcement, etc.

Annex 4: Department of Fisheries Staff Status

The DOF staff situation has been described in 2 parts:

- a. Current Situation 2003.**
- b. Future Devolution Situation (July 2004)**

The templates are to be used to list all staff in post by district and position and then to re-organize how this will look after devolution in July 2004. The numbers will assist the Director in budgeting and the Assemblies in the staff that they will inherit.

Annex 5: Department of Fisheries Assets Status

- a. Current Situation 2003.**
- c. Future Devolution Situation (July 2004)**

Like the staff tables, these templates will assist the Director to get a complete inventory of all DOF buildings, vehicles and equipment and to indicate those which will go to the Assemblies when the above staff are devolved. The template should assist DOF and Assemblies to budget and plan.

Annex 6: Department of Fisheries Sections Devolved TORs.

The DOF staff have had little exposure to the concept of devolution. PFM is one form of devolution of responsibility for natural resource management to the lowest appropriate

level. This template suggests the terms of reference by section in DOF.

DOF would have to review this draft and finalize it along with the staff and asset status and bind it all as a Devolution Plan.

Annex 7: Assembly Criteria for Allocation of Fisheries Fund.

A proposal has been made to Cabinet spurred by USAID/NATURE to establish a “Environment Fund” to fund environmental work through the “green window” of the District Development Fund. This template set sets out the criteria that would determine the allocation to fisheries.

- a. **Summary of all criteria:** This is made up of a multiple of factors each weighted equally and used to assess which districts are in compliance with the laid down law governing ENRM. Those that score the highest should be rewarded with additional allocation of resources.
- b. **Status of DSOERs:** This template summaries each district chapter on the 10 thematic areas of the State of the Environment Report (SOER). It is used to assess progress by Assembly in SOER preparation.
- d. **Status of DEAPs:** As above but for Environmental Action Plans.
- e. **Status of Sector By-Laws:** As above by is based on how many Assemblies have adopted the Fisheries By-Laws in Section 3 of this Manual.
- f. **District Status of Fisheries:** As above but assesses the status of the fishery, the BVCs, catch data, etc and makes a comparison of performance against an average per BVC. In other wards it allocates more points for districts with a higher ratio of catch to BVC, implying resources are needed to create more BVCs to manage the resources.
- g. **Summary of Fisheries Micro-Projects by District:** Mostly an M&E tool to monitor the proportion of Assembly funds that have been allocated for fisheries to ensure that there is an equitable attention paid to the sector.

3.3. Local Government Fisheries Conservation and Management By-Laws:

This Section makes the assumption that to be effective under the principles of the Local Government Act, Fisheries Laws must be translated into Local Government by Laws effective at Assembly level. This is a draft of the tools and instruments needed at this level and has been extrapolated from the PFM Section of the Fisheries Act and Regulations.

a. Schedule 1: Fisheries Protection Officer letter of authority

This template shall be used by the Director to assign to all DOF staff the powers as bestowed by the Act. In addition, the Director may appoint BVC Chairman to represent DOF as honorary FPOs. The letter of authority needs official signature and initialing according to the authority required.

b. Schedule 2: Constitution for BVC and Fishermen’s Association and Election format for Office Bearers

Modeled on Lake Chilwa Constitution, this template represent a legal instrument to make BVCs a legal personality. It is in line with the requirements of the Trustees Act and bestows responsibility on the BVC and defines who may be a member and the hierarchy. It calls for several attachments to clarify the status of the BVC. Annex 1: is a Map of the Location of the Fishery showing boundaries of BVC, ADC and Assembly. Annex 2: is a Register of BVC members, vessel, gear and equipment that make up the fishing industry (and is to be extracted from the template in the By Law, Schedule 9). Annex 3: is a generic Institutional Organization of the BVC and Fishermen's Association. Annex 4: is an Election format for BVC to ensure free and fair elections. Annex 5: is the local By-Laws, rules and regulations of the BVC, Association and Annex 6: lays down the Penalties, fees and fines of the BVC/Association.

c. Schedule 3: Fisheries Management Plan (FMP)

Based on the experience from Lake Malombe, the FMP has been made into a template that can be used for other Fisheries. In the first instance it is the DOF that should generate the FMP based on the known science. The FMP should include Annex 1: a Map of the Water Body Showing BVC locations, Hotspots, sanctuaries, etc.. Annex 2: Trends in Fish Catch, Gear and Stakeholders. Annex 3: a Stakeholder Problem/Solution Analysis so as to decide where to invest to get the best, sustainable returns. Annex 4: is a Strategic Analysis of Management Options. Annex 5: Is the outline of a Fisheries Management Plan and, Annex 6: is a summary of Stakeholder Management Resolutions, as a means of getting BVC buy in and ownership.

d. Schedule 4: Fisheries Management Agreement (FMA)

This template recognizes the need to formalize the relationship between the BVC and the state. It lays down the legal relationships and contains annexes as in the by laws but formalized to the nature of the FMA. It lays down limits to membership, gears and boats. It established fees and fines and revenue sharing. It bestows authority on the BVC and contains and M&E reporting format.

e. Schedule 5: Leasehold Permit/Agreement for Exclusive Fishing Rights

Under CRSP, policy was declared that empowered fishers to establish protected areas. This template lays out the legal provision for such an undertaking.

f. Schedule 6: Fees for registration of vessels, gears and fishers

Abstracted from the Act, this template should be updated each year, signed by the Minister so as to keep fees abreast with inflation. The template is interactive. If the inflation value is changed, the values adjust automatically and it includes an element of revenue sharing with BVCs and local authorities.

g. Schedule 7: Fines for contravention of the Act and Regulations 2000

As above, but applied to fines so as to keep them abreast with inflation.

h. Schedule 8: Authority/License to Fish Within the jurisdiction of a BVC

On the basis of signing a fisheries Management Agreement, BVCs are empowered to issue license to each BVC member. This template reflects a generic license to be completed for each fisher. It is transferable between BVC on the recommendation of the Chairman.

i. Schedule 9: Register of Vessels Registered and Licenses issued

BVCs are supposed to keep a register of all members, boats and gear and furnish DOF with a quarterly report. This template makes this reporting in a standardized format so that the Director of Fisheries may produce accurate statistics.

j. Schedule 10: Restrictions on Size of Fishing Gear, Prohibited Periods, Times and Gear Types

Regulations on size of gear, numbers that can be used, closed periods, etc are regulated by government. The Act does not empower BVCs to make or alter these laws. They are state controlled. However, on analysis it was found that the rules and regulations were distorted each time they appeared in new publication. This template could be re-issued by the Minister on a regular basis as a reminder of government rules and regulations. It can also be appended to any FMP and FMA.

k. Schedule 11: Assembly Fisheries Quarterly M&E Formats

MoNREA in 2002 produced an M&E System for ENRM sectors which summarized M&E reports from assembly level to central government. This system was not recognized by Local Government. This template therefore adopts a standardized format which should be gazetted or at least passed by the NCE as the M&E system for PFM. This information is vital, collated at a central level to assess success in PFM, and to take action as required.

Attachment 1

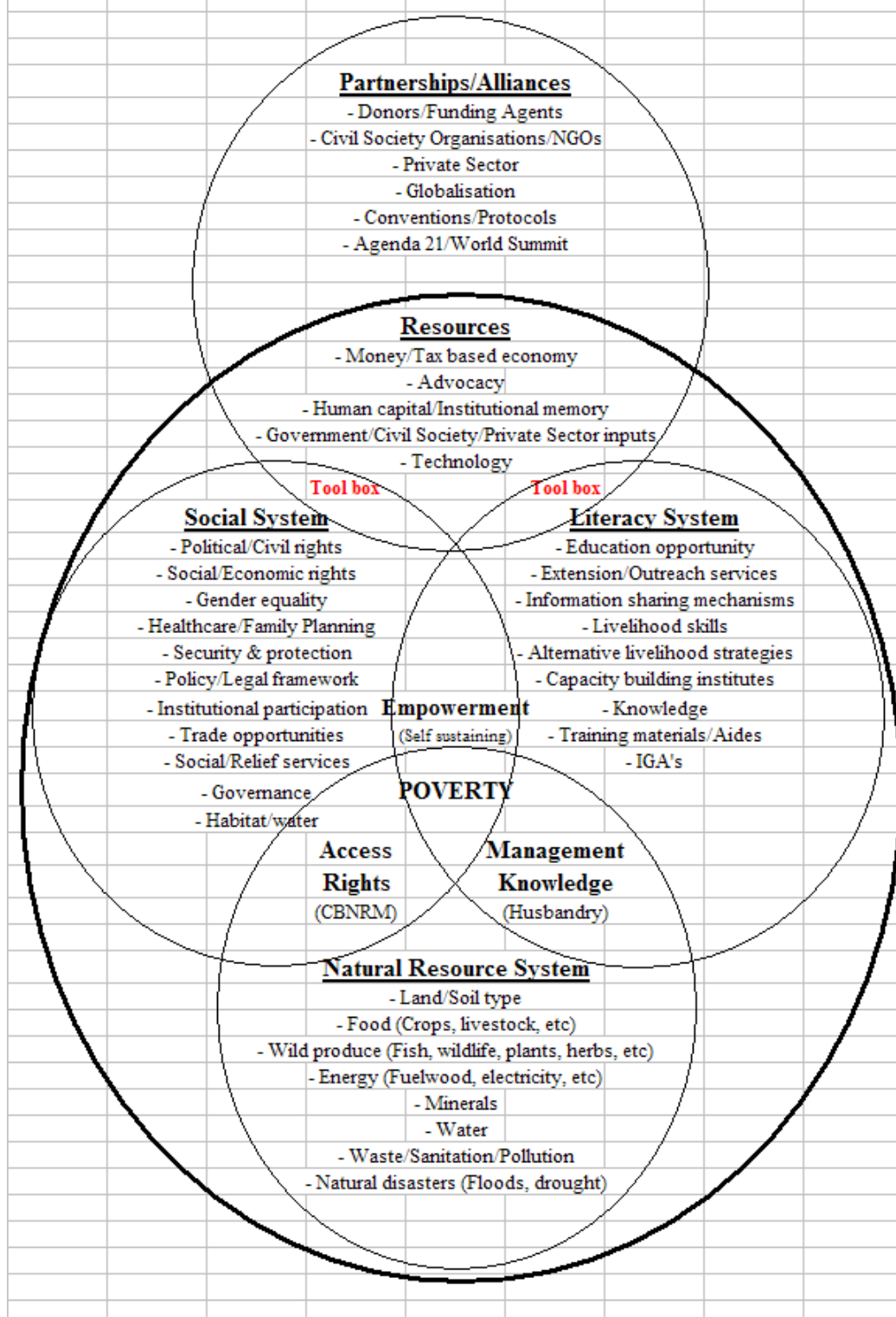
Annex 1: SWOT Analysis and Legal Requirements of BVC.

(ZOPP Results of Workshop at RTC, Zomba 28-29.8.03)

SI No	Why BVCs are not Functioning as Planned Problem	What BVCs need to Empower PFM Solution	Legal Tool Box and Instruments for PFM Needs
1	- BVC's are not legally empowered	- BVCs need to be legally empowered with authority	1.Tools/Instruments/Large Documents: - PFM Constitutions for each BVC Association (Legal register) - PFM Devolution Manual for DOF/D-Assembly(TORs, roles, etc) - PFM Manual for BVC Associations (tools, accounts, reports, etc) - Fisheries Management Plan (in DDP Format) - Fishery Management Agreements. - Strategic Plan for Institutionalization of PFM. - Extension Manual for BVCs (IGA, ALS, Conflict resolution) - Inter-District International Basin Authority/Constitution - PFM Code of Conduct - PFM Policy White Paper (exclusive user rights/revenue share, etc) - Technical Tool Box (IGA, ALS, etc) 2. Templates/Smaller Documents: - PFM Institutional Framework. - Fisheries Management Authority/BVC License - Fisheries Protection Officer Letter of Authority - BVC Identity Card to use the Beach - D-Assembly By-laws (fees, fines, regulations, etc) - Access permit/License - BVC/Association Register (members, boats, gear, catch, etc) - BVC Formats (accounts, reports, etc)
2	- BVCs had wrong composition (too few fishers)	- BVCs need constitution and by-laws	
3	- BVCs too poor to manage resources	- BVC membership should be 100 % fishers	
4	- Corruption/intimidation undermines BVCs.	- Restructure BVCs/Restart the whole process	
5	- Roles/responsibilities of BVCs are misunderstood	- Recognize the role of T/Authority in BVC	
6	- BVCs power struggle with local leaders/Underrated.	- BVCs need resources or IGAs to generate income. - Financially empower BVCs thru sustainable financing.	
7	- Need to involve D/Assembly	- BVCs need cost sharing mechanisms	
8	- Institutional capacity not developed	- BVCs need strategy for IGAs and to diversify activities	
9	- BVCs not embedded in local community.	- DOF to improve extension and awareness.	
10	- BVC lack of knowledge of fisheries management	- Mainstream gender.	
11	- DOF created confusion with no systematic approach	- Donors to adhere to DOF implementation plan.	
12	- DOF no resources/capacity for co-management		
13	- DOF left responsibility to BVCs before they had capacity		
14	- BVCs have no sustainable funding mechanism		
15	- The process was donor driven.		
16	- Demand for fish too high on the industry.		
17	- No management plans.		
18	- Promises and lies.		
19	- No motivation of BVCs		

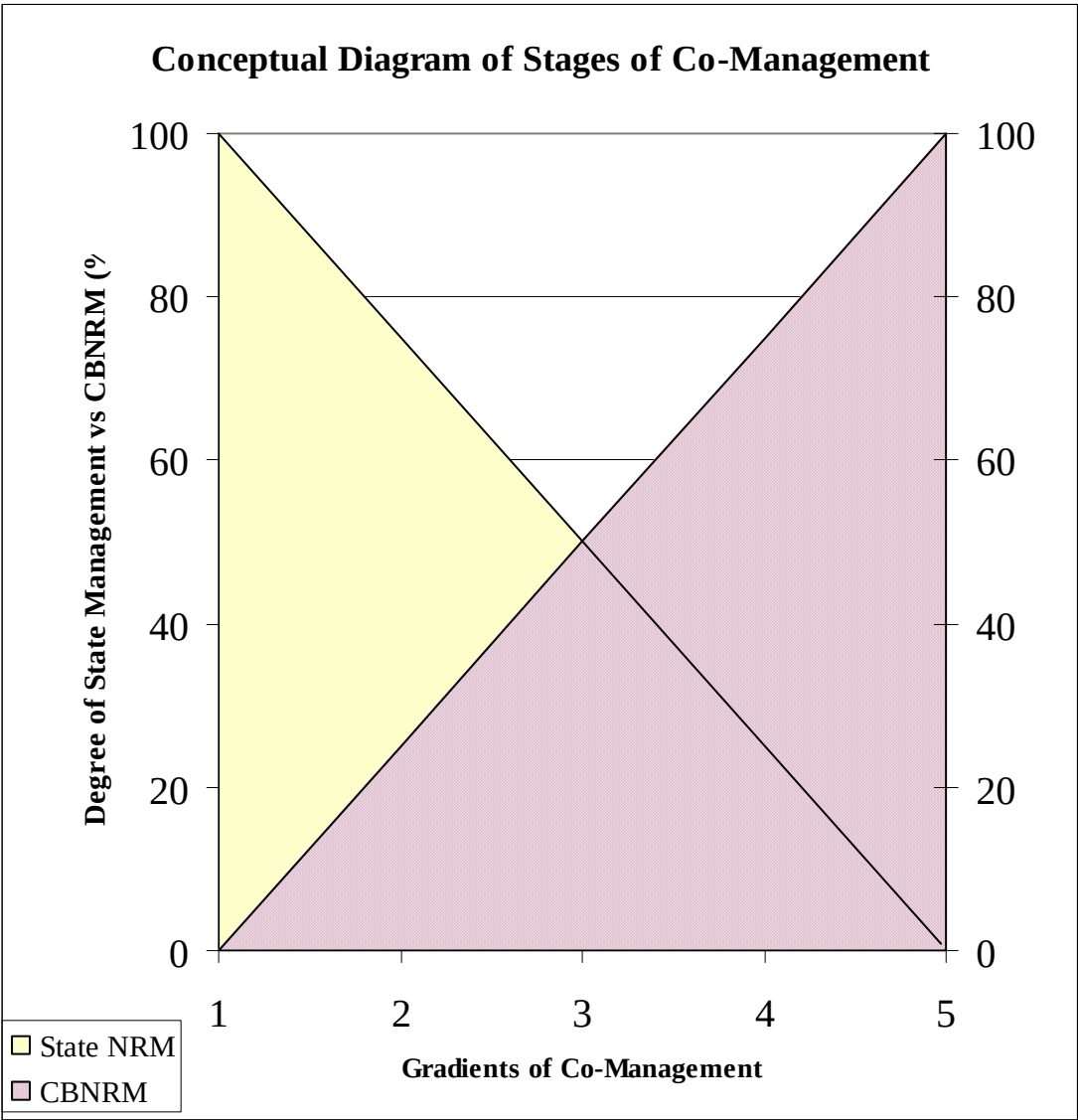
Attachment 2

Annex 2: Interrelated Factors Influencing Sustainable Development and PFM:
(The need for Tool Boxes)



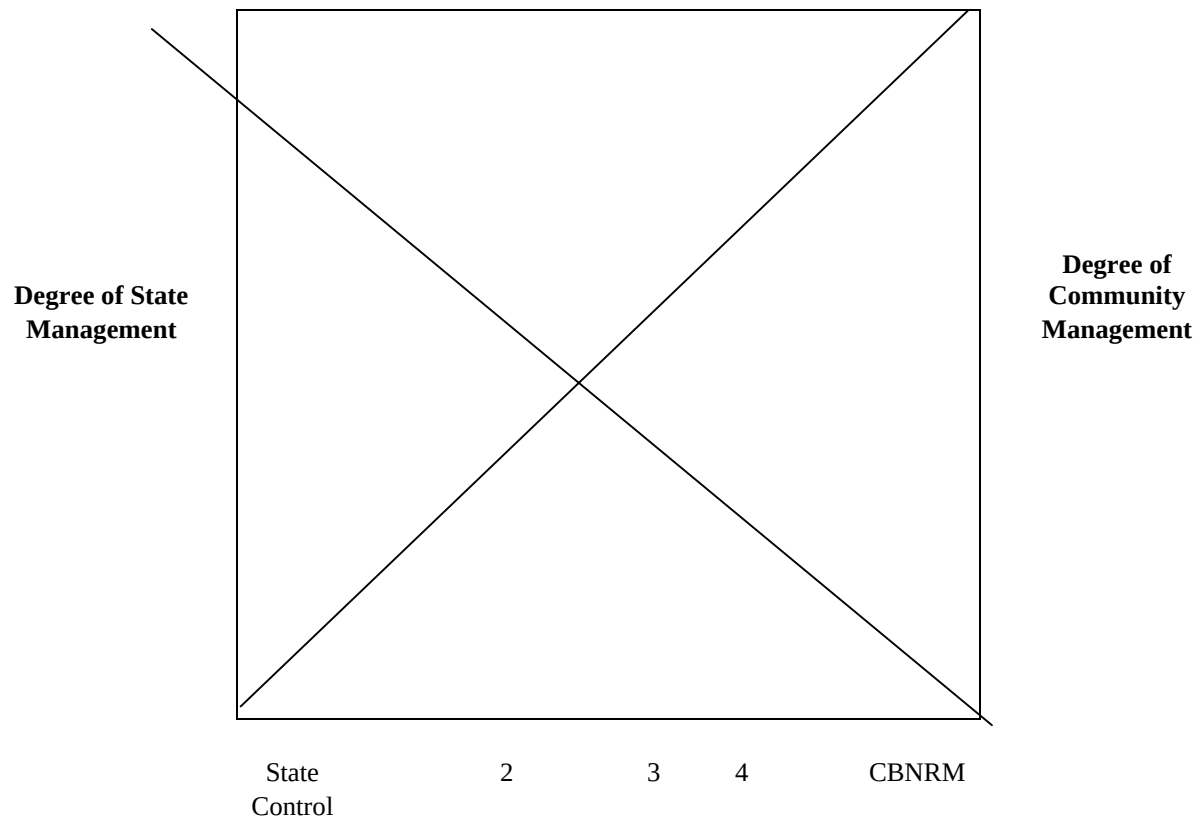
Attachment 3

Annex 3: Conceptual Diagram of the Different Stages of Co-management



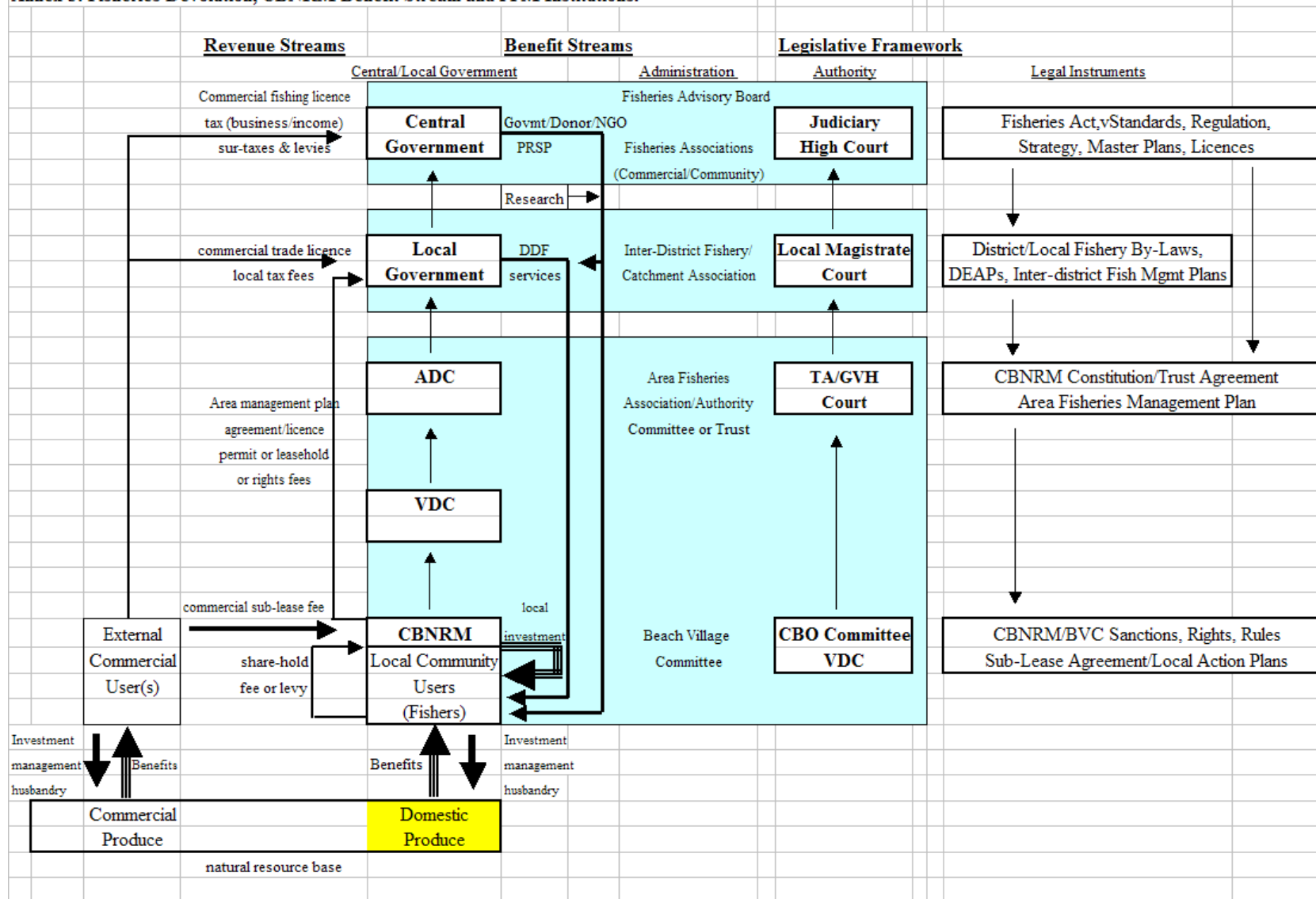
CHARACTERISTIC TRENDS			
Management System	State management	→	Community management
Land Tenure System	State or Commons	→	Individual or Community
Policy/Laws	State policy/laws	→	Community by-laws
Resource Ownership	State owned	→	Community owned
Resource Users	Open access	→	Community regulated

Annex 3: Stages of Co-Management

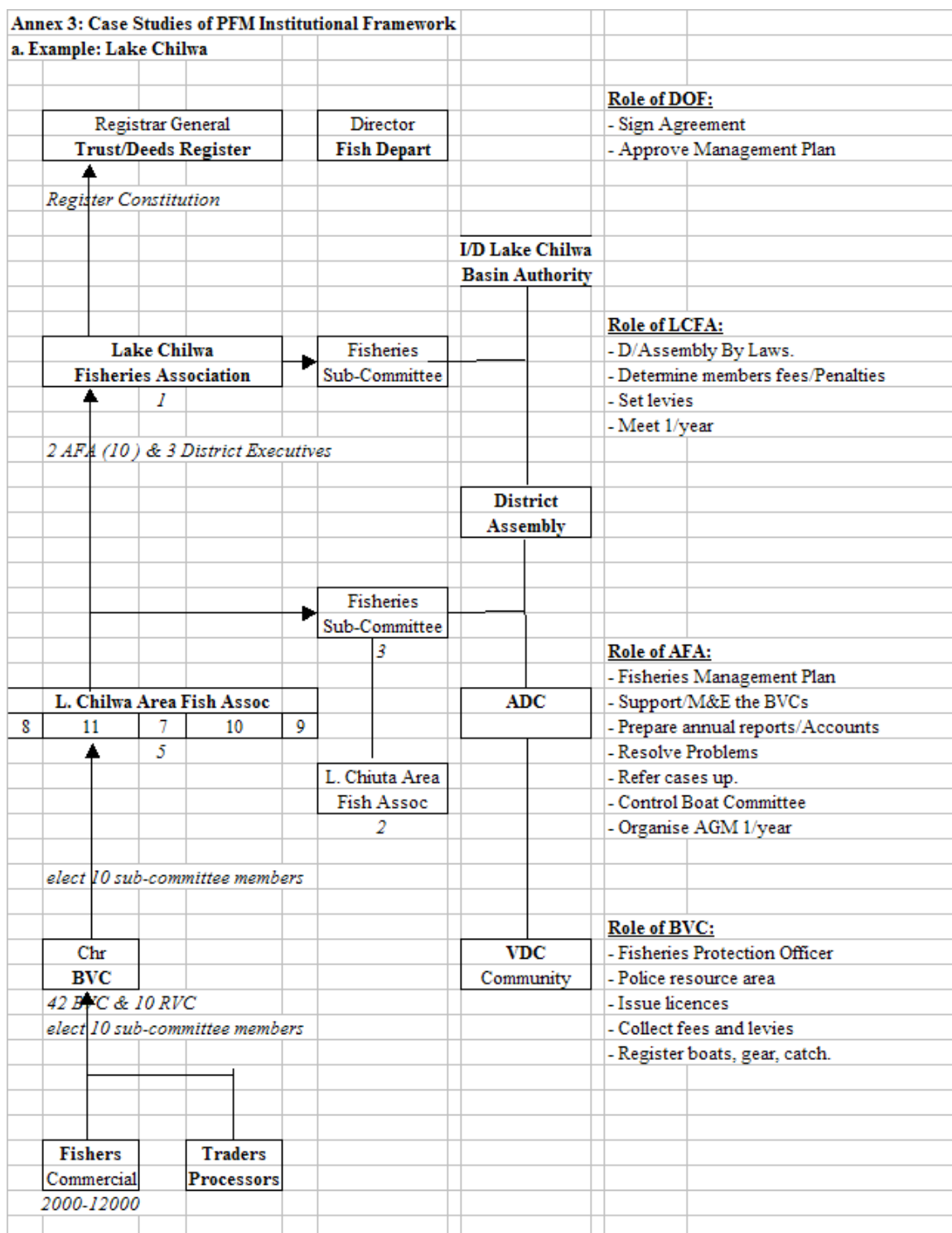


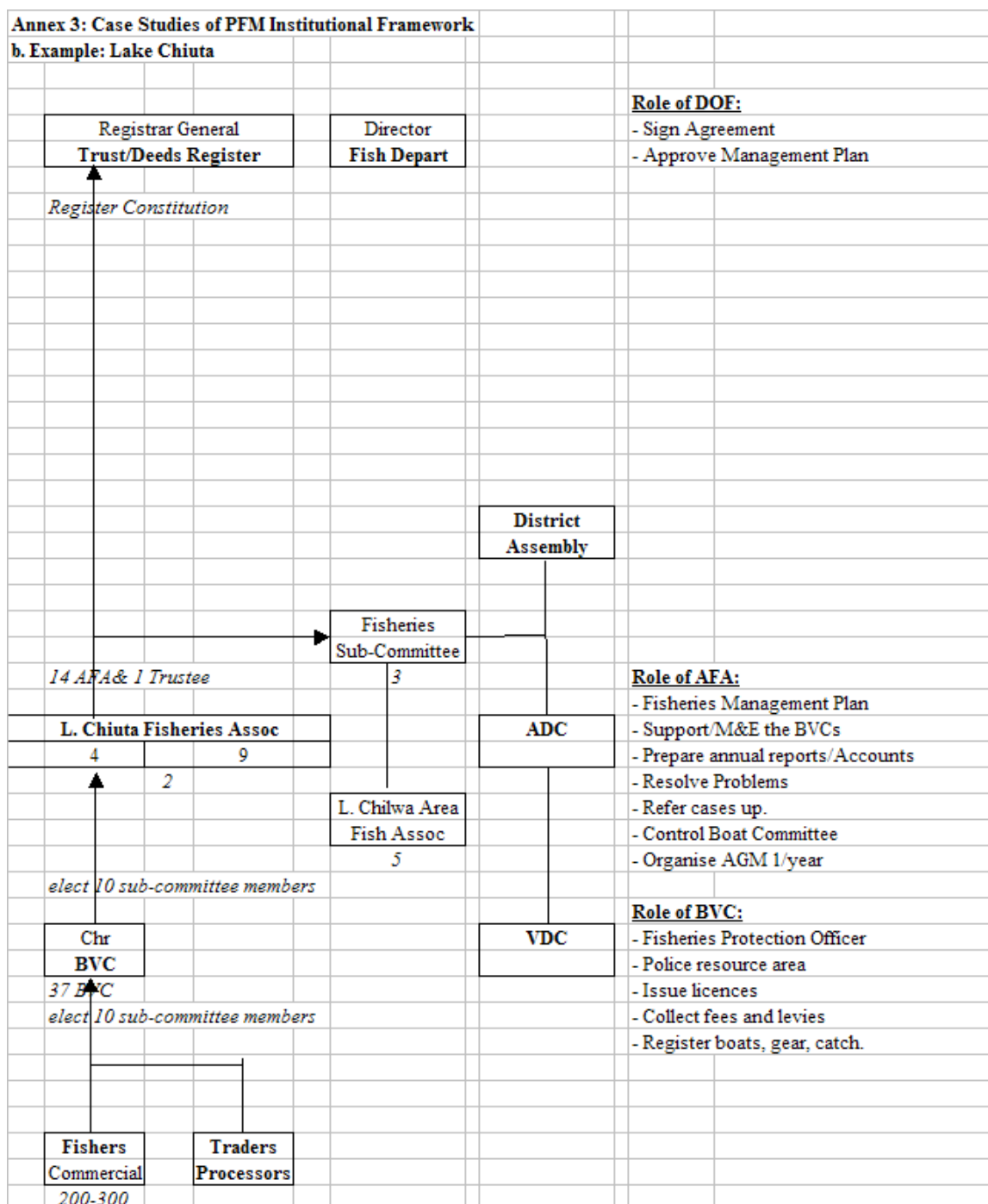
Attachment 4

Annex 5: Fisheries Devolution, CBNRM Benefit Stream and PFM Institutions.



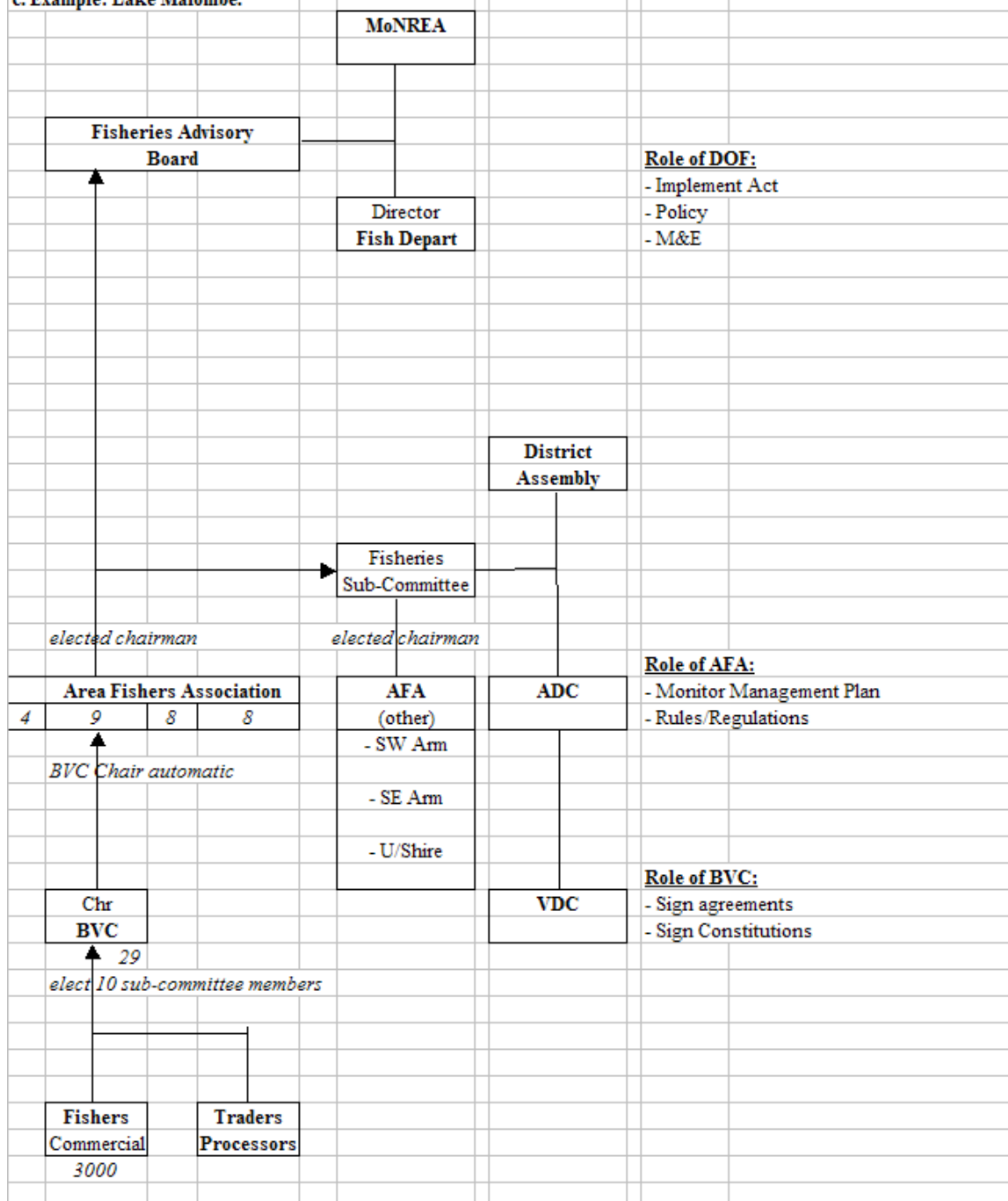
Attachment 5





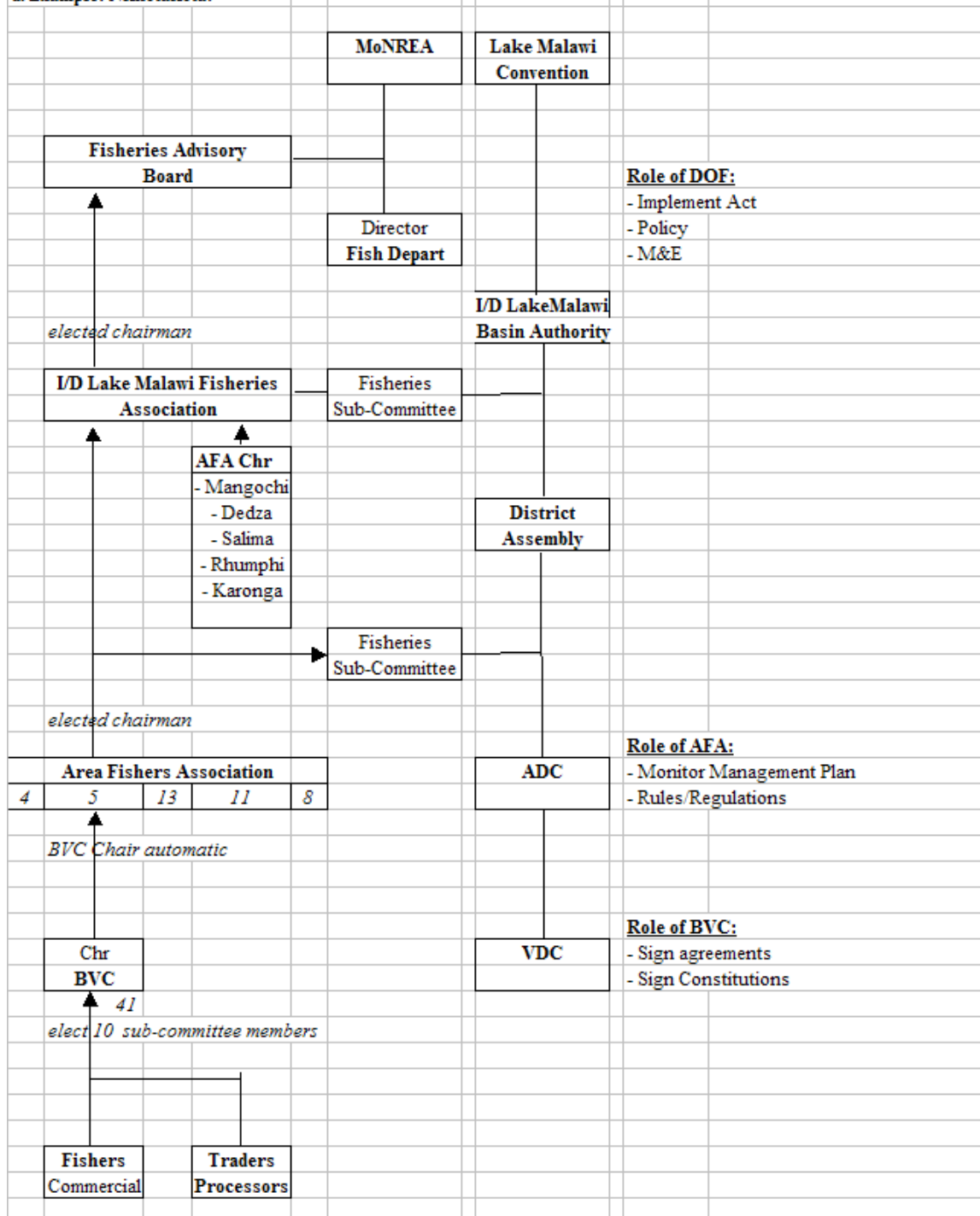
Annex 3: Case Studies of PFM Institutional Framework

c. Example: Lake Malombe.



Annex 3: Case Studies of PFM Institutional Framework

d. Example: Nkhotakota:



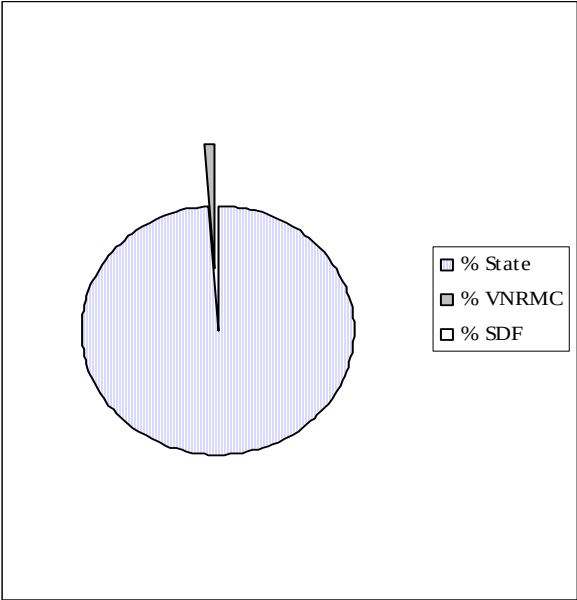
Attachment 6

Annex 5: Natural Resource Revenue Sharing Models: DOF vs. DNPW:

1. National Parks (DNPW):

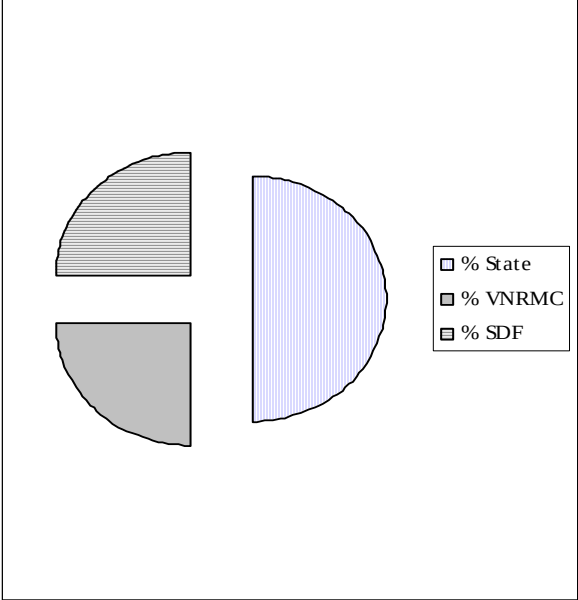
a. Current Situation:

% State	99	All revenue goes to Treasury
% VNRMC	1	
% SDF	0	No taxes. No Social Development Fund



b. Proposed Situation:

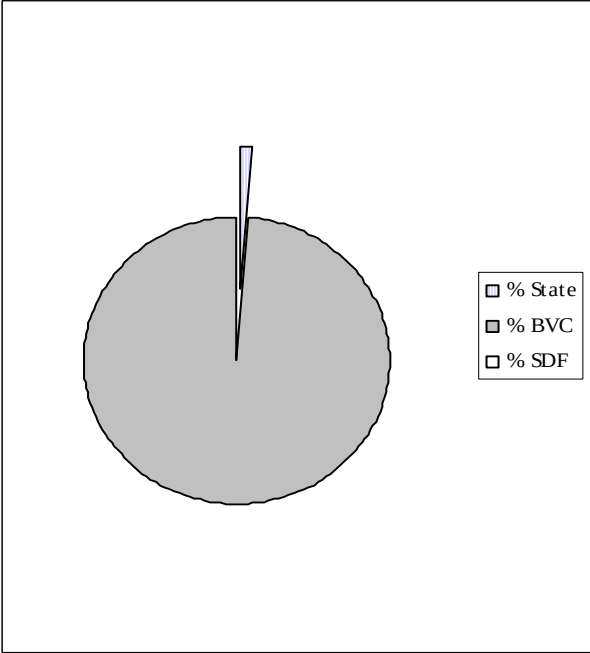
% State	50	
% VNRMC	25	} State to share 50 % with the community
% SDF	25	



2. Fisheries (DOF):

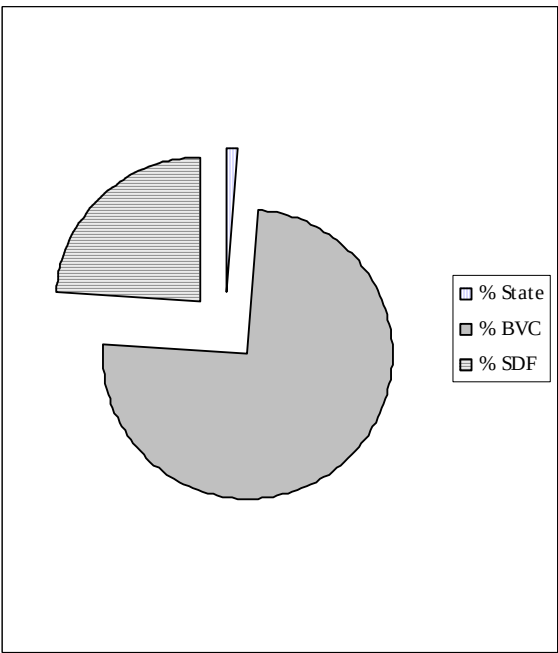
a. Current Situation:

% State	1	
% BVC	99	All resources go to fish industry
% SDF	0	The state collects no taxes



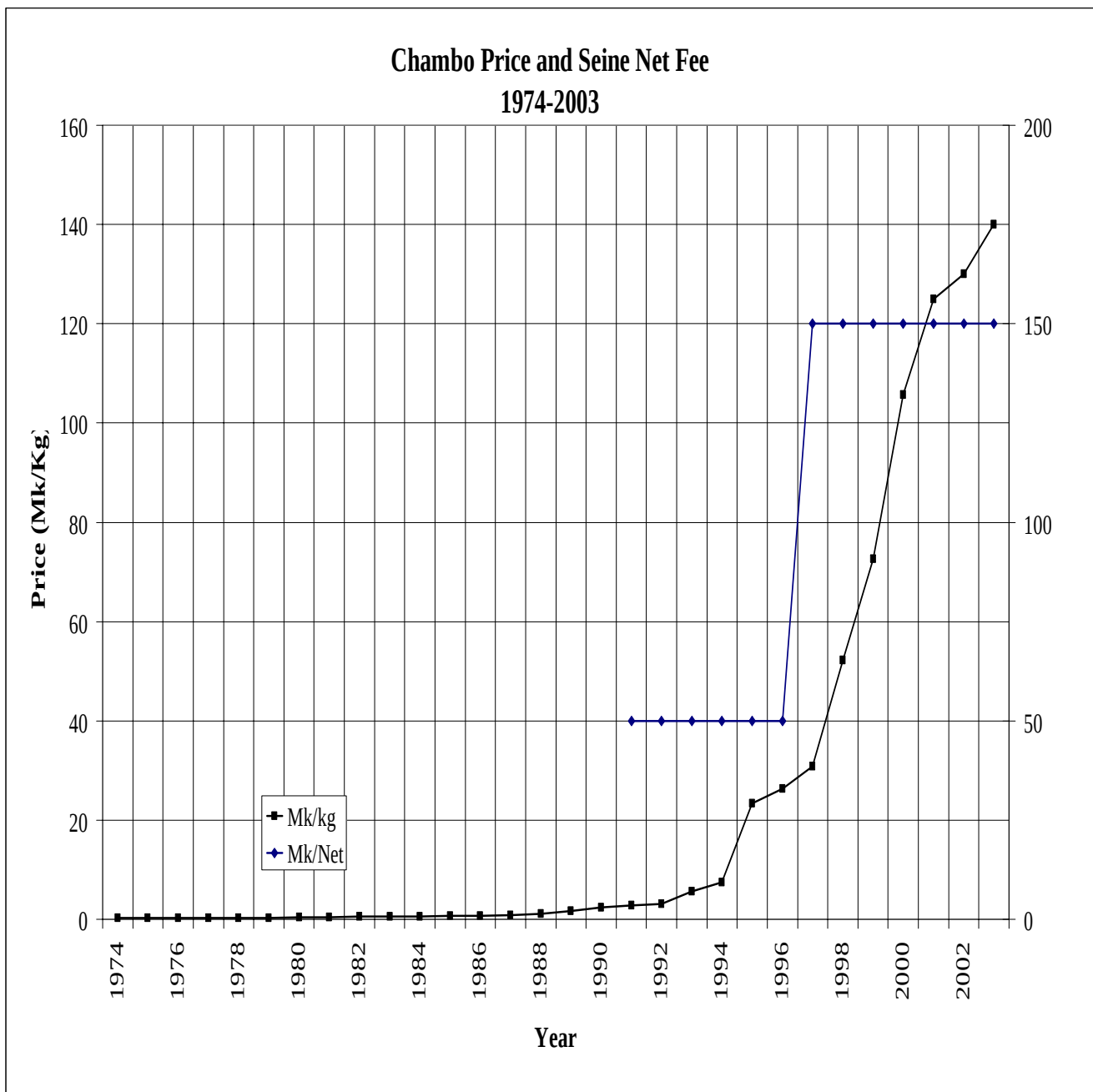
b. Proposed Situation:

% State	1	
% BVC	75	
% SDF	24	Tax revenue to Fish Fund



Attachment 7

Annex 6: Fresh Whole Chambo Prices vs. Chambo Seine Net License Fee: 1974-2003



Attachment 8

**LEGAL TOOL BOX
FOR PARTICIPATORY FISHERIES MANAGEMENT**

MALAWI

SECTION 2

**NATIONAL FISHERIES AND AQUACULTURE POLICY, 2001
Strategies, Supplements and Guidelines for PFM**

- Annex 1: Strategic Plan for HIV/AIDS Mainstreaming.
- Annex 2: Chambo Restoration Policy Supplement.
- Annex 3: Red Book Declaration of Endangered Fish Species.
- Annex 4: Environment Mitigation Protocols for Aquaculture.
- Annex 5: Participatory Fisheries Management Policy Supplement.

NATIONAL FISHERIES AND AQUACULTURE POLICY, 2001
Strategies, Supplements and Guidelines for PFM

MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS
DEPARTMENT OF FISHERIES

(A draft Cabinet Paper and Supplement to National Strategy for Sustainable Development)

Annex 8.1
Strategic Plan for HIV/AIDS Mainstreaming (SPHAM) for
Sustainable Development in Natural Resource Management

1. BACKGROUND

Malawi is currently in the midst of a humanitarian crisis. Access to food and natural resources for survival is at the heart of it. The recent famine of the 2001/02 season has implicated several underlying and overlapping factors in exacerbating the impact of the climatic stresses on the food crisis. Amongst these are poverty, poor soil fertility, decline in natural resources (i.e. forestry, fisheries and wildlife), and insecurity of tenure to land and natural resources and HIV/AIDS. Recent studies in SADC suggest that the impacts of HIV/AIDS on food security in the 2002 food emergency are strong and negative! These impacts are complex and require urgent and innovative responses.

HIV/AIDS is placing stress and an abnormal pressure on natural resource usage. Conversely, the degradation in the environment is exacerbating the spread of HIV/AIDS. To achieve sustainable development in line with commitments made at the World Summit in Johannesburg 2002, Malawi will have to mainstream HIV/AIDS in the National Strategy for Sustainable Development. This Paper therefore focuses on the Strategic Plan for HIV/AIDS Mainstreaming in NRM, establishing a government policy and stand, especially for participatory fisheries management in Malawi.

2. JUSTIFICATION

The extent of HIV/AIDS in Malawi can be summarized as follows:

- 26 % of urban populations are HIV/AIDS positive.
- 13 % of rural populations are HIV/AIDS positive.
- 16 % of Malawian's are HIV/AIDS positive.
- ... %/year is the rate of spread of HIV/AIDS and if not regulated, in years 25 % of the total population could become infected.
- .. % of Malawi's population died of HIV/AIDS in 2002.

The importance of the Malawi fishery can be summarized as:

- 550 qualified persons are employed by government to manage the fishery sector.
- 3 000 persons are involved in aquaculture.
- 50 000 persons are directly employed by the fishing sector.
- 250 000 livelihoods are inextricably linked to the fishery sector, involved in gear/boat manufacture, processing and trading.

- 1.5 million lives (assuming an average of 5 per household), 14 % of Malawians, depend on 300 000 people whose livelihoods and survival are dependant on the national fishery.
- 70 % of total animal protein was once derived from fish, but this contribution to food security, mental and developmental growth, and has now dropped by a half with likely deleterious consequences for the human immune system and resistance to cholera.
- 70-80 000 t/yr fish production was once derived from the fishery, but this has now declined to 45-60 000 t/yr.
- 14 kg/capita/yr, the 1970's national fish consumption has declined to a low 5 kg/capita/yr in 2002.
- 300-400 Beach Village Committees (BVC) have been established for participatory fisheries management, but they have been unable to stem the decline in the resource.

The perceived impact of HIV/AIDS on the fishery:

- 90-140 lives of government, fisheries sector staff (i.e. 16-26 % of 550) are likely HIV/AIDS positive.
- 40-50 000 lives in the fishery sector (i.e. 13-16 % of 300 000) are likely HIV/AIDS positive.
- 200-250 000 lives of dependents of the fishery sector (i.e. 13-16 % of 1.5 million) are likely HIV/AIDS positive.

The consequence of the above will be:

- Loss of staff and manpower loss due to illness attributable to HIV/AIDS is adversely affecting the ability and capacity of the Department of Fisheries to cater for the needs of the sector. The future attrition rate due to HIV/AIDS would severely deplete the government of skilled staff and would be expensive to replace in terms of pensions, and need for re-training of replacements.
- Mortality in the fishery sector from HIV/AIDS, will mean there will be a significant loss in skilled fishers, processors, traders and gear/boat manufacturers. This could have a knock on effect, contributing to a loss in production due to a decline in capacity, a loss in expertise and a heightened need and cost for additional training of new entrants.
- There could be a break down in law and order as persons who knowingly have HIV/AIDS, would develop a carefree attitude "live for today...not tomorrow!". This could escalate the illegal use of resources. Fish is especially prone to this kind of use as traditionally, in times of need (egg. Droughts) people turn to fishing).
- The HIV/AIDS attrition rate of fishers and the lost man-hours of labor due to illness, will lead to loss in income for the family. This would place additional burden on the living spouse or extended family, mainly women, with an increase in time spent catering for the sick, cost of home health care and care of orphans, etc. The living spouse will also incur extra labor time, to fetch extra water, fetch extra fuel wood and ultimately, left singularly to cultivate the family farms and gardens, with resultant loss in total household food production.
- Orphans and living spouses will generally turn to exploit natural resources for their needs and economy. This could lead to greater entrants into the fishery and to fuel wood or charcoal making as a livelihood. These entrants will be unskilled and unfamiliar with sustainable practices and would escalate the consumption rate of resources.
- The cost of funerals and cultural obligations associated with burial wakes will place greater demands on family expenses as well as natural resources. Demand on transport and fuel to attend funerals, demand on food and fish (in fishers communities) to feed

funeral goers and for wakes, extra fuel wood for cooking and for the night vigils, extra wood demand for coffins, natural resource damage in terms of the demands for additional funeral sites, etc.

3. STRATEGIC CHOICES

HIV/AIDS in Malawi has reached proportions where it is vital to act, and to act swiftly to suppress the spread of HIV/AIDS. In the fishery sector, the following strategic choices exist:

- a. Do nothing.
- b. HIV/AIDS is a health problem and that sector will deal with the issue.
- c. Introduce HIV/AIDS as a mainstream in the fisheries sector program (and other sectors) and create mass awareness and behavior change through the network of BVCs and fisheries extension staff.

Recognizing that HIV/AIDS preys on the cultural taboos that have become entrenched in peoples beliefs and behavior over sex, and that this is the worst enemy against the fight to control the spread of HIV/AIDS, mass awareness raising is required to change these cultural beliefs. Proposed is that if the Department of Fisheries were to adopt a behavior change initiative, the following strategic considerations should be taken into account:

- a. The 300-400 BVCs provide an ideal extension outreach focal point to access over 300 000 households, about 1.5 million people, 14 % of Malawi's population.
- b. Targeting fishing beaches social points such as the bars, fish markets, social meeting place of fishers, etc would provide a focus for awareness raising to change behavior.
- c. Almost all Malawians eat fish, fish markets and fish traders therefore could provide a social contact point where AIDS/HIV propaganda could be focused to raise awareness of almost every Malawian.

4. RECOMMENDATIONS

Suggested is that the Cabinet Committee should consider the following recommendations:

- a. HIV/AIDS should be included as a mainstream initiative in the government's fishery policy and should become one of the strategic objectives of participatory fisheries management. The 300-400 BVCs should be strategically chosen as a focal point for behavior change and awareness of HIV/AIDS.
- b. Fish landing beaches, should be targeted as focal areas for mass sensitization to HIV/AIDS, using fish processing areas, fish markets, beach bars and fishers social meeting spots as a focus for mass awareness.
- c. The Fisheries Department should produce manuals for extension staff, posters and promotional campaigns to distribute to BVCs and fish markets for mass awareness. Staff, BVCs and fish traders will need to be trained in the use of this material and how to conduct mass awareness campaigns.
- d. Fish traders should be armed with posters and HIV/AIDS awareness material to distribute widely where-ever fish are marketed, bars and restaurants.
- e. To fund the mainstreaming of HIV/AIDS, the National Aids Commission has pledged 2 % of the GDP for HIV/AIDS initiatives. Proposed is that as fisheries provides

livelihoods for 14 % of the population, the fisheries sector should be allocated 14 % of the 2 % allocation, or 0.3 % of the GDP for an HIV/AIDS campaign.

- f. Based on the Cabinet Committees acceptance of these strategies, the Fisheries Department, as part of the National Strategy for Sustainable Development, should develop and implement a Strategic Plan for HIV/AIDS Mainstreaming (SPHAM) into the sustainable management of the fisheries sector.
- g. Cabinet should encourage other sectors to adopt a similar thematic approach to stem the tide of HIV/AIDS.

Endorsed by the Cabinet Committee for Environment and Natural Resources on..... At
.....

NATIONAL FISHERIES AND AQUACULTURE POLICY, 2001
Strategies, Supplements and Guidelines for PFM

MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS
DEPARTMENT OF FISHERIES

(As approved by Cabinet Committee on Natural Resources and the Environment Meeting of
23.7.03 in Agricultural Conference Room)

Annex 8.2

CHAMBO RESTORATION POLICY

1. GUIDING PRINCIPLE

To better manage the fishery exclusive access rights need to be given to “traditional user groups”. This will require clear guidelines of co-management, enforcement and user rights to protect the welfare of those who derive a livelihood and subsist from fishing. The fishery shall be transformed from “open access” to restricted, and limited access. Beach Village Committees shall become a legal entity, empowered to manage designated areas and a collective, co-operative structure or association established for enforcement and policy lobby. Clear, District Assembly by laws shall be established for the operation of the user groups and to regulate the fishery according to biological principles and under the framework of the laws of Malawi. This shall be implemented under decentralization through the Assemblies and in co-management with the Fisheries Department. Protection of Chambo breeding areas, enhancement through community culture based fisheries and commercial aquaculture should be promoted to supplement the fishery. In addition, to reduce pressure on the resource, alternative livelihood strategies should be engaged for fishers to entice them to move away from fishing as a poverty buffer, and build capacity so that they enter other income generating activities.

2. GOALS

The Goals of this Chambo Policy shall be by 2015:

- Through fishery co-management and culture based fisheries enhancement, attain a net increase in Chambo yield of 4 000 t/yr.
- Through commercial aquaculture, attain a net increase in Chambo production of 5 000 t/yr.

3. OBJECTIVE

To restore the Chambo fishery of Malawi to its maximum sustainable yield by 2015 and to supplement food security needs by enhancing Chambo production through aquaculture.

4. STRATEGIES

- The **Chambo Restoration Strategy Plan 2002-2015** shall become instituted as part of the Department of Fisheries Sector Investment Program, included in the National Strategy for Sustainable Development and in the Poverty Reduction Strategy Program.

- **Exclusive fishing zones shall be declared** whereby **resident fishing** communities will have exclusive fishing access rights on leasehold, under the Land Act to “land covered by water” and shall, by legislation be empowered to restrict entry, to limit effort and to protect these areas. They shall operate in co-management with the Fisheries Department, calling upon enforcement from the District Assemblies and Fisheries Management Authorities according to by laws embedded in the national Fisheries Policy and Act. Guidelines shall be issued that clearly benefit the masses, protecting the rights of poor, subsistence fishers from large scale, unscrupulous commercial operators.
- Sanctuaries or **protected areas** shall be established to preserve important Chambo breeding and nursery grounds. Artificial reefs will be promoted as “silent policemen” and as community culture based fish enhancement devices. Private sector initiatives should be encouraged provided they do not impinge on the welfare of the poorer user groups.
- An enabling Aquaculture Policy with supportive fiscal incentives shall be established to facilitate **investment in commercial aquaculture**, offering the same tax-free status as the industrial fishery. Private sector initiatives should be encouraged.
- **Development partners** to help put the enabling policies and laws in place and for operational support to enforce the law should be identified from those who pledged support at the World Summit to fish restoration programs.
- **To finance** the Chambo Strategy, a review shall be undertaken of the fish license fees system to institute a fair “user pays principles” price scheme. Revenue shall accrue to the Fisheries Fund for implementation of the Chambo Strategy. In addition, the Environment Fund shall be established based on “polluter pays principles”. In part, some funds shall be earmarked for implementing the Chambo Restoration Strategy.

Signed:

Chairman,
Cabinet Committee of Natural Resources and Environmental Affairs

NATIONAL FISHERIES AND AQUACULTURE POLICY, 2001
Strategies, Supplements and Guidelines for PFM

MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS
DEPARTMENT OF FISHERIES

(A draft Cabinet Paper)

Annex 8.3
RED BOOK DECLARATION
OF ENDANGERED FISH SPECIES IN MALAWI

In pursuance of Section 9 (d) of the Fisheries Conservation and Management Act, 1997, the Minister may provide for the declaration of endangered species and their management.

1. BACKGROUND

The IUCN has established a Red Book with 9 categories to describe the state of a particular species and to assess whether it is under threat from human intervention.

According to this categorization, Malawi is in the unique position that it has over 14 % of the World's total bio-diversity in fresh water fish species. Malawi is therefore charged with a national heritage of global significance and importance that requires protection. More important, 90 % of the 800 species of fish that occur in the waters of Malawi, are unique, and endemic to Malawi. In IUCN Red Book terms, as these fish occur in no other location world wide, they are all considered as "vulnerable". Any threats to the environment of Lake Malawi could contribute to the eradication of fish that occur nowhere else in the world.

The fish resources of Malawi, are therefore not only important to food security, mental and developmental growth, in that they provide 70 % of the animal protein for the population of Malawi, but fish are also significant to the global arena in that Malawi has the highest fish bio-diversity of any country.

The IUCN Red Book therefore is one way that Malawi can draw attention of the world to the plight of Malawi fish which are considered to be threatened and endangered.

2. RED BOOK CLASSIFICATION

Applying the IUCN rules of classification in an assessment of the fish species of Malawi, the Department of Fisheries has come up with the following categorization:

Endangered: The following 11 species are considered as under extreme pressure from use and unless something is done to regulate the unsustainable rate of use is mitigated, the following could diminish to a level where the stocks would be unable to recover.

- *Buccochromis spectabilis*
- *Corematodus taenatus*
- *Cytocara moori*
- *Docimodus johnstonii*
- *Labeo mesops*.

- *Opsaridium microlepis* (Mpasa).
- *Opsaridium microcephallum* (Sanjika).
- *Oreochromis shiranus chilwae*.
- *Oreochromis squamipinnis* (Chambo).
- *Oreochromis karongae* (Chambo).
- *Oreochromis lidole* (Chambo).

3. STRATEGIC CHOICES

The recently approved Chambo Restoration Strategic Plan advocated that Malawi would have to make hard choices to regulate that the Chambo were not overfished. The same strategies could apply to other threatened species, notably:

- a. Empower BVCs with exclusive fishing rights to lease from the State a fishery and to manage it sustainably, enforcing BVC rules and regulations.
- b. Protected areas should be declared to protect breeding or nursery areas, or areas of endangered species.
- c. Sanctuaries should be established to protect threatened stocks.
- d. Artificial reefs shall be used as silent policemen to protect threatened stocks and as enhancement devices.

4. RECOMMENDATIONS

The Cabinet Committee on Natural Resources and Environment having assessed the above, finds that the 11 listed species are becoming endangered and perhaps threatened by extinction. Given, the importance of these fish to the food security of Malawi and their international significance to global bio-diversity, the CCNRE hereby mandates the Director of Fisheries to:

1. To declare the above species as endangered and to register them with the IUCN Red Data Book.
2. Take whatever action is required to protect those species which appear on the list above.
3. To establish and present to the CCNRE areas to be declared as protected sites where fishing shall be banned by enforcement of the law to preserve known habitats, breeding, and feeding or nursery areas of the above species.
4. To widely create awareness of the above and the threatened nature, mobilizing BVCs to understand that unless catches are regulated, the above species could be driven to extinction.

.....
Signed, Chairman, Cabinet Committee on Natural Resources and Environment



Government of Malawi

**MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS
DEPARTMENT OF FISHERIES**

Annex 4: Environmental Protocols for Aquaculture

(A supplement to the Fisheries Conservation and Management Act No 25 of 1997 (Published 28.11.97))

a. EIA Checklist for Aquaculture

Project Environ										
Category:										
INITIAL ENVIRONMENTAL SCREENING						POTENTIAL	ENVIRONMENTAL MANAGEMENT PLAN			
SECTOR	ACTIONS AFFECTING ENVIRONMENT	DEGREE OF IMPACT					ENVIRONMENTAL IMPACT	RECOMMENDED MITIGATING MEASURES (To be effected during the project)		
	CATEGORY OF POSSIBLE IMPACT	Positive	Nil	Negative						
		Maj/Min	Nil	Min/Maj						
Renewable Resource Use	A. Environmental Problems due to Site Selection: - Conflict with other site uses. - Pollution hazard due to nearby pollution emission facility. - Remoteness from market/need for refrigerated system - Requirement for steady availability of fresh water. - High costs for imported food. - Water quality and quantity. - Flood, Hurricane and typhoon hazards. - Labour supply problem, including skilled labour needs. - Local soils properties - Resettlement - Availability of species juvenile stocks.									
Destruction Natural Resources	- Increased erosion due pond construction, dredge and filling. - Increase acreage under cultivation - Increase water consumption - Increase waste water flow - Higher rate of tree felling - Changes to natural vegetation/forest, endanger species. - Change areas with rare animal/plant life, endanger species. - Affect areas of historical remains/landscape - Affect/obstruct traditional resource management - Increase pressure on natural resource base - Change living conditions placing strain on natural resources - Reduction of aquatic biodiversity.									
Fishing and Farming Practices	- Increase overfishing - Increase exploitation of a sensitive ecosystem - Increase demand for clean water or energy - Introduce exotic species - Disease hazards. - Genetic quality of stocks. - Influence ecosystem through use of fertiliser - Spread pesticides harmful to health and environment - Lead to destruction of fishes natural habitat - Lead to unwanted growth of algae and plants - Stimulate soil nutrient exhaustion or degradation - Infringe on traditional rights (fishing/land) - Create risk of spread of water borne diseases - Sanitation disease hazards. - Security from poachers. - Saleability of product. - Middlemen problems. - Socio-economic Impact - Permit system									

Exploitation of Water Resources	- Flood areas of human, agriculture, natural or historic value - Change rivers/natural water courses affecting environment - Reduce the flow of nutrients to agriculture/fishing - Lead to water logging, salinization or acidification - Lead to conflicts on property use and access - Prevent more appropriate use of the water resource							
Infrastructure Construction	- High rates of consumption of scarce material resources - Create barriers to movement of wildlife - Increase access to vulnerable/conservation worthy resources - Environmentally unattractive or risky activities							
Industry	- Substantial emissions to soil, water, air - Substantial liquid effluent (wastewater, domestic, by-product) - Substantial solid effluents - Introduce immigrant labour changing social fabric - Create risk of accidents - Increase use of renewable energy and materials/resources - Human health risks, including occupational hazards - Use of hazardous chemicals, toxins, fuels, etc							
Social Factors	- Increase in affluent/poor income gap - Promote rural to urban migration - Inequality in gender opportunities							

NOTES: Adapted from DoD environmental guidelines and DoD/DoD Education Training on Sustainability and the Project Cycle. Incorporates World Bank EIA Checklist.



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b. Environment Assessment Aquaculture Project Cycle

PROJECT CYCLE Activity	PROPOSED ENVIRONMENTAL CONCERNS	PROJECT STATUS AT EVALUATION	RECOMMENDED MITIGATING MEASURES
Project Identification/Project Proposal			
Overall Policy Check	- Verify that fisheries environmental concerns are incorporated in recipient governments management policies.		
	- Is there check and balance between incentives and legislation for sustainable use of the resource.		
	- Establish the priorities for use of resources (ie. fisheries or aquaculture) social, economic or political.		
	- Was environmental sustainability incorporated into the "Projects Immediate Objectives".		
	- Were user rights (or international agreements) established on use of shared wetlands/marine/lake resources/ponds.		
	- Was environmental policing and cooperation in the Project considered.		
Initial Environment Screening:	- Was the Project Proposal classified by environmental category (ie. A, B or C).		
	- If deleterious impact (ie. "A"), was an alternative selected or remedial action taken.		
	- Was the Project strategy based on an integrated system management approach.		
	- Was comprehensive ecological understanding and analysis of interaction with other sectors and other Fisheries Projects (ie. threats from other environmental factors) assessed		
Pre-Appraisal/Feasibility			
Environment Screening/ Assessment	- Was a review carried out justifying the categorization.		
	- Was the data set adequate.		
	- If Category A, was TOR for full scale EA prepared at feasibility.		
	- Was EA Report prepared at feasibility.		
	- Was EA Report prepared before Appraisal including a set of recommendations for dealing with environmental impacts and Project Document modified accordingly to include environmental management strategy.		
	- If Category B, was TOR for partial EA prepared at feasibility.		
	- Did EA include selective impact assessment with integration of relevant environmental mitigating measures and/or changes to the Proposal.		
	- Did Project Document preparation include environmental, economic and social sustainability.		
Institutional Capacity:	- Was the environmental awareness capacity of Project Authority (ie. Government and Donor Project staff) and neighbour (ie. If shared resource) assessed?		
	- Was the need for Fisheries EA "competency based training" incorporated in Project Documents.		
	- Were the tools to be applied for Fisheries EA documented and included in TOR of Appraisal Team.		
	- Were the role of women in project activities considered.		
	- Were gender issues addressed.		

Appraisal:			
Project Appraisal Report:	- Were environmental considerations integrated into Project strategy or independent environmental strategy formulated.		
	- Were benefits and risks evaluated with attention to "upstream and downstream effects" including trans-boundary and time lag.		
	- Were target groups defined and peoples participation involved and their interests taken into consideration in appraisal.		
Institutional Strengthening/	- Were the country institutions involved at appraisal.		
Capacity Building:	- Were their needs evaluated and HRD evaluated.		
	- Did recommendations include capacity strengthening to make environmental measures effective.		
	- Were the recipient country authorities (non-fisheries) for environmental protection involved.		
	- Did the country authorities approve the environmental measures, training needs, guidelines and monitoring procedures.		
	- Was an environmental coordination body established.		
	- Was EA included in the decision-making and Project adjustment mechanisms of the Project.		
Project Implementation:			
Project level	- Were Government and Donor policies, environmental objectives and concerns communicated to all parties, including fisheries extension workers and target group.		
	- Were pre-intervention baseline studies (ie. Biological, social and economic) carried out for EIA with follow-up monitoring of environmental impact during (and after Project) period.		
	- Did this involve a participatory approach.		
	- Were training needs assessment in fishery related EIA carried out at all levels with inclusion of findings in TOT and extension programmes.		
	- Were sustainable management guidelines and control measures formulated taking into account socio-cultural traditions and incorporated into training materials.		
	- Did the Project generate a management information system (MIS) for statistical data for stock assessment?		
	- Did the project research carrying capacity, assess effects of Project, effects of pollutants, etc to formulate sound management models, control measures and legislation.		
	- Did the Project research better methods (environmentally friendly) to improve production.		
	- Were the roles of all parties clarified with respect to EA and appropriate job descriptions issued, coordination meetings organized and recommendations followed-up.		
	- Were the roles of all parties clarified with respect to EA and appropriate job descriptions issued, coordination meetings organized and recommendations followed-up.		
Donor Monitoring & Evaluation:	- Was the EA role of the Project Manager and desk officer of the Embassy clarified.		
	- Was EA training given and awareness raised with respect to monitoring Project performance, review progress and management of the environmental impacts of fisheries Projects.		
	- Were the guidelines for environmental monitoring (EM) established, staff trained and rules applied.		
	- Did Project Progress Reports include chapters on efficiency of protection measures, identifying unforeseen impacts and recommend remedial action.		

Project Reviews/Evaluation:			
Project Period:	- Did environmental components merit special scrutiny during routine supervision visits, Mid-term and End-term Reviews.		
	- Included should be technical assessment as well as review of strategy or plans for dealing with impacts, including organizational structures and responsibilities.		
	- Was monitoring and evaluation timely from environmental perspective.		
Post Project:	- Were Project achievements/failures publicized through international peer reviewed publications or conferences.		
	- Were the "lessons learnt" passed on in training programmes at all levels and documented in Donor institutional memory.		



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c. Preliminary Screening Process for Fish Species Introductions

Sl no	Review and Decision Model	Response to Questions					
		1	2	3	4	5	X
		No	Unlikely	Possibly	Probably	Yes	Don't know
	<u>a. Review Level I:</u>						
1	Does the entity which proposes the importation have valid reasons and are there no native species which could serve the stated need? (Values of 2 or < 2 REJECT, values > 2 go to question 2)						
2	Is the organism endangered, threatened or rare in its native range and is it exploited from the wild or under culture? (Values of 2 or < 2 REJECT, values > 2 go to question 3)						
3	Are safeguards to guard against importation of diseases and parasites adequate? (Values of 2 or < 2 REJECT, values > 2 go to question 4)						
4	Would the introduction be confined to a closed system & are the steps identified to guard against accidental escape adequate? (Values of 3 or > 3 APPROVE, values < 3 go to question 5)						
	<u>b. Review Level II:</u>						
5	Would the organism be unable to establish a self-sustaining population in the range of habitats in which its introduced? (Values of 3 or > 3 APPROVE, values < 3 go to question 6) (If the answer is "don't know", research should be conducted)						
	<u>c. Review Level III:</u>						
6	Would the organism have mostly positive ecological impacts? (Values of 2 or < 2 REJECT, if < 3 but > 2 go to question 8, if values 3 or > 3 go to question 7) (Detailed literature review/species synopsis required)						
7	Would most consequences of the introduction be beneficial to humans? (Values of 2 or < 2 REJECT, if < 3 but > 2 go to question 8, if values 3 or > 3, APPROVE)						
	<u>d. Review Level IV:</u>						
8	Is the data base adequate to develop a complete species synopsis? (Value < 3, conduct detailed literature review and proceed question 9 if values of 3 or > 3, go to question 10)						
9	Does the data base indicate desirability for introduction? (Values of 2 or < 2 REJECT, if < 3 but > 2 go to question 11, if values 3 or > 3, go to question 10)						
10	Would benefits exceed the risks? (Values of 2 or < 2 REJECT, if 3 or > 3 APPROVE)						
	<u>e. Review Level V:</u>						
11	If data is not adequate, conduct research focused on potential impact on indigenous species and habitats conducted under controlled conditions. (Repeat question 9. If values of < 3 and > 2 are obtained, research should be re-peated)						



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d. List of Prohibited and Acceptable Fish Species for Introductions

(Source: Adapted from Welcomme 1988)

Species	Species Classification		
	Pests	Mixed Feelings	Beneficial
<i>Alburnus alburnus</i>	X		
<i>Anguilla anguilla</i>			X
<i>Anguilla japonica</i>			X
<i>Aristichthys nobilis</i>			X
<i>Astatoreochromis alluaudi</i>			X
<i>Barbus javanicus</i>			X
<i>Blicca bjoerkna</i>	X		
<i>Carassius auratus</i>		X	X
<i>Catla catla</i>			X
<i>Cichla ocellaris</i>		X	
<i>Clarias batrachus</i>	X		
<i>Colossoma macropomum</i>			X
<i>Coregonus lavaretus</i>			X
<i>Ctenopharyngodon idella</i>		X	
<i>Cyprinus carpio</i>		X	
<i>Dorosoma petenense</i>			X
<i>Eriocheir sinensis</i>	X		
<i>Esox lucius</i>		X	
<i>Gambusia affinis</i>		X	
<i>Hemibarbus maculatus</i>	X		
<i>Hemiculter eigenmanni</i>	X		
<i>Hemiculter leuciscus</i>	X		
<i>Heterotis niloticus</i>			X
<i>Hypseleotris swinhonis</i>	X		
<i>Hypophthalmichthys molitrix</i>			X
<i>Ictalurus melas</i>	X		
<i>Ictalurus nebulosus</i>	X		
<i>Ictalurus punctatus</i>			X
<i>Labeo rohita</i>			X
<i>Lates niloticus</i>	X		
<i>Lepomis auritus</i>	X		
<i>Lepomis gibbosus</i>	X		
<i>Lepomis macrochirus</i>	X		
<i>Limnothrissa miodon</i>			X
<i>Macrobrachium rosenbergii</i>			X
<i>Micropterus salmoides</i>		X	
<i>Mylopharyngodon aetiops</i>			X
<i>Mylopharyngodon piceus</i>			X
<i>Odontesthes bonariensis</i>		X	
<i>Opsariichthys uncirostris</i>	X		
<i>Orconectes limosus</i>	X		
<i>Oreochromis aureus</i>			X
<i>Oreochromis esculentus</i>			X
<i>Oreochromis niloticus</i>		X	X
<i>Oreochromis mossambicus</i>	X		
<i>Pcifastacus leniusculus</i>			X
<i>Pecottus glehni</i>	X		
<i>Perca fluviatilis</i>		X	
<i>Poecilia latipinna</i>			
<i>Poecilia reticulata</i>		X	
<i>Procambarus clarkii</i>		X	
<i>Pseudogobio rivulatus</i>	X		

<i>Pseudorasbora parva</i>	X		
<i>Rhinogobius similis</i>	X		
<i>Rutilus rutilus</i>	X		
<i>Salmo gairdneri</i>		X	
<i>Salmo trutta</i>		X	
<i>Scardinius erythrophthalmus</i>	X		
<i>Serassalumus humeralis</i>	X		
<i>Stizostedion lucioperca</i>		X	
<i>Trichogaster pectoralis</i>			X
<i>Tilapia rendalli</i>		X	
<i>Tilapia zillii</i>		X	

Pests: Based on previous experiences, not to be introduced under any circumstances

Mixed Feelings: Introduction may be considered only after rigorous scrutiny.

Beneficial: May be considered as potential candidates for introduction.

Attachment 9



Government of Malawi

**MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS
DEPARTMENT OF FISHERIES**

Annex 1:

(A supplement to the National Fisheries Policy 2001)

Devolution of National Fisheries and Aquaculture Policy To Assemblies

Component Function	Narrative Description	Verifiable Indicators (ie. Tools, instruments, etc)	Devolved Respons		
			HQ	D/A	BVC
Mission Statement	1 To provide framework conditions & services to the fish industry to satisfy the demand for fish and increase incomes of people dependent on Fish				
Goal	1 To maximize sustainable yield from national waters, improve efficiency of exploitation, processing and marketing, promote investment in fishing, fish farming & aquatic resources & protect endemic fish. 2 To protect fish resources through research & control measures.				
Objective	1 Local communities and private sector supported thru extension 2 Information for management & investment provided thru research. 3 Sustainable exploitation thru co-management/PFM. 4 Fish supply increased thru fish farming. 5 DOF & community capacity developed thru training. 6 Enforcement thru DOF inspection & co-management authorities 7 Biodiversity maintained in rivers & floodplains. 8 Quality fish processed & marketed locally & export. 9 Private sector investment promoted.				
Objective Activity/ Strategy	1 Local communities and private sector supported thru extension 1.1. Communities participate in fisheries & fish farming: - Fisheries management institutions formed (ie. BVC) - User groups trained in meetings, record keeping & management. - Fish farming introduced to rural communities.	- BVCs formed - BVCs trained - Rural Fish Farms		X X X	X X
	1.2. Efficiency & Effective Extension Service. - Annual work plan prepared & implemented. - M&E System for extension functional. - Clear rules & guidelines for use of equipment/transport - Co-operation with other extension services.	- DOF Annual Work Plan. - DOF Extension M&E System/Manual. - Equipment use manual/guidelines. - Thru DESCs.	X X X	X X X	
	1.3. Extension Messages Distributed - Needs based extension messages produced. - Extension Content Committee formed. - Different technology transfer methodologies tested. - Address environment issues. - Field trips for community capacity building. - Private sector investment supported.	- Extension manuals. - Extension Content Committee. - Research report. - Fisheries EIA standards guidelines. - Extension visits - Private Sector Investment	X X X X X	X X X	
	1.4. Functional DOF personnel development plans - Clear job descriptions. - Needs based in-service training, refresher & up-grade courses. - District & inter-departmental coordination improved. - Regular M&E meetings at national, regional & district.	- DOF Staff Manual. - In-service Course - DESCs & CBNRM Forum. - Meeting minutes.	X X X	 X X	 X
	1.5. Research community needs & indigenous knowledge. - Participatory community needs assessment. - Biannual regional reviews. - Annual meetings research, extension & community.	- Research needs published. - Biannual meeting minutes. - Annual meeting minutes.	X X X	 X X	X X

Objective Activity/ Strategy	2 Information for management & investment provided thru research.				
	2.1. Demand driven service research. - Stakeholder participate in research identification. - Regular reviews of research. - Regular meetings extension and industry - External peer review of research. - Research published.	- BVC indicate research needs - Departmental Research reviews - Meetings - Peer review panel. - Research documents.	X X X X X	X	X X
	2.2. Information on Status of Fisheries & aquatic weeds. - Regular M&E programmes (deep & shallow) - Status of fishery published. - Consult multi-users in Plan formulation - Annual update fisheries management plan include cross-sectoral. - Encourage cross-sectoral planning - Investigate appropriate management systems. - Communities collect data for management. - Regular update resource management plans. - Annual fisheries statistics reviewed & published annually. - Policy for Mbuna fishery - Register of fishers maintained. - M&E control aquatic weeds/hyacinth. - Multi-stakeholder control aquatic weeds/hyacinth. - Community control aquatic weeds/hyacinth.	- M&E reports. - Fisheries Chapter in DSOER and NSOER. - Consultative meetings - Fisheries Chapter in DEAP/NEAP/Master Plan. - Involve sectors/DESCs - Research Report. - BVC Reports. - L. Malawi/Chilwa/Malombe, etc management plans. - Annual fisheries statistics reports. - Mbuna policy document. - Register of BVCs. - Weed control strategy/Clean up - Multi-stakeholder campaign - Community campaign	X X X X X X X X X X X X X X	X X X X X X X X X X X X X X	X X X X X X X X X X X X X X
	2.3. Information on Under-exploited Stocks. - Research/survey under-utilised stocks. - Research appropriate technology for fishing, processing. - Research taxonomy & ecology. - Co-ordinate collaborative research. - Disseminate results.	- Under-exploited stocks reports. - Appropriate technology reports. - Taxonomy reports. - Research Committee/Council. - Resource Centre.	X X X X X	X	X
	2.4. Pollution Information System. - Aquatic ecology studies. - Soil erosion impact study. - National action on conventions.	- Survey reports. - Survey reports. - NEAPs.	X X X		
	2.5. SE Information about Communities. - Conduct baseline studies BVCs. - Market surveys. - IGAs identified. - Co-operate with NGOs & SE institutions.	- SE Profile/Inventory BVCs in DDP. - Market reports. - IGAs Manual for BVCs. - SE Research	X X X X	X X X X	X X X X
Objective Activity/ Strategy	3 Sustainable exploitation thru co-management/PFM.				
	3.1. Communities Active in resource management. - Identify key stakeholders - Form Fishery Management Authority (FMA) - Develop Capacity of FMA. - Harmonise Strategy with CBNRM groups & services - Establish & uphold FMA district boundaries. - Establish FMA Fishery Management Plans.	- Key Stakeholder registers - Local FMA (ie. BVC/Assoc formed) (Act 8.1) - FMA Trained - CBNRM Strategy. - Fisheries Management Agreement (Act 8.1)/By Laws - Local Fish Management Plan.	X X X X X X	X X X X X X	X X X X X X
	3.2. Provide Legal Instruments for FMA's. - Sign DOF/FMA Fisheries Management Agreements - Support FMA in enforcement, research & M&E - Revise Fishery Subsidiary Legislation.	- Fisheries Management Agreement Signed - CBNRM Enforcement - District Fishery By Laws/Guidelines (Act 9.2.c)	X X X	X X X	X X X

	3.3. Build DOF Capacity to M&E & Research Part Fish Mgmt (PFM). - M&E DOF and FMA enforcement. - Report corruption. - Investigate By Laws. - Monitor conflict areas	- Arrests by Assemblies - Corruption cases. - By Laws study. - Conflicts study.	X	X	X
Objective Activity/ Strategy	4 Fish supply increased thru fish farming. 4.1. Bio-technical research to solve problems. - Management strategies for hatchery & growth. - Protocols for conservation of bio-diversity. - Genetic selection to improve stocks. - Aquaculture & fisheries exchange information. - Protocols for integrated fish-agriculture.	- Fish Farming Manual. - FAO Code of Conduct. - Genetic breeding centre/programme. - See 1.5. - Integrated Fish-agriculture manual.	X		
	4.2. Appropriate Recommendations for Fish Farming. - Species agro-ecological zones identified. - Economic analysis of fish farm options. - Assess SE & productivity of small water bodies	- Species zonation map. - Fish Farming Models. - Small Water bodies manual	X		
	4.3. Encourage Adoption of Fish Farming. - Create awareness. - Establish Demonstration Farms. - Co-operate with Agriculture Extension. - Participatory extension promoted. - M&E Extension - Co-operate with research.	- National Fish Farming Campaign. - Demonstration integrated fish farms. - Harmonised Strategy. - Key Farmers/Field Days. . . - M&E Reports. - Research Strategy.	X	X	X
	5 DOF & community capacity developed thru training. 5.1. Demand Driven Courses - Training Needs of users - Tailor made courses for DOF and community.	- Training Plan. - Training Manual/Courses	X		
Objective Activity/ Strategy	5.2. National, Regional & International Co-operation. - Staff & Student exchange programmes. - Information exchange at all levels - Promote linkages. - Nat, Reg & Int meetings, seminars & workshops. - Assign counterparts to TA staff.	- Study tours (national/international) - Information leaflets - Nat, Reg & Int Network. - Workshops - Project Counterparts	X	X	X
	5.3. Appropriate Knowledge, Skills & Attitude of DOF. - Conduct pre-service courses. - Conduct in-service courses. - Evaluate & review training - Implement courses on actual issues.	- DOF staff trained - In-service DOF training - Evaluation Report - Needs based training	X	X	
	5.4. Maintain High Quality Training Standards. - Recruit TOT. - Train faculty staff. - Provide trainers incentives. - Improve access to up-dated information & knowledge. - Develop strategy for peer review & accreditation.	- Mpwapwe staffed - Mpwapwe staff trained - Regulations - Reference Library (at Mpwapwe) - Training Strategy.	X		
			X		

		- Aquaculture Licence (Pemit)(Act 20.1a)(Reg. 38.3)(Sched.17) - Aquaculture Code of Conduct (Act 61.2k)(Sched. 41) - Restrictions on size, gear, periods, etc (Reg. 33)(Sched. 9&12) - Fish/Gear Licence (Act 61.2e&f) - Fish Weirs Dimensions (Act 35.1) - Fish transfer permit (Aquaculture)(Act 41.2) - Magistrates Court Powers (Act 46) - Directors Powers (Act 50)(Reg. 48)(Sched. 19, 20&21) - Fish Access Agreements to foreign States (Act 52) - Fish import/Export Licence (Act 61.2j live n) - Fish Processing Licence (Act 61.2m) - Rules/Standards fish quality (Act 61.2o) - Fish Fees (Reg. 51)(Sched. 22).	X	X	
	- Harmonised Legal Instruments	- Local Government Act (By Laws) - Environment Management Act (SCEREAPs) - EIA Guidelines (Size pond)	X X X		X
	3 Funding in Place - Fisheries Fund supported by Parliament.	- Fisheries Fund (Act 22) - Fisheries Support Program (ie donor support) - Sustainable Funding (Environment Fund)	X X X	X X X	
	4 M&E in Place - M&E System - Information gathered at national, sectoral & local. - Institutionalised performance indicators.	- Fisheries MS Toolbox - Statistical Reports - Confidential Staff Performance Reports.	X X X	X	

KEY: Act = abstracts from the Act; Reg = abstracts from the 2000 Regulations,

Attachment 10

**MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS
DEPARTMENT OF FISHERIES**

MoNREA SECTOR DEVOLUTION PLAN & BUDGET (Draft May 2002)

FUNCTION	ACTIVITIES	OUTPUT	TIMEFRAME		RESPONSIBILITY	BUDGET (MK'000)
			START	END		
1. Fisheries policy and administration	Amend relevant sections of the policy and legislation to conform to decentralization process.	Fisheries policy, legislation and act reviewed.	July, 02	July, 03	Director of fisheries	10,000
	Supervise and facilitate fisheries sector's devolution.	Functions of the sector devolved	July, 02	July, 03	Director of Fisheries	2,000
	Strengthen the capacity of the Department of Fisheries at District level to carry out decentralized functions.	Capacity of the Department strengthened	July, 02	March, 04	Director of Fisheries	24,000
	Provide plant and equipment for the district offices such as vehicles and office equipment.	Plant and equipment provided	August, 02	August, 03	Director of Fisheries	13,000
	Hand over the devolved functions to the district offices.	Functions handed over	January, 04	December, 03	Director of Fisheries	1,000
2 Licensing and inspection of fishing gears	Carry out consultative meetings with the communities.	Consultative meetings carried out	August, 02	December, 02	District fisheries Officer	200
	Establish area management units.	Management units established and operational.	July, 02	December, 03	District Fisheries Officer	100
	Develop appropriate mechanisms to control fishing effort.	Mechanisms to control effort developed.	Sept, 02	January, 03	District Fisheries Officer	4,500
	Train the district fisheries personnel, assemblies and the community on inspection and licensing.	Personnel trained on licensing and inspection gears.	July, 02	July, 03	District Fisheries Officer	4,300
	Consult with fisheries management association on issues of licensing and inspection of gears.	Association consulted			District fisheries Officer	3,400

3. Fisheries Extension	Carry out the needs analysis pertaining information gaps, message development and dissemination, and approaches.	Needs gap analysis developed	July, 02	December , 02	District Fisheries Officer	3,500
	Carry out extension training needs assessment.	Extension training needs assessment done.	July, 02	Dec, 02	District Fisheries Officer	2,9000
	Develop district fisheries extension work plans.	District Work plans developed.	March, 03	May, 03	District Fisheries Officer	2,000
	In consultation with DoF, DAs and the communities develop appropriate extension messages and approaches.	Extension messages and approached developed.	March, 03	June, 03	District Fisheries Officer	,1200
	Enhance aquaculture production to supplement fish production from natural waters.	Aquaculture enhanced	July, 02	July, 04	District Fisheries Officer	25,000

Attachment 11



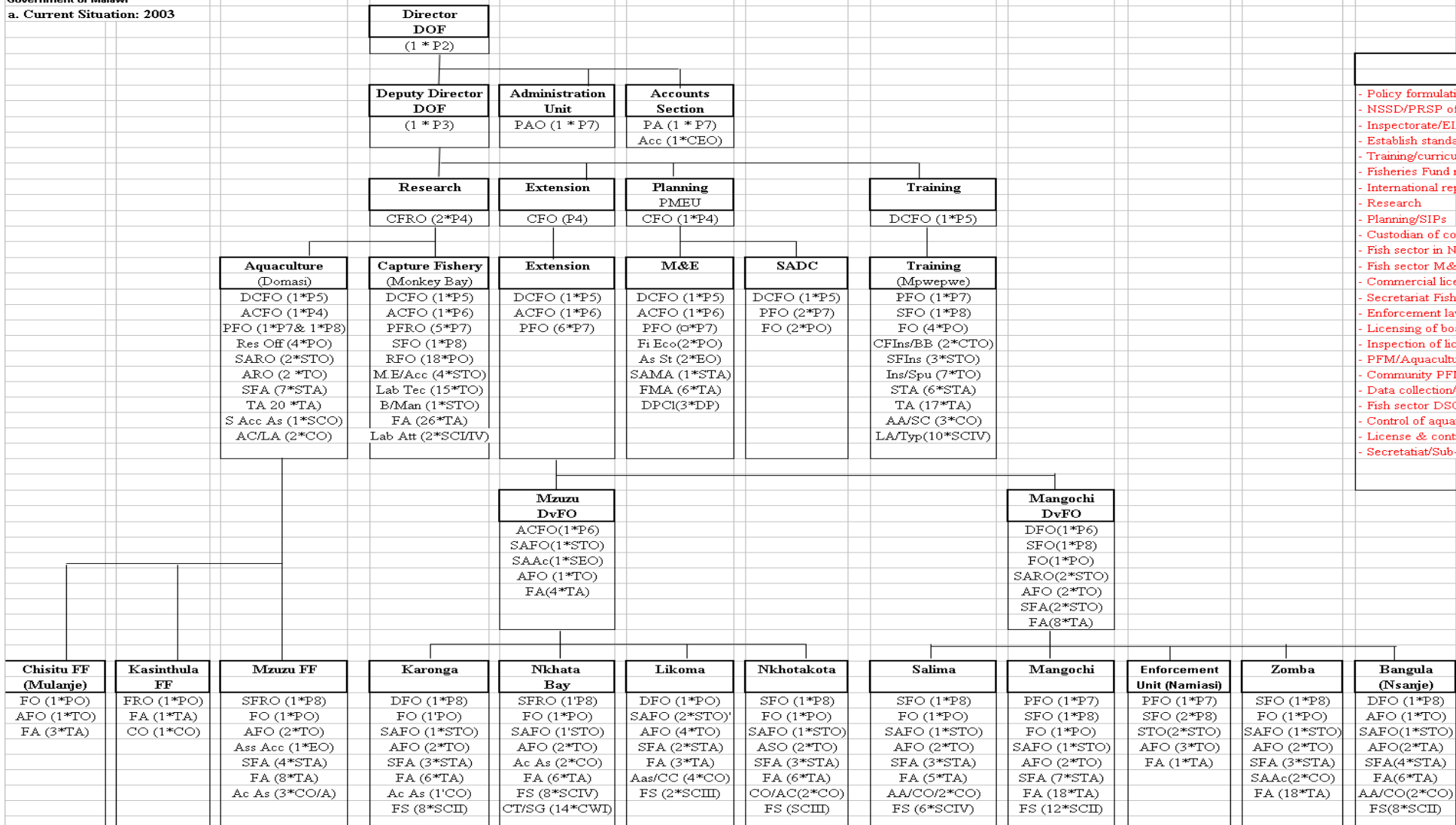
Government of Malawi

a. Current Situation: 2003

MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS
DEPARTMENT OF FISHERIES

Annex 3: Department of Fisheries Organizational Chart
(A supplement to the National Fisheries Policy 2001)

Functions Current
- Policy formulation/enforcement
- NSSD/PRSP of fisheries
- Inspectorate/EIA
- Establish standards
- Training/curriculum development
- Fisheries Fund management
- International representation
- Research
- Planning/SIPs
- Custodian of conventions
- Fish sector in NSOER/NEAP
- Fish sector M&E
- Commercial licenses
- Secretariat Fish Advisory Board
- Enforcement laws & by laws
- Licensing of boats, gear, BVC
- Inspection of license/gear
- PFM/Aquaculture extension
- Community PFM promoted
- Data collection/statistics reports
- Fish sector DSOER/DEAP/DDP
- Control of aquatic weeds
- License & control fish trade
- Secretariat/Sub-Comm Fish Assoc



b. Future Devolved Situation: July 2004											

Attachment 12

		 MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS DEPARTMENT OF FISHERIES Annex 4: Devolution of Staff																			
		Government of Malawi																			
		a. Current Situation: 2003.																			
SI no	Central & Assembly	Management						Technical/SMS/FLS					General/Support Staff							Total	
		S2A	S2	S3-4	S7-8	P2-3	P4-5	P6-8	PO-CT	STO-TO	C/EO	STA-T	P6-8	PO-CE	SEO-E	D4-8	SCO-CO	SCI-IV	Driver		
1. Status of Central																					
1	Management					2														2	
2	Research (Capt)																			0	
	Research (Aqua)																			0	
3	Extension							3												3	
4	Planning/M&E						1	1	1		1					1				5	
	Plan/Reg/Cord						2	2	1							1	1	2		9	
5	Training																			0	
6	Administration							2			3					7	6	10	5	33	
Central Total:		0	0	0	0	2	3	8	2	0	4	0	0	0	0	9	7	12	5	52	
2. Status of Assembly																					
1	Balaka																			0	
2	Balaka T/ship																			0	
3	Blantyre																			0	
4	Blantyre City																			0	
5	Chikwawa																			0	
	Kasinthula FF								1			1					1	3		6	
6	Chiradzulu																			0	
7	Chitipa																			0	
8	Dedza																			0	
9	Dedza T/ship																			0	
10	Dowa																			0	
11	Kasungu																			0	
12	Kazungu T/ship																			0	
13	Karonga							1	1	3		9				1	2	12	1	30	
14	Karonga T/ship																			0	
15	Likoma								1	6		4				1	4	2		18	
16	Lilongwe																			0	
17	Lilongwe City																			0	
18	Liwonde T/ship																			0	
19	Luchenza T/ship																			0	
20	Machinga																			0	
21	Mangochi							2	1	3		25				1	3	16	2	53	
	Monkey Bay						3	4	8	9	2	16				4	7	9	3	65	
	Namiasi									2						1	1	1		5	
	Mpwepwe CF							2	2	6	4					1	4	10	2	31	
22	Mangochi T/ship							2	1	3		10			2	1	3	3	2	27	
23	Mchinji																			0	
24	Mulanje																			0	
25	Mwanza																			0	
26	Mzimba																			0	
27	Mzuzu City							1		2	2	4				1	4	3	5	22	
	Mzuzu FF							1	1	1	1	12				1	4	8		29	
28	Nkhata Bay							1	1	3		9				1	2	8	1	26	
29	Nkhotakota							1	1	3		9				1	2	10	2	29	
30	Nsanje/Bangula							1		2		12				1	2	12		30	
31	Ntcheu																			0	
32	Ntchisi																			0	
33	Phalombe																			0	
34	Rumphi																			0	
	Chisitu FF								1	1		3				1		3		9	
35	Salima							1	1	3		8				1	2	10	1	27	
36	Salima T/ship																			0	
37	Thyolo																			0	
38	Zomba M/lity																			0	
	Domasi FF							3	4	4		22			2	2	4	5	2	48	
39	Zomba							1	1	3		9					2	12		28	
District Total:		0	0	0	0	0	3	21	25	54	9	153	0	0	4	19	47	127	21	483	
Grand Total 2003		0	0	0	0	2	6	29	27	54	13	153	0	0	4	28	54	139	26	535	

b. Future Situation: July 2004																				
SI no	Central & Assembly	Management						Technical/SMS/FLS				General/Support Staff								Total
		S2A	S2	S3-4	S7-8	P2-3	P4-5	P6-8	PO-CT	STO-TO	EO	STA-T	P6-8	PO-CE	SEO-E	D4-8	SCO-C	SCI-IV	Driver	
1. Status of Central																				
1	Management																			0
2	Research (Capt)																			0
	Research (Aqua)																			0
3	Extension																			0
4	Planning/M&E																			0
	Plan/Reg/Cord																			0
5	Training																			0
6	Administration																			0
	Central Total:	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
2. Status of Assembly																				
1	Balaka																			0
2	Balaka T/ship																			0
3	Blantyre																			0
4	Blantyre City																			0
5	Chikwawa																			0
	Kasinthula FF																			0
6	Chiradzulu																			0
7	Chitipa																			0
8	Dedza																			0
9	Dedza T/ship																			0
10	Dowa																			0
11	Kasungu																			0
12	Kazungu T/ship																			0
13	Karonga																			0
14	Karonga T/ship																			0
15	Likoma																			0
16	Lilongwe																			0
17	Lilongwe City																			0
18	Liwonde T/ship																			0
19	Luchenza T/ship																			0
20	Machinga																			0
21	Mangochi																			0
	Monkey Bay																			0
	Namiasi																			0
	Mpwepwe CF																			0
22	Mangochi T/ship																			0
23	Mchinji																			0
24	Mulanje																			0
25	Mwanza																			0
26	Mzimba																			0
27	Mzuzu City																			0
	Mzuzu FF																			0
28	Nkhata Bay																			0
29	Nkhotakota																			0
30	Nsanje/Bangula																			0
31	Ntcheu																			0
32	Ntchisi																			0
33	Phalombe																			0
34	Rumphi																			0
	Chisitu FF																			0
35	Salima																			0
36	Salima T/ship																			0
37	Thyolo																			0
38	Zomba M/lity																			0
	Domasi FF																			0
39	Zomba																			0
	District Total:	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
	Grand Total 2004-6:	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
	Increase 2004-6:	0	0	0	0	-2	-6	-29	-27	-54	-13	-153	0	0	-4	-28	-54	-139	-26	-53

Attachment 13

		 MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS DEPARTMENT OF FISHERIES Annex 5: Current and Devolved Asset Status (A supplement to the National Fisheries Policy 2001)																				
		Government of Malawi																				
a. Assets Current Situation: 2003.																						
SI no	Central & Assembly	Vehicles			Electronics						Furniture					Buildings			Total			
		4 WD	Other	M/cycle	Computer	Fax	TV/Video	P/Copier	Projector	GPS	Desk	Chair	Shelves	File Cab	AC	Office	Lab	House				
1. Status of Central																						
1	Management																			0		
2	Research (Capt)																			0		
	Research (Aqua)																			0		
3	Extension																			0		
4	Planning/M&E																			0		
	Plan/Reg/Cord																			0		
5	Training																			0		
6	Administration																			0		
	Central Total:	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0		
2. Status of Assembly																						
1	Balaka																			0		
2	Balaka T/ship																			0		
3	Blantyre																			0		
4	Blantyre City																			0		
5	Chikwawa																			0		
	Kasinthula FF																			0		
6	Chiradzulu																			0		
7	Chitipa																			0		
8	Dedza																			0		
9	Dedza T/ship																			0		
10	Dowa																			0		
11	Kasungu																			0		
12	Kazungu T/ship																			0		
13	Karonga																			0		
14	Karonga T/ship																			0		
15	Likoma																			0		
16	Lilongwe																			0		
17	Lilongwe City																			0		
18	Liwonde T/ship																			0		
19	Luchenza T/ship																			0		
20	Machinga																			0		
21	Mangochi																			0		
	Monkey Bay																			0		
	Namiasi																			0		
	Mpwepwe CF																			0		
22	Mangochi T/ship																			0		
23	Mchinji																			0		
24	Mulanje																			0		
25	Mwanza																			0		
26	Mzimba																			0		
27	Mzuzu City																			0		
	Mzuzu FF																			0		
28	Nkhata Bay																			0		
29	Nkhotakota																			0		
30	Nsanje/Bangula																			0		
31	Ntcheu																			0		
32	Ntchisi																			0		
33	Phalombe																			0		
34	Rumphi																			0		
	Chisitu FF																			0		
35	Salima																			0		
36	Salima T/ship																			0		
37	Thyolo																			0		
38	Zomba M/lity																			0		
	Domasi FF																			0		
39	Zomba																			0		
	District Total:	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0		
	Grand Total 2003	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0		

b. Assets Future Situation: July 2004																			
Sl no	Central & Assembly	Vehicles			Electronics						Furniture					Buildings			Total
		4 WD	Other	Motorcycle	Computer	Fax	TV/Video	P/Copier	Projector	GPS	Desk	Chair	Shelves	File Cab	AC	Office	Lab	House	
1. Status of Central																			
1	Management																		0
2	Research (Capt)																		0
	Research (Aqua)																		0
3	Extension																		0
4	Planning/M&E																		0
	Plan/Reg/Cord																		0
5	Training																		0
6	Administration																		0
	Central Total:	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
2. Status of Assembly																			
1	Balaka																		0
2	Balaka T/ship																		0
3	Blantyre																		0
4	Blantyre City																		0
5	Chikwawa																		0
	Kasinthula FF																		0
6	Chiradzulu																		0
7	Chitipa																		0
8	Dedza																		0
9	Dedza T/ship																		0
10	Dowa																		0
11	Kasungu																		0
12	Kazungu T/ship																		0
13	Karonga																		0
14	Karonga T/ship																		0
15	Likoma																		0
16	Lilongwe																		0
17	Lilongwe City																		0
18	Liwonde T/ship																		0
19	Luchenza T/ship																		0
20	Machinga																		0
21	Mangochi																		0
	Monkey Bay																		0
	Namiasi																		0
	Mpwepwe CF																		0
22	Mangochi T/ship																		0
23	Mchinji																		0
24	Mulanje																		0
25	Mwanza																		0
26	Mzimba																		0
27	Mzuzu City																		0
	Mzuzu FF																		0
28	Nkhata Bay																		0
29	Nkhotakota																		0
30	Nsanje/Bangula																		0
31	Ntcheu																		0
32	Ntchisi																		0
33	Phalombe																		0
34	Rumphi																		0
	Chisitu FF																		0
35	Salima																		0
36	Salima T/ship																		0
37	Thyolo																		0
38	Zomba M/lity																		0
	Domasi FF																		0
39	Zomba																		0
	District Total:	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
	Grand Total 2004-6:	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
	Increase 2004-6:	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0

Attachment 14

									
MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS									
DEPARTMENT OF FISHERIES									
Annex 6:									
Government of Malawi									
Devolved Matrix of TORs by Section and Assembly									
(An abstract from the Fisheries Strategy 2002-2006)									
Sl no	Objectives Strategy Plan	Management	Admin/Accounts	Research	Extension	Aquaculture	Planning	Training	Assembly
1	Strengthen Institutional Framework	- Policy Review - Legislation Review - Infrastructure Update - Devolution Plan - Commercial Licenses - Secretariat to FABoard - Chambo Strategy - Staff Incentives	- Performance System - HRD Plan - Fish Fund Mgmt - Staff TORs - Coordinate Budget - M&E Assets - Staff Welfare - Office Logistics	- Autonomous Unit	- Autonomous Unit - Licencing	- Autonomous Unit - Aquaculture Permits	- Master Plans - M&E Reports - SOER/NEAP - Standards - Plans/SIPs - NSSD/PRSP - Strategic Plans - Devolution Plan	- Training Needs Assess - Develop Courses - Training Programs - Staff Training	- Managerial Powers - Infrastructure Update - Licence BVCs/Gear - By Laws - SOERs/DEAPs
2	Stimulate Sustainable Economic Growth				- Promote unexploited Stock - Quality standards	- Research systems - Promote intensive systm - Promote re-stocking - Exotic species. - F Farm Extension			- Enhance capture fish - Promote valued added - Improve markets
3	Promote Sustainable Management	- Management Agreements - Appoint Honorary Officer - Draft By Laws		- Info for management - Assess unexploited - Surveys/Taxonomy - Monitor stocks - SE Surveys - Publish research - Investigate By Laws	- Disseminate research - Enforcement - Inspectorate - Frame Surveys		- Management Plans	- Id BVC training needs	- Marketing surveys - Catch data/Statistics - Management Plans - Disseminate research - Awareness campaigns - Enforcement By Laws - Form BVC/Assoc - Train BVC/Assoc - Management Agreement - Control Fish Trade - Control Aquatic Weeds
4	Promote Cooperation National, Regional	- Information exchange - Int, Reg & National For a - Protocols - Conventions			- Information Centre				

(File Ref: A PFM Manual/2 Devolution-Annex 6 TOR)

Attachment 15

MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS															
DEPARTMENT OF FISHERIES															
Annex 7: Assembly Criteria for Allocation of Fishery Fund															
(A supplement to the National Fisheries Policy 2001)															
a. Summary of all Criteria.															
(Source NSOER 2002)															
														Period:	12.2002
Sl no	Central & Assembly	Env	Management	F/Work	Human	Soil	Forest	Fisheries	Water	Biod	Educ	Industry	Energy	Populus	Mean
		DESC	SOER	DEAP	By-laws	HDI	Erosion	Cover	products	Safe	Threat	Clubs	Mining	Charcoal	
					NRM				t/BVC		Non-Agric				%
	Target	1/Assb	1/2yr	1/5yr	10/5yr	100%	12t/ha	40%	127	100%	100%	1/school	y/n	y/n	% highest
	(Year of data)	2002	2002	2002	2002	1995	1992	1993	1996	1995	1993	2002			1.0
1	Balaka	1.0	1.0	1.0	0.0		0.86					0.09		0.15	0.6
2	Balaka T/ship	0.0	0.0	0.0	0.0		0.86					0.09		0.02	0.1
3	Blantyre	1.0	1.0	1.0	0.0	0.62	0.38	0.75		0.60	0.3	0.55		0.34	0.6
4	Blantyre City	0.0	0.0	0.0	0.0		0.38	0.75				0.64		0.55	0.3
5	Chikwawa	1.0	0.3	0.3	0.0	0.45	0.67	0.83	1.06	0.25	0.35	0.16		0.39	0.5
6	Chiradzulu	1.0	0.2	0.3	0.0	0.51	0.31	0.10		0.24	0.04	0.05		0.26	0.3
7	Chitipa	1.0	1.0	1.0	0.0	0.58	0.50	0.95		0.38	0.48			0.14	0.6
8	Dedza	1.0	1.0	1.0	0.0	0.52	0.55	0.55		0.23	0.33	0.09		0.52	0.5
9	Dedza T/ship	0.0	0.0	0.0	0.0		0.55	0.55		0.23		0.09		0.02	0.2
10	Dowa	1.0	1.0	1.0	0.0	0.50	0.46	0.10		0.19	0.08	0.06		0.45	0.4
11	Kasungu	1.0	0.2	0.0	0.0	0.46	0.75	0.70		0.10	0.4	0.02		0.50	0.4
12	Kasungu T/ship	0.0	0.0	0.0	0.0		0.75	0.70				0.02		0.03	0.2
13	Karonga	1.0	1.0	1.0	0.0	0.63	0.36	1.73	1.38	0.57	0.7			0.10	0.8
14	Karonga T/ship	0.0	0.0	0.0	0.0		0.36	1.73						0.02	0.3
15	Likoma	1.0	0.5	0.5	0.0				0.55					0.01	0.4
16	Lilongwe	1.0	1.0	1.0	0.0	0.55	0.67	0.40		0.51	0.29	0.47		1.00	0.6
17	Lilongwe City	0.0	0.0	0.0	0.0		0.67	0.40				0.38		0.49	0.2
18	Liwonde T/ship	0.0	0.0	0.0	0.0		0.86							0.02	0.1
19	Luchenza T/ship	0.0	0.0	0.0	0.0		0.41							0.01	0.1
20	Machinga	1.0	1.0	1.0	0.0	0.55	1.20		0.38	0.26	0.19	0.16		0.39	0.6
21	Mangochi	1.0	1.0	1.0	0.0	0.50	0.80	0.95	1.22	0.23	0.4	0.22		0.64	0.7
22	Mangochi T/ship	0.7	1.0	1.0	0.0		0.80	0.95				0.22		0.03	0.6
23	Mchinji	1.0	0.2	0.5	0.0	0.50	0.71	0.23		0.31	0.27	0.03		0.36	0.4
24	Mulanje	1.0	1.0	1.0	0.0	0.54	0.41	0.30		0.52	0.17	0.05		0.47	0.5
25	Mwanza	1.0	1.0	1.0	0.0	0.38	0.60	0.78		0.04	0.31	0.05		0.15	0.5
26	Mzimba	1.0	0.3	0.5	0.0	0.53	0.63	0.63		0.25	0.32	0.12		0.58	0.4
27	Mzuzu City	1.0	0.0	0.0	0.0		0.55					1.02		0.10	0.4
28	Nkhata Bay	1.0	1.0	1.0	0.0	0.57	0.28	1.45	0.55	0.29	0.63	0.30		0.18	0.6
29	Nkhotakota	1.0	1.0	1.0	0.0	0.52	0.71	1.30	1.07	0.31	0.56	0.32		0.25	0.7
30	Nsanje	1.0	0.0	0.1	0.0	0.51	0.86	0.85	1.06	0.64	0.34	0.04		0.22	0.5
31	Ntcheu	1.0	1.0	1.0	0.0	0.57	0.41	0.25		0.51	0.14	0.00		0.41	0.5
32	Ntchisi	1.0	1.0	1.0	0.0	0.56	0.44	0.33		0.04	0.14	0.04		0.19	0.4
33	Phalombe	1.0	1.0	1.0	0.0		0.41		0.38			0.02		0.26	0.5
34	Rumphi	1.0	1.0	1.0	0.0	0.62	0.75	1.10		0.67	0.75			0.14	0.7
35	Salima	1.0	1.0	1.0	0.0	0.45	1.09	0.18	1.44	0.16	0.14	0.18		0.25	0.6
36	Salima T/ship	0.7	1.0	1.0	0.0		1.09	0.18				0.18		0.02	0.5
37	Thyolo	1.0	1.0	1.0	0.0	0.47	0.35	0.05		0.18	0.02	0.19		0.50	0.4
38	Zomba M/lity	0.0	0.0	0.0	0.0		0.71	0.18				1.06		0.07	0.3
39	Zomba	1.0	1.0	1.0	0.0	0.65	0.71	0.18	0.38	0.55	0.09	1.15		0.53	0.6
	District Total:	0.8	0.6	0.6	0.0	0.5	0.63	0.6	0.9	0.3	0.3	0.25	#DIV/0!	#DIV/0!	0.3
	Key Status	0.0	Very low achievement, needs much support.												
		<0.75	In need of assistance (The lower the value the greater the priority)												
		>0.75	Ideal situation												

MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS												
DEPARTMENT OF FISHERIES												
Annex 7: Assembly Criteria for Allocation of Fishery Fund												
(A supplement to the National Fisheries Policy 2001)												
b. Status of DSOERS.												
		Chapter/Sector									Period:	'12.2002
Sl no	District/national	1. Env. Mgt Framework	2. Hum Habit, Dev. and Env.	3. Soil & Land Resources	4. Forestry Resources	5. Fishery Resources	6. Water Resources	7. Biological Diversity	8. Climate & Air Quality	9. Env. Educ & Pub Aware	10. Industry, Engy & Mine	Final Document
1. Status of National Document:												
0	National	1	1	1	1	1	1	1	1	1	1	1
2. Status of Assembly Documents:												
1	Balaka	1	1	1	1	1	1	1	1	1	1	1
2	Balaka T/ship											0
3	Blantyre	1	1	1	1	1	1	1	1	1	1	1
4	Blantyre City											0
5	Chikwawa	0.5			0.5			0.5	0.5		0.5	0.25
6	Chiradzulu	0.5		0.5	0.5			0.5				0.2
7	Chitipa	1	1	1	1	1	1	1	1	1	1	1
8	Dedza	1	1	1	1	1	1	1	1	1	1	1
9	Dedza T/ship											0
10	Dowa	1	1	1	1	1	1	1	1	1	1	1
11	Kasungu			0.5	0.5		0.5		0.5			0.2
12	Kazungu T/ship											0
13	Karonga	1	1	1	1	1	1	1	1	1	1	1
14	Karonga T/ship											0
15	Likoma	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5
16	Lilongwe	1	1	1	1	1	1	1	1	1	1	1
17	Lilongwe City											0
18	Liwonde T/ship											0
19	Luchenza T/ship											0
20	Machinga	1	1	1	1	1	1	1	1	1	1	1
21	Mangochi	1	1	1	1	1	1	1	1	1	1	1
22	Mangochi T/ship	1	1	1	1	1	1	1	1	1	1	1
23	Mchinji	0.5				0.5			0.5			0.15
24	Mulanje	1	1	1	1	1	1	1	1	1	1	1
25	Mwanza	1	1	1	1	1	1	1	1	1	1	1
26	Mzimba	0.5	0.5	0.5		0.5					0.5	0.25
27	Mzuzu City											0
28	Nkhata Bay(R/U	1	1	1	1	1	1	1	1	1	1	1
29	Nkhotakota (R/U	1	1	1	1	1	1	1	1	1	1	1
30	Nsanje											0
31	Ntcheu	1	1	1	1	1	1	1	1	1	1	1
32	Ntchisi	1	1	1	1	1	1	1	1	1	1	1
33	Phalombe	1	1	1	1	1	1	1	1	1	1	1
34	Rumphi	1	1	1	1	1	1	1	1	1	1	1
35	Salima	1	1	1	1	1	1	1	1	1	1	1
36	Salima T/ship	1	1	1	1	1	1	1	1	1	1	1
37	Thyolo	1	1	1	1	1	1	1	1	1	1	1
38	Zomba M/lity											0
39	Zomba	1	1	1	1	1	1	1	1	1	1	1
% Complete		0.91	0.96	0.92	0.92	0.94	0.96	0.94	0.92	0.98	0.94	0.60
Key Status:												
		0	Not Available									
		0.5	First Draft Submitted to EAD									
		0.75	Second Draft Approved by DEC and submitted to EAD.									
		1	Final approved by District Assembly or Sector Director (if national) and Submitted to NCE									

MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS												
DEPARTMENT OF FISHERIES												
Annex 7: Assembly Criteria for Allocation of Fishery Fund												
(A supplement to the National Fisheries Policy 2001)												
c. Status of DEAPs.												
Chapter/Sector											Period:	'12.2002
no	Assembly/national	1. Env. Mgt Framework	2. Hum Habit Dev. and Env.	3. Soil & Land Resources	4. Forestry Resources	5. Fishery Resources	6. Water Resources	7. Biological Diversity	8. Climate & Air Quality	9. Env. Educ & Pub Aware	10. Industry, Engy & Mine	Final Document
1. Status of National Document:												
0	National	1	1	1	1	1	1	1	1	1	1	1
2. Status of District Documents:												
1	Balaka	1	1	1	1	1	1	1	1	1	1	1
2	Balaka T/ship											0
3	Blantyre	1	1	1	1	1	1	1	1	1	1	1
4	Blantyre City											0
5	Chikwawa	0.5	0.5	0.5	0.5	0.5						0.25
6	Chiradzulu		0.5	0.5	0.5		0.5			0.3	0.5	0.3
7	Chitipa	1	1	1	1	1	1	1	1	1	1	1
8	Dedza	1	1	1	1	1	1	1	1	1	1	1
9	Dedza T/ship											0
10	Dowa	1	1	1	1	1	1	1	1	1	1	1
11	Kasungu											0
12	Kazungu T/ship											0
13	Karonga	1	1	1	1	1	1	1	1	1	1	1
14	Karonga T/ship											0
15	Likoma	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5
16	Lilongwe	1	1	1	1	1	1	1	1	1	1	1
17	Lilongwe City											0
18	Liwonde T/ship											0
19	Luchenza T/ship											0
20	Machinga	1	1	1	1	1	1	1	1	1	1	1
21	Mangochi	1	1	1	1	1	1	1	1	1	1	1
22	Mangochi T/ship	1	1	1	1	1	1	1	1	1	1	1
23	Mchinji	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5
24	Mulanje	1	1	1	1	1	1	1	1	1	1	1
25	Mwanza	1	1	1	1	1	1	1	1	1	1	1
26	Mzimba	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5	0.5
27	Mzuzu City											0
28	Nkhata Bay	1	1	1	1	1	1	1	1	1	1	1
29	Nkhotakota	1	1	1	1	1	1	1	1	1	1	1
30	Nsanje	0.5										0.05
31	Ntcheu	1	1	1	1	1	1	1	1	1	1	1
32	Ntchisi	1	1	1	1	1	1	1	1	1	1	1
33	Phalombe	1	1	1	1	1	1	1	1	1	1	1
34	Rumphi	1	1	1	1	1	1	1	1	1	1	1
35	Salima	1	1	1	1	1	1	1	1	1	1	1
36	Salima T/ship	1	1	1	1	1	1	1	1	1	1	1
37	Thyolo	1	1	1	1	1	1	1	1	1	1	1
38	Zomba M/lity											0
39	Zomba	1	1	1	1	1	1	1	1	1	1	1
% Complete		0.91	0.91	0.91	0.91	0.92	0.92	0.94	0.94	0.91	0.92	0.62
Key Status:												
		0	Not Available									
		0.5	First Draft Submitted to EAD									
		0.75	Second Draft Approved by DEC and submitted to EAD.									
		1	Final approved by District Assembly or Sector Director (if national) and Submitted to NCE.									

MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS												
DEPARTMENT OF FISHERIES												
Annex 7: Assembly Criteria for Allocation of Fishery Fund												
(A supplement to the National Fisheries Policy 2001)												
d. Status of Sector By Laws.												
		Chapter/Sector									Period:	'12.2002
no	Assembly/National	1. Env. Mgt Framework	2. Hum Habit Dev. and Env.	3. Soil & Land Resources	4. Forestry Resources	5. Fishery Resources	6. Water Resources	7. Biological Diversity	8. Climate & Air Quality	9. Env. Educ & Pub Aware	10. Industry, Engy & Mine	Final Document
1. Status of National Document:												
0	National	1	1	1	1	1	1	0.5	1	1	0.5	0.9
2. Status of District Documents:												
1	Balaka											0
2	Balaka T/ship											0
3	Blantyre											0
4	Blantyre City											0
5	Chikwawa											0
6	Chiradzulu											0
7	Chitipa											0
8	Dedza											0
9	Dedza T/ship											0
10	Dowa											0
11	Kasungu											0
12	Kazungu T/ship											0
13	Karonga											0
14	Karonga T/ship											0
15	Likoma											0
16	Lilongwe											0
17	Lilongwe City											0
18	Liwonde T/ship											0
19	Luchenza T/ship											0
20	Machinga											0
21	Mangochi											0
22	Mangochi T/ship											0
23	Mchinji											0
24	Mulanje											0
25	Mwanza											0
26	Mzimba											0
27	Mzuzu City											0
28	Nkhata Bay											0
29	Nkhotakota											0
30	Nsanje											0
31	Ntcheu											0
32	Ntchisi											0
33	Phalombe											0
34	Rumphi											0
35	Salima											0
36	Salima T/ship											0
37	Thyolo											0
38	Zomba M/lity											0
39	Zomba											0
% Complete		0	0	0	0	0	0	0	0	0.0	0	0.0
Key Status:		0	Not Available									
		0.5	First Draft Submitted									
		0.75	Second Draft Approved									
		1	Final approved and Submitted to NCE.									

[illegible]

MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS															
DEPARTMENT OF FISHERIES															
Annex 7: Assembly Criteria for Allocation of Fishery Fund															
f. Summary of Fisheries Micro-Projects by District															
Sl no	Assembly	Fisheries Projects							Aquaculture Projects						Total
		BVC	PFM	Research	Statistics	Sanctuary	Art Reef		Ponds	Cages	Seed	Research			
1	Balaka														0.0
2	Balaka T/ship														0.0
3	Blantyre														0.0
4	Blantyre City														0.0
5	Chikwawa														0.0
6	Chiradzulu														0.0
7	Chitipa														0.0
8	Dedza														0.0
9	Dedza T/ship														0.0
10	Dowa														0.0
11	Kasungu														0.0
12	Kasungu T/ship														0.0
13	Karonga														0.0
14	Karonga T/ship														0.0
15	Likoma														0.0
16	Lilongwe														0.0
17	Lilongwe City														0.0
18	Liwonde T/ship														0.0
19	Luchenza T/ship														0.0
20	Machinga														0.0
21	Mangochi														0.0
22	Mangochi T/ship														0.0
23	Mchinji														0.0
24	Mulanje														0.0
25	Mwanza														0.0
26	Mzimba														0.0
27	Mzuzu City														0.0
28	Nkhata Bay														0.0
29	Nkhotakota														0.0
30	Nsanje														0.0
31	Ntcheu														0.0
32	Ntchisi														0.0
33	Phalombe														0.0
34	Rumphi														0.0
35	Salima														0.0
36	Salima T/ship														0.0
37	Thyolo														0.0
38	Zomba M/lity														0.0
39	Zomba														0.0
National Total:		0.0	0.0	0.0	0.0	0.0	0.0	0.0	0.0	0.0	0.0	0.0	0.0	0.0	0.0

Attachment 16

**LEGAL TOOL BOX
FOR PARTICIPATORY FISHERIES MANAGEMENT**

MALAWI

SECTION 4

**FISHERIES CONSERVATION AND MANAGEMENT ACT, 1997
(No 25 of 1997) Supplement**

Local Government Fisheries Conservation and Management By Laws

- Schedule 1: Fisheries Protection Officer letter of authority.
- Schedule 2: Constitution for BVC and Fishermen's Association and Election format for Office Bearers.
- Schedule 3: Fisheries Management Plan.
- Schedule 4: Fisheries Management Agreement.
- Schedule 5: Leasehold Permit/Agreement for Exclusive Fishing Rights.
- Schedule 6: Fees for registration of vessels, gears and fishermen.
- Schedule 7: Fines for contravention of the Act and Regulations 2000.
- Schedule 8: Authority/License to Fish Within the jurisdiction of a BVC.
- Schedule 9: Register of BVC Members, Vessels Registered and Licenses issued
- Schedule 10: Restrictions on Size of Fishing Gear, Prohibited Periods, Times and Gear Types.
- Schedule 11: Assembly Fisheries Quarterly M&E Formats.



Government of Malawi

**MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS
DEPARTMENT OF FISHERIES**

**FISHERIES CONSERVATION AND MANAGEMENT ACT, 1997
(No 25 of 1997) Supplement**

Local Government Fisheries Conservation and Management By Laws

IN EXERCISE of the powers conferred by Section 9(c) and Section 61 of the Fisheries Conservation and Management Act, 1997, I, ULADI B. MUSSA, Minister of Natural Resources and Environmental Affairs, acting on the recommendation of the Fisheries Advisory Board, make the following regulations into “Local Government Fisheries Conservation and Management By Laws” a supplement of the Act..

OBJECTIVES

In pursuance of the National Decentralization Policy, Section 6.12, and in accordance with Schedule 2, Section 22(e)(i) of the Local Government Act, these By Laws confer to the District Assemblies powers, functions and responsibilities pertaining to the following decentralized fisheries conservation and management services and activities, notably:

- a. Licensing and inspection of fishing gear (i.e. nets and boats),
- b. Fisheries extension, and
- c. Community participation in fisheries management.

SCHEDULES

The following schedules are annexed as part of these By laws:

- Schedule 1: Fisheries Protection Officer letter of authority.
Schedule 2: Constitution for BVC and Fishermen’s Association and Election format for Office Bearers.
Schedule 3: Fisheries Management Plan.
Schedule 4: Fisheries Management Agreement.
Schedule 5: Leasehold Permit/Agreement for Exclusive Fishing Rights.
Schedule 6: Fees for registration of vessels, gears and fishermen.
Schedule 7: Fines for contravention of the Act and Regulations 2000.
Schedule 8: Authority/License to Fish Within the jurisdiction of a BVC.
Schedule 9: Register of Vessels Registered and Licenses issued
Schedule 10: Restrictions on Size of Fishing Gear, Prohibited Periods, Times and Gear Types.
Schedule 11: Assembly Fisheries Quarterly M&E Formats.

PART 1: PRELIMINARY

1. These By Laws may be cited as the Local Government Fisheries Conservation and Management By Laws, 2003, a Supplement to the Fisheries Conservation and Management Act, 1997, and shall come into operation on such date as the Minister shall appoint by notice published in the Gazette.
2. In these By Laws, unless the context otherwise requires:
 - “Act” means the Fisheries Conservation and Management Act, 1997.
 - “Assembly” means an urban or district assembly as specified in the Local Government Act.
 - “Beach Village Committee” means the persons engaged in the fishing industry in a particular fishing beach collectively form a committee and have elected office bearers.
 - “Board” means the appointed Fisheries Advisory Board, advising the Minister.
 - “By Laws” means the rules, regulation and By Laws contained in this schedule, pertaining to fisheries.
 - “commercial fishermen” means a) in the case of an individual, a person who is engaged in fishing for sale throughout or part of the year or season, and who relies on this fishing activity for part of his income, or b) in the case of a corporate body or association of persons, one that has an appreciable investment in the fishing industry, taking fish for sale.
 - “Director” means the Director of Fisheries.
 - “fisheries protection officer” means the Director or anyone appointed by him referred to in Section 3(7) of the Act.
 - “Fisheries Management Authority” means any local community organization, either BVC or Fishermen’s Association, established for the purposes of promoting local participation in the conservation and management of fisheries in Malawi.
 - “Fisheries Sub-Committee” (FSC) a sub-committee to the Assembly, Agriculture and Natural Resources Committee formed in pursuance of Section 14 of the Local Government Act, for sustainable co-management with communities of the fisheries resources of the Assembly. Similar such sub-committees shall exist at the appropriate local authority level, notably ADC and VCD level.
 - “fishing industry” includes fishing, fishing gear/boat making, fish processing, fish transport, fish marketing and fish trading (and business men or investors in the industry).
 - “fishing license” means a fishing permit issued under the Act.
 - “fishing vessel” means any vessel, of whatever size and whatever propulsion, used in the fishing industry.
 - “fish processing” means cleaning, filleting, icing, freezing, canning, salting, smoking, cooking pickling, drying or otherwise preserving or preparing of fish.
 - “Minister” shall mean the Minister of Natural Resources and Environmental Affairs.
 - “Participatory Fisheries Management” (PFM) refers to a co-management arrangement between the State and the subsistence and small scale commercial fishing industry, whereby the fishing industry and the state jointly participate in enforcement and regulation of the fishing.
 - “register” means a local fishing vessel or local fishermen register to be kept in pursuant to Regulation 13, of the Act.
 - “Regulations” implies the Fisheries Conservation and Management Regulations of 2000, supplement to the Act.
 - “subsistence fishermen” means a person who catches fish for own or home consumption and does not sell for income. Anyone who takes fish for sale, small or large scale, is “commercial”.

PART II ADMINISTRATION

3. The Director, and other officers subordinate to him, hereby retains the following functions centrally:

3.1. The following fisheries policy formulation and enforcement remains a central activity:

- a. Preparation of policy, strategies, plans and programs, in line with central policy, the inclusion of such in national development plans and the conveyance down to the Assembly for inclusion in District Development Plans (DDP). This includes making or reviewing Fisheries Management Plans for a particular water body and after approval by the Fisheries Advisory Board, passing such plans to communities for implementation.
- b. The inclusion of all fisheries plans from DDP into the Fisheries Sector Investment Plan and to lobby for resources either from central government, donors, Inter-Government Fiscal Transfers or the Fisheries Fund, to support Assembly development plans in fisheries.

3.2. Establishment of standards and inspectorate of compliance.

3.3. Curriculum development and staff training.

3.4. Watchdog of international conventions and international representation.

3.5. Fisheries and aquaculture research.

3.6. Preparation of the fisheries chapter in the National State of the Environment Report (SOER) and National Environment Action Plan (NEAP).

3.7. The regulation and control of commercial fishing operations, including aquaculture and aquaculture extension, and operations ancillary thereto.

3.8. Statistical analysis, monitoring and evaluation of the trends in the fishery.

4. The Director, hereby devolves the following functions to the Assembly:

4.1. The District Commissioner (or CEO) shall be appointed in the public service as the designated representative of the Director at Assembly level, empowered to enforce the Act of 1997 and Regulations of 2000 and fisheries officers subordinate to him shall be responsible for:

- a. The conservation of fish stocks in the Assembly's water bodies,
- b. The taking of such measures as appropriate for the protection of the said fish stocks from over exploitation, pollution, siltation and other harmful causes.
- c. The assessment of the said fish stocks and collection of statistics and reporting to the Director.
- d. The development and the management of fisheries.
- e. The monitoring, control and surveillance of fishing operations.
- f. The preparation of and periodic review of Fisheries Management Plans in accordance with Section 6 of the Act. Submission of such Plans to the Director for approval of the Board and the Minister and the inclusion of such plans in the District Development Plan (DDP) and District Environment Action Plan (DEAP).
- g. The maintenance of criteria for the equitable allocation of resources to the fisheries Plan and to ensure that fisheries development receives equitable support from the Fisheries Fund, Inter-Governmental Fiscal Transfer and the District Development Fund.
- h. The regulation and control of subsistence and small-scale commercial fishing operations and operations ancillary to Participatory Fisheries Management as ascribed to in the Regulations 2000.
- i. The appointment of Fishery Management Authorities and the issue, variation, suspension and revocation of permits, licenses and registration of fishing vessels, in conjunction with these Authorities.

- j. Compelling the Fishery Management Authorities to maintain a register of vessels, gears, licensed fishermen and catch data and the making of reports as he shall see appropriate, as the Director may require. Preparation of the fisheries chapter in the District State of the Environment Report (SOER) and any other as the Minister may require.
- 4.2. In accordance with the Fisheries Devolution Plan, the following Fisheries District Offices, staff and equipment, shall as from 1st July 2004, be devolved to the local administration, funding, staff hire and discipline of the said Assembly: Karonga, Nkhata Bay, Likoma, Nkhotakota, Salima, Mangochi, Zomba and Nsanje.
 - 4.3. The District Commissioner shall appoint other fisheries officers subordinate to him, but answerable to the Assembly, and reportable to the Director through the DC and headed by the District Fisheries Officer (DFO).
 - 4.4. The Act shall be enforced by Fisheries Protection Officers (FPO), acting subject to the direction of the Director and with powers as set-out in Sections 30, 31 and 32 of the Act.
 - 4.5. For the purposes of these By Laws, the following are appointed FPO at Assembly level and shall be issued with identity cards and letters of authority from the Director, as prescribed in **Schedule 1**, with powers to arrest and prosecute criminal proceedings in respect of an offence committed under the Act:
 - a. The DC.
 - b. The fisheries officers of the Assembly.
 - c. Members of the local Police Force.
 - d. The forestry and environmental officers of the Assembly.
 - e. Such public officers as the Assembly shall recommend to the Director.
 5. The Office Bearers of Fisheries Management Authorities (i.e. BVCs and Associations) shall be appointed by the DC as “Honorary Fisheries Officers”, to assist in carrying out the provisions of Participatory Fisheries Management as in the Act and Regulations 2000. The instrument of appointment shall be the same as the FPO (**Schedule 1**) but for a specified term according to the term of office.
 6. There is hereby established a Fisheries Sub-Committee (FSC) under the jurisdiction of the Assembly (**Schedule 2**):
 - 6.1. The FSC shall be a sub-committee to the Agriculture and Natural Resources Committee Secretariat of the DEC and shall consist of:
 - a. District Fisheries Officer, Team Leader responsible for planning and executing fisheries plans.
 - b. Representative of the District Planning Director, to ensure Plans are in line with the DDP.
 - c. A PFM Officer, responsible for promoting BVC participation in co-management.
 - d. A Fisheries Enforcement Officer, responsible for ensuring BVCs enforce the Act.
 - e. A Fisheries M&E/Statistics Officer, responsible for collecting data on BVC registers (i.e. vessels, gears, fishermen, catches, etc) and preparing reports to the Assembly.
 - f. The District Environmental Officer, to ensure sustainable development.
 - g. Chairman of Area Fisheries Associations.
 - h. Chairman of BVCs (as required).
 - 6.2. The FSC shall advise the Assembly generally on the development, administration, conservation and management of the fisheries within the jurisdiction of the Assembly and shall in particular:

- a. Uphold the Act, the Regulations 2000 and the conditions of these By Laws, ensure compliance and enforcement of the law.
- b. Consider and advise on the Fisheries Management Plan as given by the Director, and review of the Plans prepared by the Fishermen's Association of a particular water body. This shall be prior to the submission of such Plans to the Assembly for inclusion into the DDP and for onward submission to the Director for review by the Board and approval by the Minister.
- c. Where such Fisheries Management Plan shall include a large water body whose jurisdiction spreads over 2 or more Assemblies, Inter-District Sub-Committee consultations should take place.
- d. Consider and advise on Fisheries Management Agreements and monitor compliance.
- e. Consider and advise on the formation of BVCs and Fishermen's Associations and registration of their Constitutions.
- f. Act as officials and supervise the election of BVC office bearers and Fishermen's Associations.
- g. Consider and advise on proposal for the enactment of Assembly By Laws that may affect the fishing industry and which are supplement to this By Law and pass up to the Director advise on additional laws as may be required from time to time.
- h. Consider such proposals as fishermen may refer to the FSC and submit such proposals to the Assembly offering advice as they consider appropriate for action.
- i. Have such duties and other functions as the Director, through the Assembly and the Assembly may from time to time prescribe for the sustainable management of the fishery resources.

PART III: LOCAL COMMUNITY PARTICIPATION

7. The Assembly shall actively promote local community participation in fisheries conservation and management through:
 - 7.1. The formation of Fisheries Management Authorities as "legal personality" at BVC and Association level through registration of their Constitution with the Registrar General of the Deeds and Trust Registry according to **Schedule 2**, and in accordance with the following guiding principles:
 - a. A BVC shall be a grouping of all members of the fishing industry (commercial or subsistence) operating from a designated beach.
 - b. Each BVC shall democratically elect from their members office bearers to represent them as a Fisheries Sub-Committee of the VDC.
 - c. The Assembly, through the FSC shall supervise office bearers elections to ensure they are democratic, free and fair and in line with **Schedule 2**.
 - d. The Chairman of the BVCs shall represent them as a Fisheries Sub-Committee of the ADC.
 - e. The Chairman of the BVCs, if small in number may represent them as a Fisheries Sub-Committee of the Assembly, or, if large in number, may choose to elect office bearers from amongst themselves to represent them at Assembly level.
 - f. If more than one water body is present in an Assembly, the representatives from the various Fishermen's Associations, may elect from amongst themselves a representative to the National Fishermen's Association and representation to the Board.
 - g. If a water body spans the jurisdiction of more than one Assembly, in accordance with the Local Government Act Section 16 (b), more than two Assemblies may come together to form an Inter-District Committee or Authority for the Management of the water body.

- 7.2.The preparation of a Fisheries Management Plan to be approved by the Director in accordance with **Schedule 3**, and inclusion of such Plans in the DDP.
- 7.3.The preparation of a Fisheries Management Agreement to be approved by the Director in accordance with **Schedule 4** and monitoring and enforcing compliance, recommending termination if there is non-compliance and poor performance, referring any dispute to the Director and Minister.
- 7.4.Compliance with the Chambo Restoration Strategic Plan, issuing and monitoring compliance with:
- a. Permits for exclusive fishing rights, permits to establish protected areas or sanctuaries in accordance with **Schedule 5**.
 - b. Permits for fisheries artificial reefs and enhancement practices (**Schedule 5**).
 - c. Local action to preserve endangered species (See policy supplement).
- 7.5.Establish a mechanism of costs and benefits sharing between Department of Fisheries, local government and Fisheries Management Authorities as follows:
- a. BVCs must collect fees for vessel registration, gear and fishermen licenses as per **Schedule 6**.
 - b. In accordance with **Schedule 6**, BVCs may add an additional minimum of **10 %**, or an amount as negotiated with the Assembly, and retain this for the operations of the BVC.
 - c. The BVC shall before the first month of the financial year (i.e. July), forward the fees to the Assembly who shall add an additional **10 %** and retain this for the operations of the Assembly.
 - d. The Assembly shall pay the fees to the Fisheries Fund as in the Act.
 - e. The BVC shall in their Constitution, make provision to charge a Social Development Fund (SDF) levy to the sales of all fish landed on the Beach. This SDF shall go towards development projects in the Beach under the DDP and supervised by the VDC.
- 7.6.The BVC shall enforce the law, confiscate fisheries produce and apply fines as per **Schedule 7**, either directly, or through the Traditional Authority or through the magistrate court of the Assembly. Any revenue generated as a result of a successful prosecution and from confiscation of fisheries produce, shall be shared equally between the state and the level at which the fine or revenue was generated. This implies that 50 % of fines shall be paid to the Fisheries Fund, as in the Act, and 50 % shall be shared as operation costs, between either the BVC, the Traditional authority or the Assembly whosoever participated in a successful prosecution. Any funds such generated shall go towards the development fund of the level concerned (i.e. Social Development Fund or DDF).

PART IV: REGISTRATION OF LOCAL REGISTRABLE FISHING VESSELS

8. The Assembly shall ensure that all fishing vessels operating in their jurisdiction shall conform to the Act and shall oversee that:
- 8.1.The BVCs shall, at the beginning of the financial year (July), collect fees as per **Schedule 6** and require all members to register all local fishing vessels who use the Beach, and in accordance with **Schedule 8**. Each vessel will receive a BVC identity.
- 8.2.The BVC must maintain a register of all local fishing vessels who register with the Beach, in accordance with **Schedule 9**, and quarterly submit such reports to the Assembly for onwards submission to the Director.

8.3. The BVC shall enforce Section 11 of the Act and prosecute or fine any contravention in accordance with **Schedule 7**, and disallow any fishing until such time as the matter is regularized.

PART V: FOREIGN FISHING VESSEL

9. No foreign fishing vessel shall be allowed by the Assembly to fish in their waters unless in accordance with Section 12 and 13 of the Act and as authorized by the Director.

PART VI: FISHING LICENCE, CONDITIONS AND OTHER CONTROLS

10. No commercial fishing shall be allowed by the Assembly to fish in their waters unless in accordance with Section 14 of the Act and as authorized by the Director.

11. The Assembly shall ensure that all fishing vessels operating in their jurisdiction shall conform to the Act and shall oversee that:

11.1. The BVCs shall, at the beginning of the financial year (July), collect fees as per **Schedule 6** and require all members to obtain a fishermen's license and to license all fishing gears which use the Beach, and in accordance with **Schedule 8**. Each fishermen will receive a BVC identity.

11.2. The BVC must maintain a register of all local fishermen and gears who register with the Beach, in accordance with **Schedule 9**, and quarterly submit such reports to the Assembly for onwards submission to the Director.

11.3. The BVC shall enforce Section 15 of the Act and that the restrictions on gear type, mesh size, fishing areas, periods and times are respected as in **Schedule 10**. To prosecute or fine any contravention in accordance with **Schedule 7**, and disallow any fishing until such time as the matter is regularized.

PART VII: SPECIAL ARRANGEMENTS

12. An Assembly may apply through the Director, to the Minister, for special permits for scientific research or emergency food supply, for a limited period and as specified in Section 19 of the Act.

PART VIII: AQUACULTURE

13. All applications for aquaculture permits shall be through the Director as per Section 21 of the Act. For the time being, all aquaculture service centers, extension services and research shall remain under the management of the director.

14. The Assembly may mobilize the Agriculture and Natural Resources Committee and Secretariat to undertake aquaculture extension under the guidance of the Director.

PART IX: FISHERIES FUND

15. All fees, fines and revenues paid by the Assembly to the Director, shall go to the Fisheries Fund to be administered as per Section 26 of the Act. All such revenues generated by the Assembly shall be reserved exclusively for the Fisheries Chapter of the DDP and DEAP.

16. The Director and the Assemblies shall establish criteria whereby the fisheries sector in a District are assured a equitable allocation of the revenues that the assembly manages. These criteria shall be calculated based on the following:

- a. The allocation to Fisheries ORT has traditionally been % of the national budget. This shall be retained in the future and, of this, 50 % shall go towards Assembly budgets for fisheries conservation and management.
- b. All Inter-governmental Fiscal Transfers from central level to Assemblies for fisheries operations shall be pro-rata to the % contribution by that Assemblies fishery to the total national fishery (i.e. if an Assembly contributes 10 % of the national catch, it should receive 10 % of the total budget allocation to Assembly's for fisheries, or as otherwise negotiated with the Director).

PART X: ENFORCEMENT

17. For the purpose of enforcing the Act, the appointed Assembly Fisheries Protection Officers shall exercise the powers as in Section 30 to 40 of the Act and as laid out in **Schedule 1**.

PART XI: PROHIBITIONS AND OFFENCES

18. For the purpose of enforcing the Act, the appointed Assembly Fisheries Protection Officers shall exercise the powers as in Section 41 to 45 of the Act and impose fines and penalties as laid out in **Schedule 7**.

PART XII: COURT PROCEEDINGS, ADMINISTRATIVE PROCEEDINGS AND PENALTIES

19. For the purpose of enforcing the Act, the appointed Assembly Fisheries Protection Officers shall exercise the powers as in Section 46 to 51 through the local magistrates courts.
20. The Director, shall from time to time make the Assembly aware of international conventions to which Malawi is party and establish guidelines, rules and regulations as laid down in the convention.

PART XIII: INTERNATIONAL COOPERATION IN FISHERIES

21. For proper management of cross-border fisheries, the Assembly may form a Joint Commission with its contemporary in neighboring states and jointly with the Director, produce management plans to realize common fisheries goals of shared resources.

PART XIV: MISCELLANEOUS

22. These By Laws bind the Assembly to assist the Director to uphold the Act and confers powers to the Assembly to license vessels, gears and fishermen. And, to enforce the Act, the Assembly may suspend, cancel or withdraw and registration, license or permit granted under this Act provided they conform to the conditions laid out in Section 56 to 58.
23. The Assembly may charge fees for these services in accordance with the provision of Section 59 of the Act and as prescribed in **Schedule 6**.
24. The Assembly is charged with the responsibility to ensure that returns from BVCs in the form of registration details and catch data is forwarded every quarter to the Director.
25. The Assembly is charged with assisting BVCs to identify, establish and declare protected areas, closed seasons, closed areas, set limits to species, size and weight, and regulate

gear in conformity with **Schedule 10**, and licensing the fishing industry (i.e. fishermen, traders and processors) and regulating quality standards.

26. The Assembly is responsible for establishing BVCs and Associations to which the Director shall delegate powers for the co-management of the fishery, and the Assembly shall recognize and support the local fisheries committees to enforce the law.
27. The Assembly is free to make additional By Laws for the sustainable conservation and management of the fishery, provided such By Laws are in conformity with the Act and Regulations 2000, are acceptable to the Director and have been approved by the Minister.
28. The Assembly is required to monitor all fisheries activities, catch data, programs, projects and mini-projects and submit quarterly reports to the Director in the prescribed format (**Schedule 11**).

The devolution of powers under these By Laws shall come into force as from 1st July 2004 and shall be read in accordance with the Fisheries Conservation and Management Act of 1997 and the Fisheries Conservation and Management Regulations of 2000.

Made this this day of 2003

Signed

ULADI B. MUSSA (MP)
Minister of Natural Resources
And Environmental Affairs

Local Government Fisheries Conservation and Management By Laws			
Schedule 1			
 Government of Malawi			
MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS DEPARTMENT OF FISHERIES			
<i>(A supplement to the Fisheries Conservation and Management Act No 25 of 1997 (Published 28.11.97)</i> <i>Fisheries Conservation and Management Regulations (Published 18.2.00))</i>			
FPO Number:			
Instrument of Appointment of a Fisheries Protection Officer (FPO) (Section 7)			
Name:		<i>Passport Photograph of the Appointed Fisheries Protection Officer</i>	
Official Title:			
Personal Id Number:			
Designation:	☐	Fisheries Officer in the Department of Fisheries Member of the Malawi Police Force Forestry, Wildlife or Environment Officer. Person in command of a Malawi Armed Forces vessel or aircraft. Public officer appointed by the Minister (Section 7.g). Honorary Fisheries Officer (HFO) appointed by Director (Section 4.1). Honorary Fisheries Officer (HFO) by virtue of Office Bearer of BVC (Regulations 9A.) Name of BVC/Fish Association: (HFO Term of appointment from to)(Max 3 years)	
<i>(Initial as required)</i>	☐		
	☐		
	☐		
	☐		
	☐		
	☐		
	☐		
	☐		
	☐		
The above mentioned is hereby appointed as a Fisheries Protection Officer (FPO) as per Section 7 of the Act and shall have the following prescribed powers as set out in Sections 30, 31 and 32 of the Act.B66			
FPO has power to:	☐	Stop a vessel, stop a vessel fishing, board and search the vessel. Ask crew to produce registration, licence, log, records, agreements, etc. Without summons or warrant, arrest any offender and bring them to court. Seize any vessel (foreign or local), gear & fish contravening Act Section 11, 12 or 14. Inspect any licence or permit, gear, fish or equipment and ask for identity/licence. Stop a vehicle, aircraft or vessel and inspect any manifest and cargo. Enter and search any land, building, camp or premises and inspect documentation. Seize any gear, explosive, poison, equipment and vehicle contravening the Act. Seize any fish and fish product which contravenes the Act. Demolish any structure, barrier or weir contrary to the Act. Access any data bank and reproduce any record as required for the case. Erect a temporary barrier across a road, stop and search any person or vehicle. Not enter a dwelling without owners consent or without a court warrant. Use force as may be reasonably necessary. For seized fish, issue receipt, keep safe or sell by court directive (Section 39.1.b) Act as a quality control inspector of fish and fish products. Other <i>(To be specified)</i> : Other <i>(To be specified)</i> :	
<i>(Initial as required)</i>	☐		
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Any person who obstructs any Fisheries Protection Officer while exercising these powers shall be liable to a fine of Mk 25 000 or 4 years imprisonment as per Section 36(3c). No civil or criminal action shall lie against a Fisheries Protection Officer/Honorary Fisheries Officer with respect to any act performed under the Act.			
Made this day		<i>Official Seal of the Director of Fisheries</i>	
.....			
Director of Fisheries			
I,, the above mentioned, hereby accept the authority bestowed upon me and solemnly pledge to uphold the Fisheries Conservation and Management Act No 25 of 1997 and the Fisheries Conservation and Management Regulations, 2000 in accordance with the laws of Malawi and accept that is honour may be withdrawn if there is any misuse of this authority.			
..... <i>(Signature of appointed Fisheries Protection Officer)</i>			

Schedule 2

CONSTITUTION/DEED OF TRUST FISHERMEN ASSOCIATION/BVC

Location: ...

PREAMBLE

The Fisheries Conservation and Management Regulation, 2000 Section 18 requires Fishermen's Associations to have a "legal personality" as the Fisheries Management Authority representing the Beach Village Committees of a water body so as to be able to enter into a Fisheries Management Agreement with the Department of Fisheries. This Deed of Trust registered under the Trustees Incorporating Act (Cap. 5.03 of the Laws of Malawi) establishes the legal entity of the Fishermen and rules governing its operations.

GLOSSARY OF TERMS

- "BVC" Is made up of members of a beach who are involved in the fishing industry.
"Association" Is a representation of the BVCs at either ADC or Assembly level.
"Deed of Trust" This Constitution defines the legal personality of the BVC and Associations.
"Fishing Industry" Includes fishing, fish gear/boat making, fish processing, fish trading, marketing and allied industries.
"Fishermen" Includes commercial, those who catch fish and sell for livelihood and subsistence, those who catch for home consumption.
"Fishery" Is the area of water in which the fishing industry is practiced.

1. ESTABLISHMENT

Through this Deed of Trust (Hereafter referred to as a Constitution), there is hereby established a legal entity (a Trust) to be known as a **FISHERMEN'S ASSOCIATION**, whose "Constitution" is hereby registered with the Registrar General of the Deeds and Trusts Registry, Blantyre and comprises the following Annexes:

- Annex 1: Map of the Location of the Fishery showing boundaries of BVC, ADC and Assembly.
Annex 2: Register of BVC members, vessel, gear and equipment that make up the fishing industry (See By Law, Schedule 9).
Annex 3: Institutional organization of the BVC and Fishermen's Association.
Annex 4: Election format for BVC.
Annex 5: By laws, rules and regulations of the BVC, Association.
Annex 6: Penalties, fees and fines of the BVC/Association.

2. NAME OF TRUST

The name of the Trust shall be known as the **FISHERMEN ASSOCIATION** (hereinafter called 'the Association').

3. ADDRESS FOR SERVICE

The address for service (for the Association) will be:

4. LOCATION

The area of jurisdiction of the Association shall be the fishery defined by the open water, high water mark and associated wetlands, rivers and dambos of the concerned water body and the associated fishing beaches, hereafter referred to as the “Location”. The boundary and location of the beaches, VDC, ADC and Assembly are illustrated in **Annex 1**, a map of the fishery and defined by the following boundaries:

The Association shall be made up of Beach Village Committee members whose names are listed in **Annex 2**. Collectively they shall be represented by Area Fishermen’s Association at ADC level and (*Location*) Fishermen’s Association as Assembly level and above.

5. OBJECTIVES

The objectives of the Association are:

- 5.1. To represent the interests of the fishing industry population in the Location of jurisdiction, and
- 5.2. To be able to enter into a legal Fisheries Management Agreement with government, and
- 5.3. To co-manage, jointly with government, in a sustainable manner and in collaboration with the Local Authorities (i.e. VDC, ADC and Assembly), the fishing industry of the Location, on behalf of, and for the financial and nutritional benefit of, the members of the Association, their families, and Malawi as a whole.
- 5.4. To participate in the preparation of a Fisheries Management Plan, rules and regulations to govern the fishing industry, provide civic education to the people of the Location and to enforce the laws for the protection, conservation, and management of the fishery.
- 5.5. To lobby and convey to the District Assembly, Fisheries Advisory Board and the Director, Department of Fisheries, recommendations for the better conservation and management of the Location.

6. MEMBERSHIP

A person shall qualify to be a member of the Association provided they fulfill the following criteria:-

- 6.1 He/she must be a member of one of the Beach Village Committee (BVC) or River Village Committee (RVC) as listed in **Annex 2**.
- 6.2 To be a member of a BVC or RVC, He/she MUST fulfill the following criteria:
 - (1) He/she should engage in the “fishing industry”, be a fisherman, fish trader or fish processor, (or married to such a person).
 - (2) He/she must be a citizen of the Location by birth, or resident for 5 years or more, be of good behavior, and have an interest in the management of fishery.
 - (3) He/she must be permanently resident and have a house in the Location.
 - (4) He/she must be aged 18 years old or over.

All members must be registered according to their BVC or RVC, as per **Annex 3** and the register must be up-dated immediately before Annual General Meetings.

6.3 RIGHTS OF MEMBERS

- (1) To sustainably utilize the fish resources of Location and to enforce compliance with any By-laws, rules or regulations made under this Deed, or any law for the time being in force in Malawi.
- (2) To elect the office bearers of the Beach or River Village Committee, the Area Fishermen's Association and the Location Fishermen's Association.
- (3) Every member of the Association shall have the right to attend and vote at the Annual General Meeting or any Special General Meeting

7. THE FISHERMEN ASSOCIATION, AREA FISHERMEN'S ASSOCIATION, BEACH VILLAGE COMMITTEE

The institutional organization of the Association is illustrated in **Annex 4**, as follows:

- 7.1 The BVC shall, democratically elect ten (10) office bearers, who shall serve in accordance with this Deed.
- 7.2 There shall be the following ten (10) office bearers on the BVC, a) Chairperson and Vice-Chairperson, b) Secretary and Vice-Secretary, c) Treasurer and Vice-Treasurer and d) 4 members.
- 7.3 The BVC office bearers shall be a BVC sub-committee to the VDC.
- 7.4 The Chairperson of each BVC in an ADC shall automatically come together as a Sub-Committee of the ADC and be termed an AREA FISHERMEN'S ASSOCIATION. If many BVCs, they may elect from amongst their members, office bearers to represent them.
- 7.5 The Chairperson of the BVC, or if a large number, the elected Area Fishermen's Association office bearers, shall form an Association to represent the Location at the Assembly or national level. These representatives may in turn, elect office bearers.
- 7.6 Tenure
 - (1) Members shall serve on the Association, Area Fishermen's Association, and Beach Village Committee for a term of two (2) consecutive years only, unless removed there from in accordance with this Deed.
 - (2) A Member may be re-elected, but may not stand for 2 consecutive terms, but may serve for an unlimited number of terms.
- 7.7. Election of Association, Area Fishermen's Association and Beach Village Committee Members

i. Eligibility for Election

A person shall not qualify to be elected as an Association, Area Fishermen's Association and Beach Village Committee Member unless he or she:-

- a. Is a member of the Association in accordance with this Deed.
- b. Is a mature or senior person.
- c. Is literate, or numeric in the case of the Treasurer.
- d. Has the support of 10 registered members for nomination.

ii. Procedure for Elections

The registered members of the Association shall elect 10 Beach Village Committee Office Bearers by secret ballot under the supervision of the District Fisheries Officer (representing the Assembly), Ward Councilor and ADC Representative in the format prescribed in **Annex 5**.

7.8. Appointment of Office Bearers

- (1) Office bearers of the BVC shall be elected by the registered members.
- (2) Office bearers of the Area Fishermen's Association and the Location Association, shall be elected by the Office Bearers from amongst the Chairmen of the BVCs.
- (3) A vacancy created in any office in the Association, Area Fishermen's Association and Beach Village Committee due to expulsion, resignation or death of any Office Bearer on the Committee shall be filled by an election as laid down above.

7.9. Expulsion from the Office Bearers

- (1) Any member may be expelled from the Office Bearer by a majority vote of the members of the Association at the Annual General Meeting or a Special General Meeting.
- (2) An Office Bearer who fails to attend three (3) successive meetings of the Association, Area Fishermen's Association, or Beach Village Committee without a valid reason shall automatically be expelled from the Office Bearers. It should be the Chairperson's duty to warn a member of the Committee accordingly after two (2) successive absences.
- (3) Any member who is convicted of a criminal offence shall be expelled from the Committee.
- (4) The Office Bearers may refer disciplinary problems to the Traditional Authority or Assembly.

7.10. Resignation from the Association, Area Fishermen's Association, and Beach Village Committee

A Member may resign from the Association, Area Fishermen's Association, or Beach Village Committee provided that he or she shall not be entitled to do so without giving one month's prior notice verbally to all the Members of that Committee and in writing to the Chairperson of the Committee of his or her intended resignation.

7.11. Filling a vacancy on the Association, Area Fishermen's Association and Beach Village Committee

A vacancy shall be filled following the procedure for elections section 6.4 (2), and that Committee member shall serve for the remainder of that vacancy.

7.12. Duties of Chairperson/Vice-Chairperson

- (1) The Chairperson represents either, the Association, Area Fishermen's Association, or Beach Village Committee to higher authority and the general public, especially at official events within or outside the area and lobbying the Director and Fisheries Advisory Board.
- (2) The Chairperson unites and leads the Members, calling for meetings.
- (3) The Chairperson is responsible for settling disputes among Members.
- (4) The Chairperson is responsible for ensuring that the conduct of meetings conforms to the Constitution, approving the minutes.
- (5) The Chairperson is responsible for delegating or assigning the work of the Association to Office Bearers/members of the Association.

- (6) The Chairperson is responsible for informing the members of the Association on matters relating to the Association, especially the management of the Fishery. In particular, the Chairperson will present an annual report on the Association at the Annual General Meeting and answer any questions raised by the members of the Association.
- (7) The Chairperson is responsible for maintaining discipline among the members and conforming to Fisheries Management Plan/Agreement.
- (8) The Chairperson has the ultimate responsibility for ensuring that offences against the Association By-laws, rules and regulations are penalized, and if necessary refer offenders to higher authority.

7.13 Duties of a Secretary/Vice-Secretary

- (1) Take minutes of all meetings of the Association, Area Association, or Beach Village Committee.
- (2) Read the minutes of the previous meeting to remind members what was agreed upon at the previous meeting.
- (3) Write letters of invitation to meetings and draw up the agenda.
- (4) Keeps the records of the Association, Area Association, or Beach Village Committee. This includes maintaining the register of all Association members ([Annex 3](#)) and catch data.

7.14 Duties of Treasurer/Vice-Treasurer

- (1) Maintain the financial accounts of the Association, Area Association, or Beach Village Committee.
- (2) Receipt of payments, including levies, on behalf of the Association, Area Association, or Beach Village Committee and managing a proper record of these receipts of these payments.
- (3) Make payments on behalf of the Association, Area Association, or Beach Village Committee and maintain a proper record of these payments.
- (4) Retain the funds of the Association, or Area Association or Beach Village Committee safely and securely in a Bank account.
- (5) Safeguard the receipt books and any other financial documents for the Association, Area Association, or Beach Village Committee.
- (6) Inform the members of the Association, Area Association, or Beach Village Committee of the financial position. This includes presenting a financial report to the Association members at the Annual General Meeting on the income and expenditure of the Association or Area Association or Beach Village Committee.

7.15 Duties of Office Bearers/Committee Members

- (1) It is the responsibility of all committee members to promote the objectives of the Association.
- (2) Committee members should be loyal to the Association members.
- (3) Committee members should support the Chairperson and especially in giving good advice.
- (4) Committee members should advise the Chairperson on the views of the Association members and the entire community.
- (5) Take a lead when in the management of the Fishery, especially in enforcing the Fisheries Act and Association by-laws, trying cases, and imposing penalties for infringement.
- (6) Committee members should assist in resolving disputes within the membership of the Association.

- (7) It is the duty of all committee members to attend all meetings of the Association, Area Fishermen's Association, or Beach Village Committee to which they belong.
- (8) No committee member is allowed to make a patrol or bring a case on their own, they should work in pairs. This is to avoid any suspicion of bribery.

8. PROCEEDINGS OF THE ASSOCIATION COMMITTEES

- 8.1. BVC Committees should meet at least once every month, Area Committees once per quarter and Fishermen Associations once per year, on the first of the month. Meetings of the committees should also be convened at the request of at least 3 members of that committee.
- 8.2 It is the duty of the Chairperson to convene meetings, whether regular or special committee meetings.
- 8.3 The presence of at least 50 % of committee members at a committee meeting shall constitute a quorum.
- 8.4 Minutes of all meetings must be maintained by the Secretary and countersigned by the Chairperson.

9. POWERS OF THE ASSOCIATION, AREA FISHERMEN'S ASSOCIATION AND BEACH VILLAGE COMMITTEES

- 9.1 The Association, Area Fishermen's Association, and Beach Village Committee shall have power to conduct and manage the affairs and assets of the Association in fulfillment of the objectives of the Association.
- 9.2 The Association, Area Fishermen's Association, and Beach Village Committees shall have the power to enter into contracts, sign leases, and acquire permits or insurances as required.
- 9.3 The Association, Area Fishermen's Association and Beach Village Committees shall have the power to collect membership fees, fishing license fees, levies, fines, rentals, dividends, subscriptions, interest and other income accruing to the Association from time to time, and generally to raise funds for the Association either through calling for donations, subscriptions, gifts and the like, or through any lawful means.
- 9.4 To open, operate, and close banking and savings accounts with commercial banks and/or financial institutions, and to operate on such accounts by way of deposit and withdrawal as may be necessary for the proper conduct of the financial affairs of the Association. Any instrument or document which may be required in the conduct of the financial affairs of the Association shall be signed by such persons as the Association Committee may by resolution from time to time appoint.
- 9.5 To expend the funds of the Association in furtherance of its objectives or in accordance with budgets approved by a majority vote of the members present and voting at an Annual General Meeting or Special General Meeting.

10. DUTIES OF THE ASSOCIATION COMMITTEE

- 10.1 The principal role of the Association Committee is to uphold the Fisheries Act, to manage the fishery of for the long-term benefit of the members. This role implies that management of the fishery should be sustainable. Sustainability in turn implies:
- Uses in accordance with the Fisheries Management Plan.
 - Uses that are self-sustaining economically, socially, and in terms of management capacity
 - Uses that allow renewal of fish resources

- Catchment management to prevent environmental degradation affecting the fishery.

10.2 The Association Committee Members are required to:

- (1) Make plans for the management of the fishery to generate optimum benefits for the Members while ensuring that fishery management is sustainable.
- (2) Submit plans for the approval of the members of the Association as a whole.
- (3) Implement the management plans and report back to the members on progress.
- (4) Be responsible for management of funds accruing to the account of the Association.
- (5) Be held accountable in law if they fail to manage the assets of the Association in the best interest of the beneficiaries.

11. DUTIES OF THE AREA FISHERMEN'S ASSOCIATION

11.1 The Area Fishermen's Association shall:

- (1) Provide a forum for dialogue and debate and co-ordination between the Beach Village Committees within the area of the Area Fishermen's Association.
- (2) Be responsible for adjudicating cases of infringement of the Association's regulations and By laws. This includes imposing penalties according to the regulations and By laws, which may include fines, or confiscation and destruction of illegal fishing gear.
- (3) Be requested to deal with matters relating to the fishery referred to it by the Beach Village Committees.
- (4) Be responsible for ensuring that their Beach Village Committees are functioning correctly, and taking appropriate action in cases of irregularity.

12. DUTIES OF THE BEACH VILLAGE COMMITTEE

12.1. The Beach Village Committee is responsible for the management of the fishery, particularly within the area of jurisdiction of the Beach Village Committee. This includes enforcement of the regulations and By- Laws of the Association, which may entail:

- a. Arresting offenders
- b. Confiscating illegal fishing gear
- c. Referring cases of infringement to The Area Fishermen's Association for judgment.
- d. Control of access.

12.2. The Beach Village Committee provides a forum for dialogue and debate within the fishing community, for identification of problems, formulation of solutions, organizing implementation of solutions, evaluation progress and adjusting solutions.

12.3. The Beach Village Committee acts as a two-way channel of communication between the fishing community and the fisheries department and other government and traditional authorities, which may also be through the Area Fisheries Association and Association Committee. This includes acting as a channel for extension messages to users, and feedback to the Fisheries Department.

12.4. The Beach Village Committee is responsible for registering all fishermen within the Beach Village Committees Area.

12.5. The Beach Village Committee is responsible for collection and accounting for Association's membership fees, levies, and fines.

- 12.6. The Beach Village Committee is committed to collaborating with the Fisheries Department in the collection of data on the fishery for the monitoring and better management of the fishery.
- 12.7. The Beach Village Committee are required to keep their Area Fishermen's Association informed of any events of importance which occur in their area of the fishery.

13. ANNUAL GENERAL MEETING

- 13.1 There shall be held an Annual General Meeting (AGM) before the end of every year at a time and venue to be decided by the Association Committee.
- 13.2 Every Member of the Association shall be entitled to attend an AGM. The Association Committee may at its discretion invite any person who is not a Member of the Association to an AGM, but such person has no voting powers.
- 13.3 All matters of quorum, voting procedure and notices at an AGM shall be decided by the Association Committee from time to time.
- 13.4 Without derogation from clause (3) all motions shall be carried by a simple majority of votes of members present and voting. Each member present shall have one vote. In the event of a tie the Chairperson shall have a casting vote.
- 13.5 The Chairperson, or if absent, the Vice-Chairperson shall preside at every AGM. Should both be absent, the Association Committee Members shall elect one of their number as Chairperson at an AGM. Notwithstanding, all Association Committee Members are required to be present.
- 13.6 The agenda for the AGM shall include but not be limited to:-
 - (1) Registration of those members present and certification of a quorum
 - (2) The reading and adoption (confirmation) of the minutes of the last AGM and any Special General Meeting held during the previous year.
 - (3) Matters arising from the minutes of the last meeting
 - (4) The presentation of the Annual Report from the Association Committee by the Chairperson to the members of the Association on the activities and operations of the Association during the previous year, with particular respect to the progress of management of the fishery.
 - (5) The presentation of the financial report by the Treasurer and signed by the Chairperson. (Financial reports shall be liable to audit).
 - (6) The presentation of plans for the management of the fishery by the Association Committee for approval by the Association members
 - (7) Any other business

14. SPECIAL GENERAL MEETING

A Special General Meeting (SGM) may be convened by the Association Committee or on the request of 10 members of the Association for the purpose of considering any motion requiring the decision of the members.

All the relevant procedure at a SGM shall be similar to that of an AGM.

15. SUB-COMMITTEES

The Association Committee may form such standing or ad hoc sub-committees as may be required from time to time to perform any activities and operations of the Association as may be necessary in furtherance of the objectives of the Association.

The Association Committee shall have the power to form and dissolve such sub-committees, and shall determine their membership, powers, rights and duties and these shall be put down in writing.

16. REMUNERATION AND INDEMNIFICATION OF ASSOCIATION COMMITTEE MEMBERS

No Association, Area Fishermen's Association and Beach Village Committee member shall entitled, directly, to receive any remuneration for his services but shall be entitled to be reimbursed for all costs, charges and expenses incurred by him or her in the conduct of the business of the Association or in the discharge of his duties

17. DISPOSAL OF INCOME

Any income to the Association shall be deposited in an interest bearing account in the bank. The Chairman and Treasurer shall have to both sign checks and any withdrawal requisition shall also be countersigned by the Secretary to ensure that withdrawals are in line with what the Committee has agreed in the meetings and as reflected in the minutes. The Treasurer is required to reconcile all accounts to the satisfaction of an audit.

Budgets must be prepared by Committee in advance, approved at general meetings and any deviation requires 66 % of the vote of the Committee.

18. BY-LAWS

- (1) The Association Committee in consultation with the members, in line with the Fisheries Act shall enact such By-Laws, rules or regulations as may be necessary for the management of the fishery and these By-laws, rules or regulations may be amended or repealed from time to time.
- (2) The Association Committee may appoint such persons as may be capable of enforcing such By-laws, rules or regulations.
- (3) The Association Committee may impose penalties or sanctions in accordance with the said By-laws, rules and regulations on any person found contravening those laws, rules or regulations.
- (4) The By-laws, rules or regulations passed in accordance with this Deed shall apply subject to the provision of this Deed and any law in force in Malawi.
- (5) Any By-law, rule or regulation that is inconsistent with the provision of this Deed or any law in force in Malawi shall be invalid to the extent of such inconsistency.
- (6) By-laws, rules or regulations, particularly those relating to fishery protection, management, conservation, and sustainable utilization, passed under this Deed, shall bind any person found within the jurisdiction of the Association.
- (7) Any person aggrieved by the decision of the Association Committee may appeal against such decision to the Traditional Authority who shall be competent to allow or dismiss such appeal.

19. COMMON SEAL

- (1) The Association shall have a common seal, which shall consist of an embossed stamp with the words “(Location) FISHERMEN’S ASSOCIATION”
- (2) The common seal shall be kept in the custody of the Chairperson of the Association and shall not be affixed to any instrument except by authority of a majority of the members of the Association Committee, and in the presence of such majority

20. AMENDMENT OF THE CONSTITUTION

- (1) This Deed may be amended in whole or in part provided that any proposal for amendment is supported by a two-thirds (67 %) majority vote in a General Meeting of the Association.
- (2) No amendment of this Deed shall have any binding effect until notice of the same is sent to the Registrar General, including a confirmed set of minutes of the meeting at which the resolution was made, and duly registered by him.

21. DISSOLUTION OF THE ASSOCIATION

- (1) The Association may be dissolved if it becomes apparent that good and sufficient reasons exist for the dissolution.
- (2) Should 10 members move a motion that the Association be dissolved, the Committee shall call a SGM at which it will lay before the members at such meeting the reasons for the proposed dissolution, and in the event that a two-thirds (66%) majority vote of the members present and voting approve such dissolution, the Association shall be dissolved.
- (3) Any funds or assets standing to the credit of the Association after dissolution thereof shall be paid and distributed as follows:
 - a. For payment of all outstanding debts or liabilities of the Association, and costs and expenses incurred in the dissolution thereof
 - b. Any balance remaining thereafter shall be disposed in accordance with the decision of the majority of members present and voting at an AGM or SGM, whichever applies.

22. LANGUAGE

The formal document of this Constitution shall be in the English language but copies of a Chewa version shall be produced for accessibility by members, provided that the English version shall take precedence over the vernacular version in case of disparities between them.

23. EFFECTIVE DATE

This Deed shall enter into force upon the registration thereof by the Registrar General and forthwith the Association shall come into operation

24. FUNDS

The Association shall operate the following funds:

24.1. Membership fee: A annual membership fee of fifty kwacha (K50) is payable to the Beach Village Committee by every member on joining the Association. This payment is non-refundable.

24.2. Fishing Levy: A levy of fifty Kwacha (K50) is payable to the local Beach Village Committee by every fisherman every 6 months, on the first day of January, and the first day of July every year. This is to be used for a Social Development Fund for the developments of the BVC in line with the DDP.

24.3. Fish Trading Levy: A annual levy of one hundred and fifty Kwacha (K150) is payable to the Beach Village Committee at the fishing beach where the fish trader has come to engage in trading, by the fish trader on his/her first arrival. If the fish trader goes to a different fishing beach on, the same levy has to be paid on his/her first visit.

24.4. Ferry Boat Levy: A levy of two hundred and fifty Kwacha (250) is payable annually to the Beach Village Committee where the ferry is based, by every ferry boat owner for each ferry boat, on the first day of January every year.

24.5. Membership Fees: The above membership fees fish trading, and ferry boat levies are retained by the Beach Village Committee for operations of the BVC and Associations. The Funds in the Social Development Fund are management by the VDC as per DDF rules.

24.6. Gear/Vessel License Fee: A license fee is payable to the Department of Fisheries by every fisherman using a vessel and gear, on the first day of July every year, according to the rate published in the Government gazette. Of this amount, the BVC shall add 10 % for operation expenses or may take a % of catch in lieu of payment.

24.7. Use of Funds: The BVC during AGM must approve budgets and decide how they would like to use these funds. The Committee is authorized to follow this directive and is accountable to the BVC for the use.

24. LAW APPLICABLE

The performance of the Association and interpretation of its terms shall be governed by the Laws of Malawi

SIGNED BYONDAY OF2003
CHAIRPERSON OF THE LAKE FISHERMEN'S ASSOCIATION

ANNEX 5: FISHERMEN'S ASSOCIATION BY-LAW REGULATIONS

1. Open water seine nets (Khoka la nkacha) are not permitted to be used.
2. Beach seine nets (khoka la pansi) are not permitted to be used.
3. The minimum mesh size for gill nets is two and a half (2 ½) inches.
4. The minimum size of Oreochromis sp.(chambo) permitted to be taken is 6''.
5. The minimum spacing on fish traps (miano yamagalanje) is half an inch (½ “), being the width of an index finger.
6. Before fishing every fisherman should be registered by the Beach Village Committee at the fishing beach where they are based.

Immigrant fishermen are required to bring a Transfer Letter signed from the Beach Village Committee where they were formerly registered, to the Beach Village Committee for the fishing beach for which he intends to fish, certifying that he has not been convicted and expelled for stealing fish or fishing gear or any other offence.

ANNEX 6: FISHERMEN'S ASSOCIATION PENALTIES, FEES/FINES

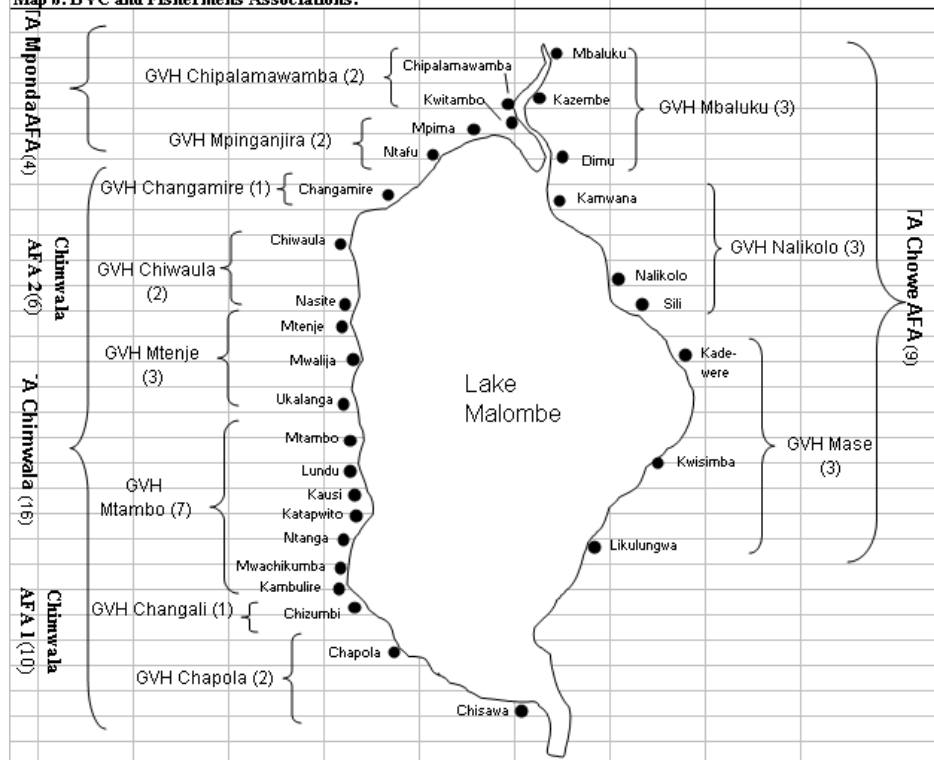
1. The use of an open water seine (Khoka la nkacha) or a beach seine net (khoka la pansi) anywhere in the Location will incur a fine of not less than fifteen thousand Kwacha (K15,000) and not more than thirty thousand Kwacha (K30,000). The seine net is to be returned after the fine has been paid in full.
2. The use of a gill net with meshes of less than two and a half inches(2 ½”) will incur a fine of five hundred Kwacha (K500) and the confiscation and destruction of the illegal net.
3. Failure by a fisherman to register with the Beach Village Committee at the fishing beach where he is based will incur a fine of two hundred Kwacha (K200).
4. Failure by an immigrant fisherman to bring a Transfer Letter for the Beach Village Committee where he was formerly registered to the Beach Village Committee for the fishing beach from which he intends to fish will incur a fine of two hundred Kwacha (K200).
5. If a fisherman or fish trader is found stealing nets or fish, he/she is to be expelled from the beach.
6. Illegal fishing gears from both Malawi and Mozambique should be penalized equally without favor.

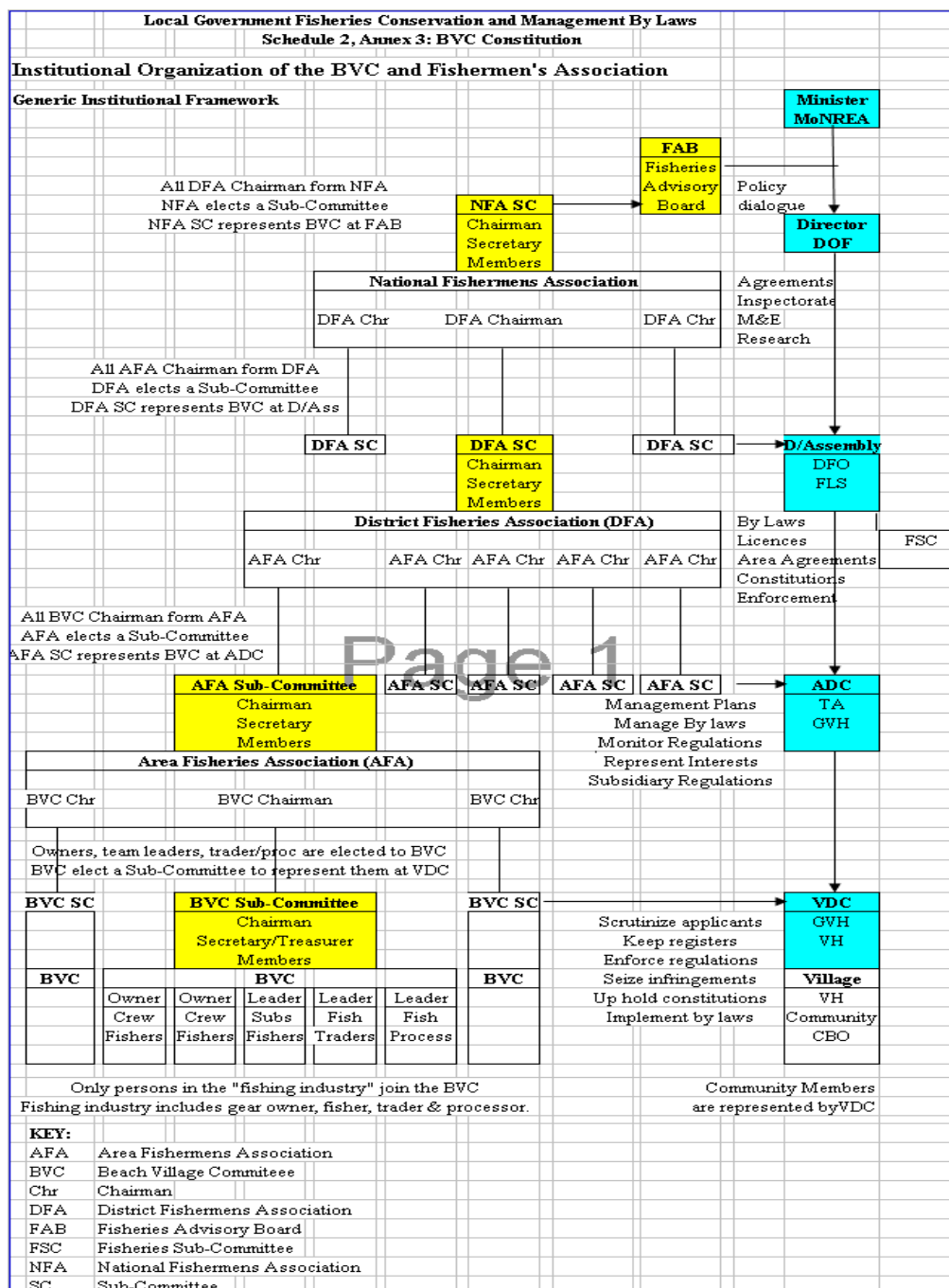
Local Government Fisheries Conservation and Management By Laws
Schedule 2, Annex 1: Constitution
MAP OF THE LOCATION OF THE BVC
Example: Lake Malombe Fishermens Association

Map a. BVC ID Codes:



Map b. BVC and Fishermens Associations:





Local Government Fisheries Conservation and Management By Laws
Schedule 2, Annex 4: BVC Constitution

BVC/Association Sub-Committee Election Record

On this day nominated fisher/trader/processor/team leader listed below stood for election for the named BVC Sub-Committee, supervised by the undersigned Election Committee. All BVC members produced BVC IDs to identify themselves in the list below and to mark their choice of Chairman, Secretary and Treasurer. The Team Leaders sign this record as free and fair as witnessed by the Election Committee undersigned. The incoming BVC Sub-Committee undersign acceptance on the understanding that this Sub-Committee term shall expire 12 months from this date when new elections will be held. Dated:

BVC Name:			Name of Nominated Candidate, Team/Group Leader																													
Sl No	Name of BVC Member	BVC ID Number	1.....			2.....			3.....			4.....			5.....			6.....			7.....			8.....			9.....			10.....		
			Ch	Sc	Tr	Ch	Sc	Tr	Ch	Sc	Tr	Ch	Sc	Tr	Ch	Sc	Tr	Ch	Sc	Tr	Ch	Sc	Tr	Ch	Sc	Tr	Ch	Sc	Tr			
1																																
2																																
3																																
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18																																
19																																
20																																
Total Votes																																
Ranking of Votes																																
<i>For Official Use Only</i>																																
Election Results:			Chairman:									Secretary:									Treasurer:											
Signed in Agreement:			V/Chairman:									V/Secretary:									V/Treasurer:											
Name/Seal & Signature of Witnesses:			Signature of Fishing Team Leaders:																													
<i>Signed as free & Fair election</i>		D/Assembly:	1									5									9											
		ADC	2									6									10											
		VDC	3									7									11											
		DOF:	4									8									12											

**Local Government Fisheries Conservation and Management By Laws
Schedule 3**

**FISHERIES MANAGEMENT PLAN
Lake**

Contents List
List Tables/Annexes/Figures
Acknowledgement
Forward
Preamble
Terminology
Annexes

Annex 1: Map of the Water Body Showing BVC locations, Hotspots, sanctuaries, etc.
Annex 2: Trends in Fish Catch, Gear and Stakeholders.
Annex 3: Stakeholder Problem/Solution Analysis
Annex 4: Strategic Analysis of Management Options.
Annex 5: Fisheries Management Plan.
Annex 6: Stakeholder Management Resolutions.

1. BACKGROUND

1.1. Preparation of this Document

- History of preparation, procedures, participatory process, persons consulted and facilitators.

1.2. User Group and Use of this Document

- Describe who will use and apply the Plan, and how it will be used.

2. THE FISHERY SITUATION ANALYSIS/PROFILE

2.1. Description of Lake

- Insert Map of the Lake. Showing boundaries, BVCs, VDC and ADC institutions and ID codes (See [Annex 1](#)).
- Describe the fish habitat, environment, catchment, etc

2.2. Socio-economic Profile of Lake

- Insert table and graph of historical trends in fishers, BVCs, gears, boats, etc (See [Annex 2](#)).
- Stakeholder analysis. Define who is who in the “fishing industry”.

2.3. Historic Trends in Fish Stocks

- Insert table and graph of historic trends in fish catch by species (See [Annex 2](#)).

2.4. Problem Analysis

- Conduct SWOT analysis.
- Insert stakeholder analysis of reasons for the decline in the fishery with solutions to improve the situation ([Annex 3](#)).

3. STRATEGIC OPTIONS

3.1. Strategic Options/Choices

- Insert table of strategic choices and an analysis of the best option for management (As per [Annex 4](#)).

3.2. Justification of Choices

- Justify the choice of strategy in economic, social and biological terms.
- Note selected choice of species, size, management approach, etc

3.3. Strategy

- Describe the strategic approach to the problems defined above.

4. FISHERIES MANAGEMENT PLAN

4.1. Objectives

- Frame the policy objectives of the strategy to be adopted with a 20 year vision.

4.2. Expected Outputs

- List the expected tangible achievements in terms of fish production, beneficiaries, institutions involved, etc.

4.3. Management Plan

- Insert table of current and recommended situation, action required and time plan for targets (See [Annex 5](#)).

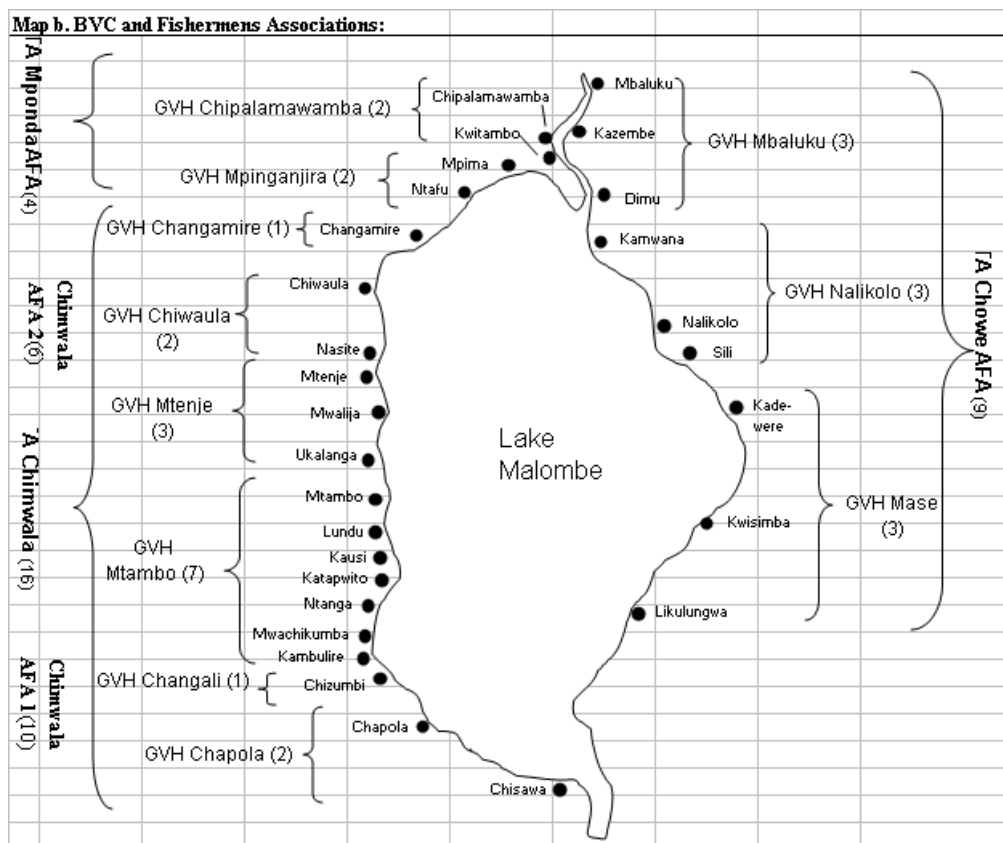
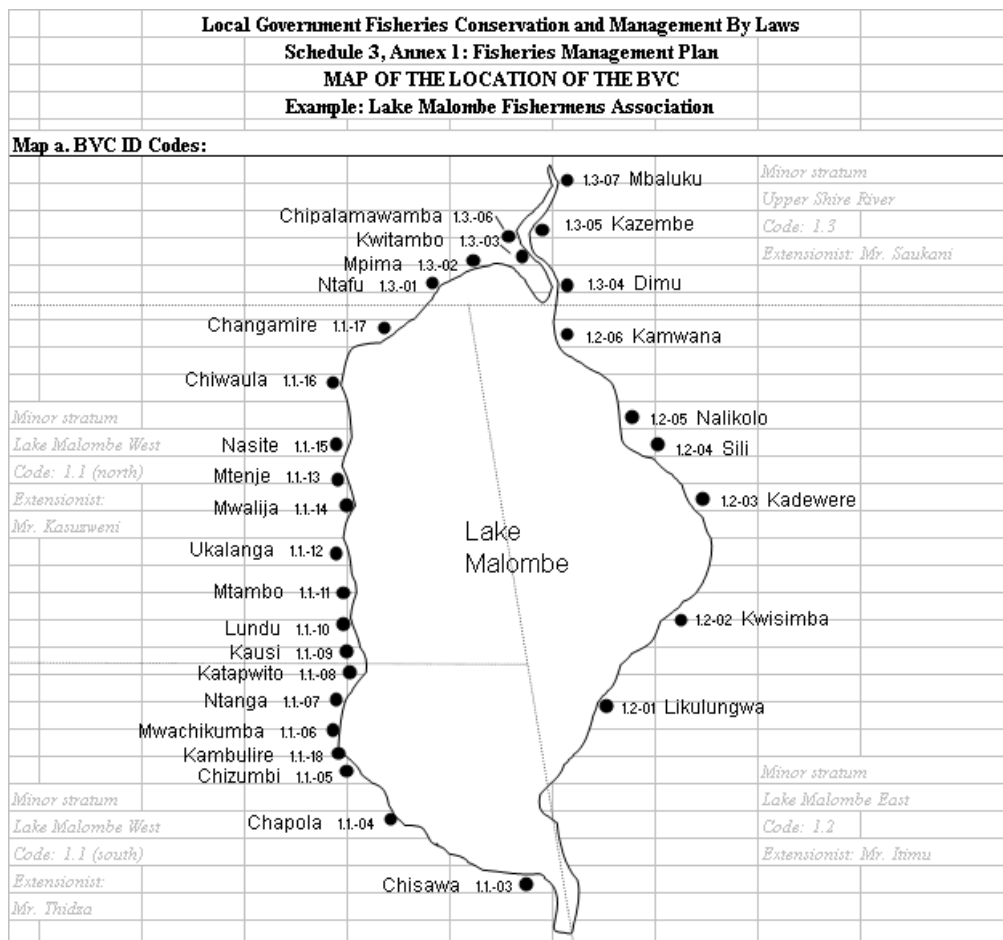
4.4. Implementation Plan/Time Schedule

- Insert action plan, show timetable of events to achieve plan and M&E Plan.

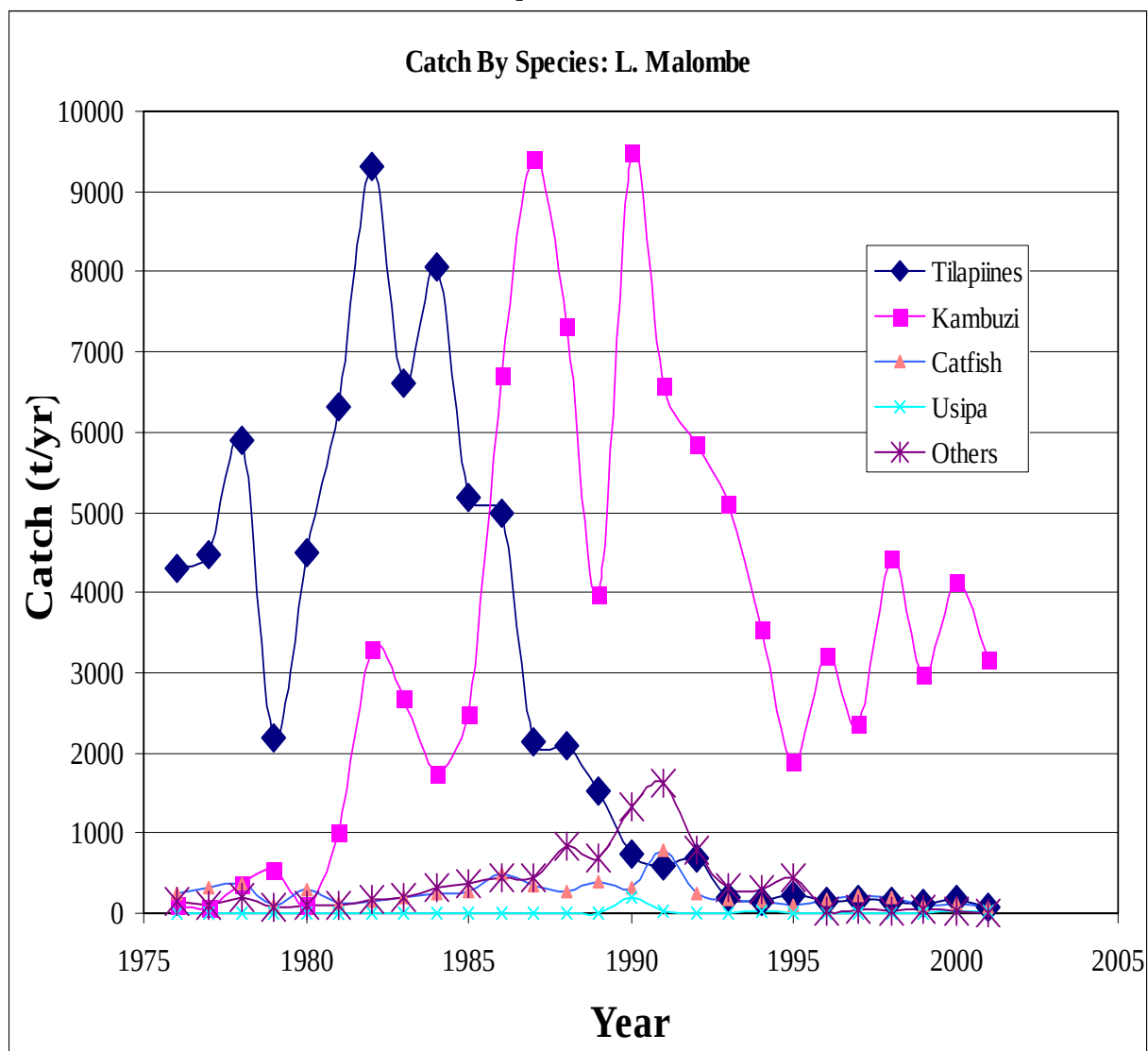
4.5. Budget

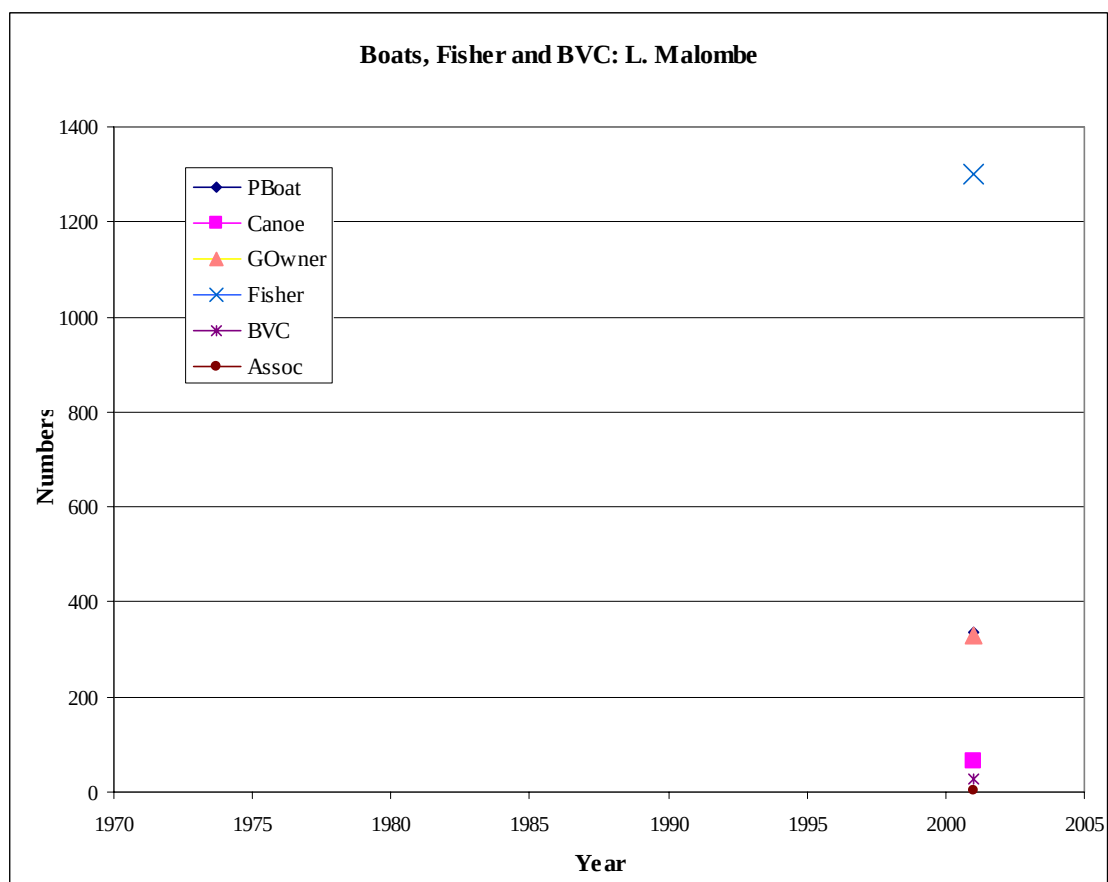
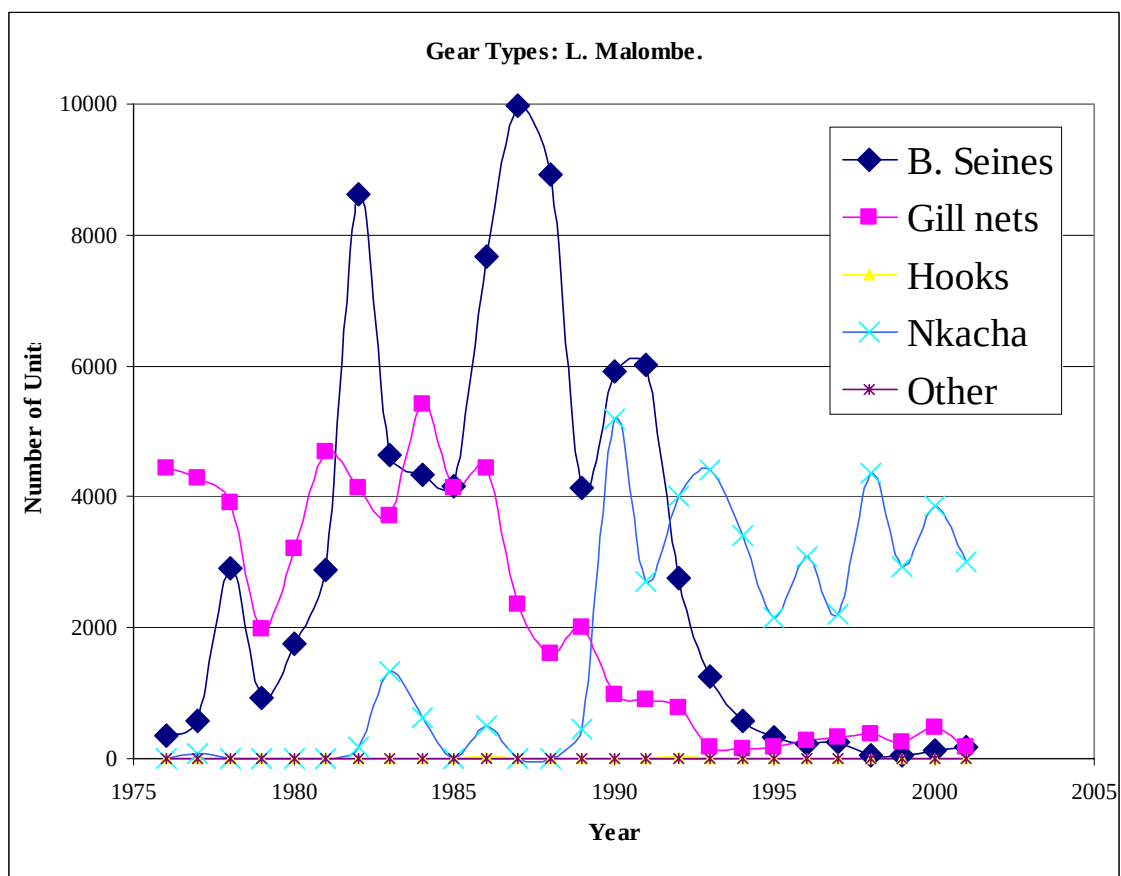
5. AGREEMENTS REACHED

- Insert table analyzing BVC feed-back on strategic choices, resolutions reached and agreements to conditions (See [Annex 6](#)).



Local Government Fisheries Conservation and Management By Laws
Schedule 3, Annex 2: Fisheries Management Plan
TRENDS IN CATCH, GEAR AND STAKEHOLDERS
Example: Lake Malombe





Local Government Fisheries Conservation and Management By Laws						
Schedule 3: Annex 3: Fisheries Management Plan						
Stakeholder Problem/Solution Analysis						
Example: Lake Chiuta						
Sl No	Description	Important species				
		Big Chambo	Catfish (Mlamha)	Small Cichlid Makwale	Barbus (Matemba)	Other
1	Demand for Fish Species	XXXXXXXX	XXX	XXXX	X	
2	Supply situation	↓	↓	↓	OK	
3	Problem Issue	- Matemba Seine net catch small Chambo & damage aquatic vegetation - Overfishing - Weeds are destroyed - Too many migrant fisher	- Traps catch small fish - Too many migrant fish in Nkacha nets	- Catch small Chambo in Nkacha nets	- Catch small chambo in Nkacha nets	
4	Management Options	1. Ban Nkacha Nets 2. Ban seine nets 3. Confine fishing to Lake citizens only 4. Set min net size 50 mm	1. Minimum space on trap (mono) shall be 15 mm on bars 2. Control access	1. Ban Nkacha Nets	1. Ban Nkacha Nets	
5	Fines	1. Burn all offenders gear 2. BVC only of lake area residents	1. Burn all offenders gear 2. BVC only of lake area residents	1. Burn all offenders gear 2. BVC only of lake area residents	1. Burn all offenders gear 2. BVC only of lake area residents	
6	Comments Notes					
Notes:						
Through PRA fishers undertake a very simple SWOT analysis and present their findings in a simple diagrammatic format and then discuss management options, etc.						

				Local Government Fisheries Conservation and Management By Laws						
				Schedule 3: Annex 4: Fisheries Management Plan						
Strategic Analysis of Management Options										
Example: Lake Malombe.										
A tool to evaluate strategic choices when designing fisheries management plans:										
	Strategic Policy Selection Criteria and Benefits Analysis:									
	Biology	Local Economy		Fishers Livelihoods		National Nutrition		National Economy		
Strategy 1: Managed as a Kambuzi Fishery.										
Species	MSY t/yr	Price Mk/Kg	Value Mk 000	Fishers Livelihoods	Beach Earning Mk/Fisher/yr	Consumption Kg/Cap/yr	Population 000 Benefit	Stg 1 vs 2 Mk 000	Stg 1 vs 3 Mk 000	
Kambuzi	5000	12	60000	1300	46154	6	833			
Chambo	200	68	13600	100	136000	6	33			
Benefits	5200		73600	1400	91077		867	-198400	-42400	
Strategy 2: Managed as a Chambo Fishery.										
Species	MSY t/yr	Price Mk/Kg	Value Mk 000	Fishers Livelihoods	Beach Earning Mk/Fisher/yr	Consumption Kg/Cap/yr	Population 000 Benefit	Stg 2 vs 1 Mk 000	Stg 2 vs 3 Mk 000	
Kambuzi	0	12	0	0		6	0			
Chambo	4000	68	272000	1500	181333	6	667			
Benefits	4000		272000	1500	181333		667	198400	156000	
Strategy 3: Managed as a Chambo and Kambuzi Fishery.										
Species	MSY t/yr	Price Mk/Kg	Value Mk 000	Fishers Livelihoods	Earnings Mk/Fisher/yr	Consumption Kg/Cap/yr	Population 000 Benefit	Stg 3 vs 1 Mk 000	Stg 3 vs 2 Mk 000	
Kambuzi	4000	12	48000	1300	36923	6	667			
Chambo	1000	68	68000	500	136000	6	167			
Benefits	5000		116000	1800	86462		833	42400	-40000	

Local Government Fisheries Conservation and Management By Laws																
Schedule 3, Annex 5: Fisheries Management Plan																
Generic Fisheries Management Plan: 2003-2008.																
Example: Lake Malombe																
Description	OVI	Current/Recommended Situation						Action Required	Time Frame						Tool Box Instruments	
		ADC 1	ADC 2	ADC 3	ADC 4	Total	2003		2004	2005	2006	2007	2008			
1. SE Profile:																
Gear Owner	fishers	Actual	75	100	74		249	- Form separate forum/Association	0	3	3	3	3	3	3	- Agreement
		Recommend					0									
		Difference	75	100	74	0	249									
Fish Assistants (Crew Members)	fishers	Actual	500	700	500		1700	-								
		Recommend					0									
		Difference	500	700	500	0	1700									
Subsistence Fishers	fishers	Actual	300	300	300		900	- Form separate forum/Association	0	3	3	3	3	3	3	- Agreement
		Recommend					0									
		Difference	300	300	300	0	900									
Economic value	Mk mill	Actual	15	20	15		50	- Increase economics	50	75	100	150	150	150	150	- Business Plan - Licence fees - Revenue sharing
		Recommend					0									
		Difference	15	20	15	0	50									
2. Institutional:																
BVC	BVC	Actual	4	9	16		29	- Increase BVC nos	29	33	37	40	40	40	40	- Constitution - Licence - G/ines to BVC
		Recommend	8	12	8	12	40									
		Difference	-4	-3	8	-12	-11									
Area Fish Assoc	AFA	Actual	0	0	0		0	- Form 4 AFAssoc	0	4	4	4	4	4	4	- Trust - Inst Framework
		Recommend	1	1	1	1	4									
		Difference	-1	-1	-1	-1	-4									
District F Assoc	DFA	Actual	0	0	0		0	- Form S-Comm at DA	0	1	1	1	1	1	1	- Mgmt plan - By Laws - Devolution TOR
		Recommend	0	0	1		1									
		Difference	0	0	-1	0	-1									
3. Production/Business Plan																
Chambo	T/yr	Actual	300	200	300		800	- Rebuild stocks - Restore habitat	800	1000	1500	2000	3000	4000	4000	- Chambo strategy
		Recommend	1500	1500	1000		4000									
		Difference	-1200	-1300	-700	0	-3200									
Kambuzi	T/yr	Actual	500	1000	500		2000	- Rebuild stocks - Restore habitat	2000	2000	2000	2000	2000	2000		
		Recommend	500	1000	500		2000									
		Difference	0	0	0	0	0									
Others	T/yr	Actual	150	150	150		450	- No change	450	450	450	450	450	450		
		Recommend	150	150	150		450									
		Difference	0	0	0	0	0									
4. Gears/Boats:																
Plank Boats	P/Boat	Actual					0									- Register
		Recommend					0									
		Difference	0	0	0	0	0									
Canoes	Canoe	Actual					0									- Register
		Recommend					0									
		Difference	0	0	0	0	0									
Kambuzi Bch Seine (Mosquito Chambo)	seine	Actual	2	3	2		7	- Total ban by 2004	7	0	0	0	0	0	0	- By laws
		Recommend	2	3	2		7									
		Difference	0	0	0	0	0									
Nkacha Nets	Nkacha	Actual	50	90	50		190	- Reduce to 130 nets by 05 - Increase mesh 19-25mm by 2006	190	190	130	130	130	130	130	- Licences
		Recommend					0		19	19	25	25	25	25		
		Difference	50	90	50	0	190									
Gill-Net	Gillnet	Actual	100	180	100		380	- Maintain at 500 - Increase mesh 90-95 mm	380	500	500	500	500	500	500	- Licences
		Recommend	150	200	150		500		90	95	95	95	95	95		
		Difference	-50	-20	-50	0	-120									
Traps/L/H-Lines		Actual					0	- No limitations								- Licences
		Recommend					0									
		Difference	0	0	0	0	0									
5. Technical Solution																
Closed Season	Oct/Dec	Actual					0	- Close fishing Oct-Dec	O/D	O/D	O/D	O/D	O/D	O/D		- By laws
		Recommend					0									
		Difference	0	0	0	0	0									
Closed Areas (Enhancement)	PA	Actual				LNP	0	- BVC Protect Area by 04 (Artificial Reefs) (Sanctuaries)	1	10	20	40	60	60	60	- By laws - Lease agreement
		Recommend					0									
		Difference	0	0	0	#VALUE!	0									
Enforcement	BVC	Actual					0	- Joint E/forcement - Revenue system	B/law E/Fd							- By laws - Fish Protect Off
		Recommend					0									
		Difference	0	0	0	0	0									
Gear licensing	Exc zone	Actual					0	- Licence commercial op - Licence subsistence	190	190	130	130	130	130	130	- Licenses - Register
		Recommend					0		900	900	900	900	900	900		
		Difference	0	0	0	0	0									

Local Government Fisheries Conservation and Management By Laws						
Schedule 3: Annex 6: Fisheries Management Plan						
Stakeholder Management Resolutions						
Example: Lake Malombe.						
(an example of a consensus building tool to consult stakeholders to develop recommendations for FMP)						
Recommendation	OVI	Group 1	Group 2	Group 3	Resolution (% agree)	Comments
1a. Beach Seines	Total Ban	1	1 by 2004	1 by 2008	100	
1b. Nkacha Net	Limit to 130	0 (296)	1 (130-150)	1 (130)	67	- 1 gear/owner - Business loan if leave
2a. Nkacha Net Mesh Size	Increase 19 to 25 mm	0 (19 mm)	0 (19 mm)	0 (19 mm) by June 04	0 Limit 19 mm	- Maintain current mesh
2b. Gill-net Mesh Size	Increase 90 to 95 mm	0 (90 mm)	0 (90 mm)	0 (90 mm) by Dec 04	0 Limit 90 mm	- Need strong enforcement - Maintain current mesh
3. Closed season	Oct - Dec	1	1	1	100	
4. Closed areas	Protected areas	1	1	1	100	
5. Enhancement	Artificial Reefs	1	1	1	100	- Research to be included.
6. Enforcement of law	Enforce laws	1 joint BVC	1 joint BVC	1	100	- BVC have power to arrest
7. Public awareness	Campaigns	1 joint BVC	1 joint BVC	1	100	
8. Research		1 joint BVC	1 joint BVC	1	100	
9. Institutional	Establish AFC	0	1 define role	1	67	- By pass AFC, link direct.
10. Gear Licencing	Licences	1 Thru BVC	1 Thru BVC	1 Thru BVC	100	

**Local Government Fisheries Conservation and Management By Law
Schedule 4**



**MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS
DEPARTMENT OF FISHERIES**

FISHERIES MANAGEMENT AGREEMENT

Name of Fishery: Lake Malombe

PREAMBLE

The 1997 Fisheries Conservation and Management Act Part III, Section 8 makes provision to provide for local community participation in conservation and proper management of fisheries and allows the Director of Fisheries to enter into a Fisheries Management Agreement with a fisheries management authority providing for a) a management plan and b) assistance to be provided by the Department of Fisheries.

TERMINOLOGY

In this Agreement, unless the context otherwise requires,

“Act”	Implies the 1997 Fisheries Conservation and Management Act.
“ADC”	Area Development Committee headed by the Traditional Authority.
“BVC”	Persons from the same beach village engaged in the fishing industry and collectively form a committee.
“fishing industry”	Includes fishing, fish gear/boat making, fish processing, fish marketing and fish trading.
“Fisheries Mgt Authority”	Any local community organization formed for the purposes of managing the fishing industry.
“VDC”	Village Development Committee headed by Group Village Headman.

OBJECTIVES

The objectives of this Agreement are:

To establish the co-management relationship between government and stakeholders for the sustainable management of the fishery to achieve maximum sustainable and economic yields.

PRINCIPAL AGREEMENT

1. INTRODUCTION

This agreement is between:

The Department of Fisheries represented by the Director (hereafter referred to as the Director), and The **Lake Malombe** Fisheries Management Authority, (hereafter referred to as the Authority), represented by the Chairmen of **Lake Malombe** Fisheries Associations, namely:

- (Name) Chairman of Mponda Area Fisheries Association.
- (Name) Chairman of Chimwala 1 Area Fisheries Association.
- (Name) Chairman of Chimwala 2 Area Fisheries Association.
- (Name) Chairman of Chowe Area Fisheries Association.

The above Chairmen, in their elected capacity represent the Beach Village Committees of **Lake Malombe** (hereafter referred to as BVCs) as listed in **Annex 1** and boundaries as shown in **Annex 2**.

This Agreement comprises the Principal Agreement together with following annexes to be read and construed as part of the agreement.

- Annex 1: List of Area and BVCs included in the Lake Management Authority.
- Annex 2: Map showing the boundaries and area of the fishery (By Law Schedule 3- Annex 1).
- Annex 3: Fisheries Management Plan (By Law Schedule 3).
- Annex 4: Fishermen, Gear and Vessel License (By Law Schedule).
- Annex 5: Register of Vessel, Gear and Fishermen (By Law Schedule .
- Annex 6: Regulations gear size and type (By Law Schedule).
- Annex 7: Fisheries Protection Officer Letter of authority (By Law Schedule.)
- Annex 8: Constitution (By Law Schedule 2)
- Annex 9: Catch data report format (By Law Schedule).
- Annex 10: Fees and fines (By Laws Schedule).

This Agreement concerns a leasehold transfer of specified rights of use and management of the aquatic environment, fishery and its natural resources within Lake Malombe to the Trust of the Community for the duration of the Agreement.

- a. The areas of land and water over which rights are transferred are set out in **Annex 1** and **Annex 2**.
- b. The forms of activity including fishing, resource use and management permitted within the specified area are set out in the Fisheries Management Plan, **Annex 3**.

2. RIGHTS AND OBLIGATIONS OF THE AUTHORITY

The Authority hereby agree that the community they represent shall follow the Fisheries Conservation and Management (Local Community Participation) Rules, 2000, as follows:

2.1. BEACH VILLAGE COMMITTEES (BVC):

- a. Persons engaged in small-scale commercial fishermen, subsistence fishermen and others involved in the fishing industry in a particular beach shall form a Beach Village Committee (BVC).
- b. The jurisdiction of a BVC shall be over one beach.
- c. The BVC shall participate in the conservation and management of fishery resources within their area of jurisdiction.
- d. For the area of jurisdiction, the BVC shall:
 - Scrutinize applications for registration of fishing vessels.
 - Scrutinize applications for issuance of fishing licenses, issue licenses and enforce conditions specified in licenses (Annex 4).
 - Keep a register of BVC members, vessels and licenses (Annex 5).
 - Enforce conditions as in the fishing license and fishing regulations pertaining to fishing rights, fish species, fish size, closed season, fish sanctuaries, closed areas, gear mesh size, gear type, methods of fishing, etc (Annex 6).
- e. The BVC has powers to arrest, or shall seize vessels and fishing gears which are reasonably believed to have been used in contravention of the Act, and must within 48 hours surrender the seized items to a Fisheries Protection Officer (FPO).
- f. Each BVC shall have an elected subcommittee which shall consist of the following office bearers (Chairman/Vice, Secretary/Vice, Treasurer/Vice and 5 Members) who shall be appointed Honorary Fisheries Officers (Annex 7). The local Fisheries Officer shall be an ex-officio member.
- g. Each BVC may adopt a Constitution (Annex 8) by which the operations of the BVC shall be governed.
- h. A BVC may under the terms of the Constitution, impose such fines, penalties and sanctions as specified for any infringement of the BVC Constitution.
- i. However, if the offence is against the terms of the Act, the BVC may recommend to the Director to prosecute, suspend or cancel any registration or license granted under the Act, or amend any terms therein if the BVC has reason to believe:
 - The licensee or person owning the vessel is in breach of these rules.
 - The granting of license was made in error or based on false information.
 - The licensee or person owning the vessel has contravened conditions of the license.
- j. The BVC shall every 3 months, provide the Director with:
 - A copy of the register of local fishing vessels (Annex 5).
 - A copy of the register of local fishing licenses (Annex 5).
 - A copy of the catch data record (Annex 9).
- k. No person shall fish within the jurisdiction of a BVC unless authorized to do so by a license or written authority issued by the BVC, and as set out in Annex 4.
- l. Unless the expressed authority of the Director and the BVC is given, in writing, large-scale commercial fishing within the jurisdiction of the BVC is prohibited, unless:

- In order to carry out resource utilization management activities permitted under this Agreement, the BVC may enter into a business relationship with one or more private sector companies or individuals. Such relationships may include, but need not be limited to, joint venture partnerships, sub-leases, sub-concessions, auction of resource use rights, or direct employment under contract by the BVC.
- The BVC may only enter such relationships under the conditions of commercial fishing as governed by the Act.
- Prospective candidates for such business relationships must pre-qualify for involvement through the procedure set in pre-qualification terms to be assessed by the Director.

2.2. AREA FISHERMENS ASSOCIATION (AFA)

- a. The BVCs shall form themselves into a Fishermen's Association which shall register itself as a legal personality with the Registrar General of the Deeds and Trusts Office and formulate a Constitution for its operations, rules, regulation, elections, procedures and legal jurisdiction.
- b. Where a Fishermen's Association has a Constitution, this shall supercede the need for each BVC to have a Constitution, and shall represent the operations of the BVC.
- c. The institution of the Fishermen's Association shall be as follows:
 - The BVCs elected sub-committee shall represent the BVC, and shall be the fishing industry sub-committee of the VDC.
 - Collectively, the elected Chairman of each BVC within the jurisdiction of an ADC shall come together to meet as an Area Fishermen's Association (AFA), a sub-committee of the ADC for representation of its rights, to deal with issues and to lobby for the interests of the BVC. **Four (4)** such AFA operate for **Lake Malombe (Annex 1)** and each may choose to elect a Chairman to represent the AFA.
 - Collectively, the Chairman of each BVC within the jurisdiction of a District Assembly shall come together as a fisheries sub-committee of the District Executive Committee (DEC) to deal with issues and lobby for their rights at the Assembly level.
 - The Chairman of all the BVCs may collectively, from amongst themselves, elect a Chairman to represent them at the level of the Director and Fisheries Advisory Board, with powers to sign this Agreement. On behalf of the BVCs.
- d. The Director shall provide the Fishermen's Association with management plans (**Annex 3**), regulations or subsidiary legislation or amendments (**Annex 5**), as the case may be.
- e. The Fishermen's Association (or a group of Fishermen's Associations) may request meetings with the Director or Fisheries Advisory Board to discuss management plans, regulations or subsidiary legislation or amendments thereto.

2.3. EXCLUSIVE FISHING RIGHTS:

- a. Under the terms of the Chambo Restoration Strategic Plan, the BVC, through the Fishermen's Association is hereby accorded powers as follows:
 - Exclusive rights under the Act are given by the Director to a BVC to manage its jurisdiction over the beach.

- Exclusive rights under the Land Act is given to an Area Fishermen's Association to regulate activities within its jurisdiction of the waters falling within the ADC.
- Any BVC is hereby given powers jointly with the Director to declare a protected area, sanctuary or closed area and is permitted to use fisheries enhancement devices (i.e. Artificial Reefs) or silent policemen to boost production and protect breeding grounds, nurseries and vulnerable areas.

2.4. FEES AND FUNDS

- a. The Authority shall maintain a register of license fees paid. In addition, the BVC may add an additional fee to the license. This additional fee, may be used for the operations of the BVC and the Authority. This register shall be used as the basis for computation of Department of Fisheries fees and shall be payable by the Authority to the government on a monthly basis.
- b. The Authority shall liaise with the Assembly and shall oversee that BVCs participate in the District Development Planning (DDP) process. BVCs shall prepare a State of the Environment Report (SOER) for the water body and develop proposals for action in a chapter for the District Environmental Action Plan (DEAP). Ensure that Community Environmental Micro-projects are included in the DDP and funded.
- c. The Authority may decide to add a levy to each BVC to contribute towards a Social development Fund (SDF) which shall go towards development of a beach community project which appears in the DDP or DEAP.

2.5. GENERAL CONDITIONS

- a. Nothing in this agreement shall be taken to absolve the Authority from compliance with the Laws of Malawi. In addition, in the management of the resources of, the Authority shall comply with the provisions of the approved Fishery Management Plan.
- b. The Authority has an obligation to ensure compliance with the Laws of Malawi, with the terms of this agreement, and with the approved Fisheries Management Plan, on the part of the Authority members, of business partners and employees of the Authority and members of the public in general. In the event that the Authority is unable to ensure compliance, they shall inform the appropriate Government agency in writing (i.e. Director, Malawi Police, Assembly, Traditional Authority, etc.), which shall take action to ensure compliance.
- c. In fulfilling the terms of this agreement, the Trust may seek advice from the appropriate government agency, or from any other appropriate source such as an NGO, or may employ an independent consultant.

3. RIGHTS AND OBLIGATIONS OF THE DIRECTOR

3.1. UNDER THE ACT

The Director shall as co-management partner to this Fisheries Management Agreement:

- a. Facilitate the establishment of the Fisheries Management Authority.
- b. Take measures considered appropriate for the protection of fish stocks and eliminate, or control pollution and siltation.
- c. Conduct assessment of fish stocks and the collection of statistics.
- d. Monitor, regulate, control and maintain surveillance of fishing operations.

- e. Prepare and periodically review the Fisheries Management Plan and submit such plans to the Fisheries Advisory Board and the Minister, MoNREA.
- f. Issue the rights to the Authority to issue, suspend, revocation of permits and licenses for fishing and other activities for which the BVC needs permits or licenses as required under the Act.
- g. Collect fees from the BVC in respect of permits and licenses and registration of vessels as per government prescribed schedule (**Annex 10**).
- h. Make reports based on the returns from the BVC, to the Minister and Fisheries advisory Board, and lobby for the rights of the BVCs according to the terms of this Agreement.
- i. Appoint the Chairman of the BVC as Honorary Fisheries Officer to assist in carrying into effect the provisions of the Act. Honorary Fisheries Officers shall be issued identity cards and shall have powers of Fisheries Protection officers as shall be prescribed in the instrument of appointment for the specified period (**Annex 7**) with powers to prosecute offenders of the Act and to limit fishing effort.
- j. Any such act by the Authority that shall lead to prosecution of offenders, shall be rewarded in accordance with the Act by a 50:50 sharing of any benefits that may be derived from confiscated fisheries produce.
- k. Encourage the District Assembly, NGOs, private sector and other institutions to contribute towards providing extension services to the BVCs, in accordance with guidelines to be provided by the Department of Fisheries.

3.2. GENERAL CONDITIONS

- a. Notwithstanding the terms of this agreement, the land, water and natural resources specified in this agreement remain part of the property of the Government of Malawi and are considered to be national assets.
- b. The Director retains the right to ensure that the land, water and natural resource of **Lake Malombe** are managed in the best interests of the nation as a whole.
- c. The Director has an obligation to enforce the Laws of Malawi, the terms of this Agreement and the Fisheries Management Plan, giving priority to written requests to this effect from the Authority.
- d. Parties to this Agreement are obliged to limit effort and uphold the gear and mesh size set by the Fisheries Management Plan.

4. DURATION OF THE AGREEMENT

- a. This Agreement shall have a duration of **ten** years from the date of signature, unless terminated under the provisions of Section 5 of this agreement.
- b. Following the termination of this agreement, it may be renewed for a further period of **ten** years following review of its terms by the Director.

5. TERMINATION OF THE AGREEMENT

- a. This Agreement may be terminated by the Authority following six months notification in writing to the Director, listing conditions for termination.
- b. This Agreement may be terminated by the Director following six months notice in writing to the Authority, on the following conditions:
 - The Authority fails to pay the dues to the Director in accordance with Section 6 of this Agreement.

- The Authority ceases to function effectively in compliance with the constitution of the Authority,
- The Authority has failed to ensure compliance with the Laws of Malawi, the terms of this Agreement and with the Fisheries Management Plan; in this event, the onus is on the Authority to demonstrate that it has attempted in good faith to ensure compliance and that, if failing to do so, it has made a request in writing to the appropriate local and central government agency to carry out law enforcement;
- The continued operation of the agreement is not in the national interest.
- In the event of termination of the Agreement by either party, any outstanding legal obligations to business partners of the Authority dependent upon this agreement must be resolved to the satisfaction of all parties. Any outstanding legal obligation between the Authority and any private operator contracted in a business relationship with it shall be assumed by the Department of Fisheries.

6. FEES PAYABLE BY THE AUTHORITY

- This is a leasehold Agreement and is subject to the following fees which shall be payable by the Authority:
 - Payable annually by the 30th July of each new financial year, to the Government all fees collected for vessel registration and fishing licenses in accordance with the current Government schedule (**Annex 10**);
 - Payable to the Government **50 %** of all revenues made on the sale of confiscated fish produce.
 - Payable as a Beach use levy, to the Social Development Fund of the BVC to which this Agreement applies... **% percent** of all revenues accruing to the BVC from use and management of land, water, fish and natural resources under the terms of this Agreement;
 - Payable to the Area Development Committee Fund for the Area to which this agreement applies: **five** percent of all revenues accruing to the Authority from the Beach use levy for use and management of land, water, fish and natural resources under the terms of this agreement.
- The above fees shall be payable annually in a lump sum following presentation of audited accounts as provided for under Section 5.

7. MODIFICATION OF THIS AGREEMENT

- The Director may propose modifications to this Agreement. These may be accepted subject to approval by the Authority.
- The Authority may propose modifications to this Agreement. These may be accepted subject to approval by the Director.

8. SETTLEMENT OF DISPUTES

- In the event of any dispute arising from this Agreement that can not be resolved amicably through negotiation of the parties, the matter shall be referred to the Minister, MoNREA. Any party aggrieved by the decision of the Minister, may apply to the High Court for review and decision (Act Section8.3).

- b. The Fisheries Advisory Board may from time to time make recommendation and rules for the better carrying into effect of the purpose of this Agreement.

AGREEMENT

Having read and understood the above, having read to and understood by the BVC members and having been mandated by the majority vote of the BVCs, the undersigned hereby agree to the terms of this Agreement, acknowledging that this Agreement may not be ceded to a third party:

Signed this day.....

.....
For Fisheries Management Authority

.....
For Director of Fisheries

.....
Witnessed by Assembly Representative

.....
Witnessed by ADC Representative

Annex 1:

List of Area Fisheries Association and BVC Chairman:

- **Mponda Area Fisheries Association:**

- Association Chairman: *(name)*.....
- BVC Chairman
- BVC Chairman
- BVC Chairman
- BVC Chairman
- BVC Chairman

- **Chimwala 1 Area Fisheries Association:**

- Association Chairman: *(name)*.....
- BVC Chairman
- BVC Chairman
- BVC Chairman
- BVC Chairman
- BVC Chairman

- **Chimwala 2 Area Fisheries Association:**

- Association Chairman: *(name)*.....
- BVC Chairman

- BVC Chairman
- BVC Chairman
- BVC Chairman
- BVC Chairman

d. Chowe Area Fisheries Association:

- Association Chairman: *(name)*.....
- BVC Chairman
- BVC Chairman
- BVC Chairman
- BVC Chairman
- BVC Chairman

Local Government Fisheries Conservation and Management By Laws
Schedule 5



MINISTRY OF LANDS VALUATION AND PHYSICAL PLANNING

**LEASEHOLD PERMIT/AGREEMENT FOR
EXCLUSIVE FISHING RIGHTS**

Name of Fishery:

Dated:

BETWEEN

1. **THE GOVERNMENT OF THE REPUBLIC OF MALAWI** (the Government) acting through the Director, Department of Fisheries who has been entrusted with the management of this lease on behalf of the Minister Responsible for Land Matters,
2. **THE FISHERMENS ASSOCIATION** (the Association) of above named Fishery, represented by the Associations elected Chairman, of the other part,

WHEREAS

1. The Minister Responsible for Land Matters is, under the provisions of the new Land Policy and Act Cap 57:01 (2002), the agency of the Government responsible for the implementation of the land policies of the Government which includes "*land covered by water*".
2. The Minister has the right, power and authority to negotiate the lease of the above named, State Land and Water Body more specifically described in **Annex 1**, hereinafter referred to as the "Fishery".
3. The Government has agreed, through the Director of Fisheries, to lease the exclusive rights and the Association, has agreed to lease the Fishery from Government, on the terms set out below.

DEFINITIONS

In this Agreement, unless inconsistent with the context or otherwise specified, the following expressions have the following meanings:

"Association"	Means the Fisheries Management Association or BVC that is registered as a legal personality and has a Constitution.
"Fishery"	Means the fish in the state owned water body within the prescribed parcel of land covered by water.
"Government"	Means the Government of Malawi.
"Law"	Means the Lands Act.
"Land"	Means that parcel of land covered by water as described here-in, also

	termed a “fishery”.
“Lease”	Means the right to use and occupy the “fishery or land covered by water” upon payment of the agreed annual fee and providing conditions laid down in this Agreement are adhered to.
“Price”	Means the lease price of the Fishery.
“Ministry of Lands”	Means Ministry of Lands, Valuation and Physical Planning”.

CONDITIONS OF LEASE:

The Association is hereby awarded the exclusive rights to the said Fishery for the duration of **ten** years subject to the following conditions. The Association shall:

1. Firstly constitute a “legal personality” and register a Constitution with the Deeds and Trusts Registrar that allows the Association to sue and be sued, to own assets and to represent the subsistence and small-scale commercial fishing industry of the said Fishery.
2. Submit for the approval of the Director, Department of Fisheries, a Fisheries Management Plan, in accordance with the Fisheries Conservation and Management Act, which shall lay down the conditions and permitted activities that the Association may engage in under this Agreement.
3. Enter into a separate Fisheries Management Agreement for the sustainable use and management of the fishery and may not at any time deviate or change the use of the fishery from that prescribed in this Agreement. Any default or over-exploitation of the Fishery shall lead to immediate suspension of this Agreement until the matter has been resolved.
4. On 30th July every year pay to the Director of Fisheries, the prescribed fees. Any delay shall attract interest at the commercial bank leaning rate, and any default beyond 90 days shall lead to a suspension of this Agreement.
5. This lease allows the Association and its registered members, to engage in the following acts:
 - a. To form Beach Village Committees (BVC) to manage each fishing beach.
 - b. To form Area Fisheries Associations as sub-committee to the Area Development Committee.
 - c. To fish the fishery within the limits, conditions and regulations as laid down in the signed Fisheries Management Agreement.
 - d. To declare protected areas, sanctuaries or other such reserves and to set regulations to restrict fishing and boating in these areas to protect endangered fish, breeding or nursery areas and to arrest any perpetrators.
 - e. To establish artificial reefs or other such structures under permit from the Director, Department of Fisheries to act as fishery enhancement devices or as silent policemen.
 - f. All costs and expenses incurred in the preparation of this Agreement, its renewal, and any applicable stamp or transfer duties and registration fees which arise as a result of or consequence of this Agreement, shall be payable by the Association.
6. This Agreement allows exclusive access by the Association and its members to the fishery resources of the Fishery, only. Excluded from this Agreement is any other use of the land covered by water, either for residence, sand mining, mineral exploration, etc. This includes in the low season draw-down zone, exclusion of any rights to cut trees,

reeds, vegetation and to remove any other natural resource that may live on the land covered by water and its perimeter.

CONDITIONS PROVIDED BY GOVERNMENT

The Government shall:

1. Notwithstanding, the Fishery is on state property and shall as such, revert back to state property on the termination of this Agreement, meanwhile, the State shall allow the Association and its members free access to the Fishery for the duration and terms of this Agreement.
2. Protect the Association and its members from any infringements and shall assist to prosecute any offenders, including the Association, should they violate the terms of this Agreement.
3. Monitor the use of the Fishery and caution the Association when the use reaches unsustainable levels.

PAYMENT OF LEASE

1. The lease price of the Fishery shall be payable to the Director of Department of Fisheries, equivalent to the fees prevailing at the time for vessel registration and fishing licenses as prescribed from time to time in supplements to the Fisheries Conservation and Management Act.
2. Fishing gear and vessels permitted in this Fishery shall be within the number and type as specified in the Fisheries Management Agreement in conformity with the Fisheries Management Plan approved by the Director of Fisheries.
3. The whole of the Price must be paid by 30th July of the new financial year.

DURATION

1. This lease shall be valid for one year, extendable annually thereafter upon payment of the prescribed price of the lease for up to a total of 10 years. Thereafter renewal for a further 10 years shall be granted subject to satisfactory performance.

ASSIGNMENT

Neither party shall assign, encumber, dispose or otherwise transfer any of its rights under this Agreement without the prior written consent of the other.

AMMENDMENTS

This Agreement and its Appendices constitutes the entire understanding between parties and no change shall be permitted unless in writing and signed by both Parties.

NOTICE

Any notice or communication required shall be addressed to the following:

The agent of Government shall be represented by Director, Department of Fisheries, P.O. Box 593, Lilongwe

The agent of the Association shall be represented by.....

AGREEMENT

The undersigned having read and understood the above, in their capacity as representatives of the parties to this Agreement, they hereby agree to the conditions expressed above:

.....
For Representative of the Fishermen's Association

.....
For Representation of the Minister of Lands

.....
Witness, Director, Department of Fisheries

.....
Witness, DC of the District Assembly

Annex 1: Map and description of the boundaries of the said Fishery.

Local Government Fisheries Conservation and Management By Laws								
Schedule 6								
MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS								
DEPARTMENT OF FISHERIES								
(A supplement to the Fisheries Conservation and Management Act No 25 of 1997 (Published 28.11.97) and Supplement to Fisheries Conservation and Management Regulations Schedule 22 (Published 18.2.00))								
ANNUAL FEES								
1. Annual Fees for Registration of Commercial Fishing Units								
NB. Proposed % increase on the 2000 Act Base Rate =					100	(Needs to include inflation)(Note 1)		
1.a. Bottom Trawl (Shallow Waters)								
			1997 Fees			New Fees		
Area	Area Catch Rate	Unit Catch Rate	Basic Fee Mk	Registration Mk	Licence Fee Mk	Basic Fee Mk	Registration Mk	Licence Fee Mk
A	3.3	4	1000	600	13800	2000	1200	27600
B	2.7	4	1000	600	11400	2000	1200	22800
C	1.8	4	1000	600	7800	2000	1200	15600
D	1.7	4	1000	600	7400	2000	1200	14800
E	1.7	4	1000	600	7400	2000	1200	14800
F	1.7	4	1000	600	7400	2000	1200	14800
G	1.7	4	1000	600	7400	2000	1200	14800
H	1.7	4	1000	600	7400	2000	1200	14800
N	0.5	4	1000	600	2600	2000	1200	5200
Chilwa	1	1	1000	300	1300	2000	1200	3200
Malombe	1	1	1000	300	1300	2000	1200	3200
1.b. Bottom Trawl (Deep Waters)								
			1997 Fees			New Fees		
Area	Area Catch Rate	Unit Catch Rate	Basic Fee Mk	Registration Mk	Licence Fee Mk	Basic Fee Mk	Registration Mk	Licence Fee Mk
B	2.7	10	1000	900	27900	2000	1800	55800
C-N	1.4	10	1000	900	14900	2000	1800	29800
2. Annual Gear Basic Fees:					2004 Rates (Note 2)			
			% Increase/Rates:					
Gear Type			Qualification (Per Units Specified)	Basic Fee Mk	100 New Fee Mk	10 BVC Fee Mk	10 Assembly Fee Mk	120 Total Licence
Gillnets			100 m	15	30	3	3	36
Nkacha Nets			50 m	150	300	30	30	360
Kambuzi Nets			50 m	100	200	20	20	240
Usipa Beach Seines			50 m	100	200	20	20	240
Matemba Beach Seine			50 m	100	200	20	20	240
Chambo Seines			50 m	150	300	30	30	360
Chirimila			Per Unit	250	500	50	50	600
Chambo Ring Net			Basic Fee	1000	2000	200	200	2400
Chambo Mid-water Trawl			Basic Fee	1000	2000	200	200	2400
Chisawasawa Bottom Trawl			Basic Fee	1000	2000	200	200	2400
Utaka Mid-water Trawl			Basic Fee	1000	2000	200	200	2400
Usipa Lift Net (Sch 12, Part 7)			Per Unit	3000	6000	600	600	7200
Aquarist Licence			Per Enterprise	50000	100000	0	0	100000
Fiah Farm Licence			Ponds > 2 ha	100	200	0	20	220
NB:								
1. Inflation can be adjusted and will automatically up-grade the table.								
2. Share to BVC and Assembly can be adjusted as agreed with Director of Fisheries.								

Local Government Fisheries Conservation and Management By Laws					
Schedule 7					
MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS					
DEPARTMENT OF FISHERIES					
(A supplement to the Fisheries Conservation and Management Act No 25 of 1997 (Published 28.11.97))					
AMENDMENT TO THE SCHEDULE OF FINES AND CONDITIONS					
NB Proposed % increase on the 1997 base rate =		50	(Allow for inflation)(Note 1)		
Proposed BVC Revenue Share as provided for in the Act =		50	(Note 2)		
Section of the Act	Conditions of the Act	1997 Fine Mk	Legal Recourse Imprisonment	New Fine Mk	BVC/Ass Share
11 (1/2) Registered Vessel	No local registerable fishing vessel shall be used for commercial fishing unless registered under Section 10. Any contravention shall be guilty of an offence:	50000	10 years	75000	37500
12 (1/2) Foreign Vessel	No foreign fishing vessel shall be used for commercial fishing unless authorised by a licence. Any contravention shall be guilty of an offence:	20000 1000000 & 200/day	10 years	30000 1500000	15000 750000
13 (1/2) Fish on Board	The master of a foreign vessel that has fish on-board shall (a) Prior to entry or (b) prior to leaving notify a FPO of the amounts and description of fish on-board. If fails to do so:	50000	10 years	75000	37500
14 (1) Commercial Licence	No person shall engage in commercial fishing without the authority of a licence, shall be guilty of an offence:	20000	4 years	30000	15000
15 (1) Licence Offence	If a licence condition is contravened, offender shall be guilty of an offence:	20000	4 years	30000	15000
17 (2) Fishing Area	Where Section 17(1) is contravened by (a) a vessel fishing in a prohibited area or by (b) not fishing for species as per license shall be guilty of an offence:	10000 & 200/day	2 years	15000	7500
20 (2) Aquaculture Licence	Any person who operates an aquaculture establishment in contravention of Section 20 (1) or harvests the products without authority shall be guilty of an offence.	20000	4 years	30000	15000
36 (3) Compliance to FPO	Any person, on any vessel (a) fails to comply to a FPO, (b) prevents any person to comply to a FPO, (c) obstructs a FPO shall be guilty of an offence:	20000	4 years (Conflicts with 44(1))	30000	15000
42 (3) Poison Explosion	Any person who (a) contravenes Section 42(1) or (b) lands, sells, receives or is in possession of fish caught by use of explosive, electric current, poison or noxious substance shall be guilty of an offence:	30000	6 years	45000	22500
43 (4/5) Waste Dumping	Any person who contravenes Section 43(1) by injure, poison, kill or affect fish, fish spawning grounds, or aquatic plant life in any river, stream or lake by introducing sawmill refuse, oil, chlorinated hydrocarbons, biocide, pesticide, toxic or other substance, heavy metal or rubbish shall be guilty:	20000 1000000 & 1000/day	NS	30000 1500000	15000 750000
44 (1) Obstructs a FPO	Any person who resists arrest or obstructs a FPO, refuses to comply with a notice under the Act, fails to allow a search (Section 33) shall be guilty of an offence:	30000	6 years (Conflicts with 36(3))	45000	22500
44 (2) False Information	Any person for purpose of (a) Obtaining a licence or (b) Providing information shall provide false material shall be guilty of an offence:	10000	2 years	15000	7500
44 (3) Defaces Document	Any person unlawfully alters, defaces any registration certificate, licence, permit, return shall be guilty of an offence	5000	1 year	7500	3750
45 (2) No Penalty	Any person guilty of an offence under the Act for which no penalty is specified shall be liable to:	20000	4 years	30000	15000
45 (3) Regulation Offence	For an offence against a regulation not specified in the Act, shall be liable to:	5000	1 year	7500	3750
59 (2) District Fee	Fees for licences, permits or any other matter, may include in addition to Government fees, a district fee To be used for the benefit of the people in the fishing district..	NS		#VALUE!	#VALUE!
61 (2) Regulations	The following regulations are prescribed under this Act: - Restrictions on closed areas and closed seasons.. - Limits on amounts, size and weight of fish caught - Limits on mesh size, type of gear and markings. - Prohibition on methods of fishing. - Protection of fish breeding areas and plant habitat. - Quota or total allowable catch	5000	1 year	7500	3750
NB:					
1. This can be adjusted to take into account inflation and shall automatically adjust the table.					
2. Revenue share with BVC if they facilitate the enforcement can be decided and if inserted here will adjust the table.					

Local Government Fisheries Conservation and Management By Laws			
Schedule 8			
 Government of Malawi			
MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS DEPARTMENT OF FISHERIES			
<i>(A supplement to the Fisheries Conservation and Management Act No 25 of 1997 2 nd Schedule (Published 28.11.97) and Supplement to Rule 16 of Fisheries Conservation and Management Regulations (Published 18.2.00))</i>			
BVC ID No:			
Authority/License to Fish Within the Jurisdiction of a BVC			
Name of BVC Member		Passport Photograph of the BVC Member	
Name of BVC:			
Name of ADC:			
Authorised Fishing Area:			
Address/Home VDC:		Personal Id No:	
BVC membership is restricted to anyone who is resident of the named Beach/ Area and 80% of whose livelihood depends on the fishing industry, includes fishing, fish processing, fish marketing and fish trade and allied industries (Act, Article 2). This authority is not transferrable, except as prescribed (Act, Article 15.2.b)			
Type of licence:		Subsistence (Provides without payment, food for himself and dependents)(Reg. 21.3) Commercial (Engaged in fishing for sale and relies on this for livelihood)(Act Article 2) Gear Operator (Hired by a commercial fisher and paid to fish for someone else) Fish Processor (Cleans, ices, salts, smokes, dries or prepares fish for sale)(Act Article 2) Fish Trader (Derives a livelihood from selling fish) Other (To be specified):	
Fishing gear permitted:		Gillnets	ID Number:
		Seine Net (Specify Type):	ID Number:
		Other (To be specified):	ID Number:
BVC gear By Laws:		Minimum Mesh Size (mm)	
(Specify as appropriate)		Maximum Headline Length (M)	
(As per Reg. 33 & 34)		Maximum Net Depth (M)	
		Closed Season (Months)	
		Restricted Fishing Time (AM-PM)	
		Other (To be specified):	
Local Fishing Vessel:		Plank Boat M in length	ID Number:
(Initial as appropriate)		Wooden Canoe M in length	ID Number:
		Engine Type And Capacity Hp.	
		Other (To be specified):	ID Number:
The undersigned hereby certify that the above named is hereby authorized to fish in fishing waters falling within the jurisdiction of the above named Committee, conditional to the applicant abiding by the laws of Malawi, BVC Constitution, rules, by laws and regulations of the said BVC.			
Made this day		Official seal of the BVC	
Chairman of the BVC			
I, the above named BVC member hereby acknowledge that I have read the BVC Constitution, the rules, by laws and regulations of the said BVC and I do solemnly swear to uphold the Constitution, rules, by laws & regulation of the said BVC and understand that any infringement on my part shall lead to action by the BVC Sub-Committee or legal court action which could lead to the loss or withdrawal of this licence. I accept that any infringement according to the Act (Article 15) shall be liable to a fine or 4 years jail. In The event of my demise, I hereby name my family member to whom the licence may be transferred.			
Signature of the BVC Member		Signature of the Traditional Authority	
Transfer Note: To Chairman BVC I, the undersigned hereby certify that the above is a BVC member of good standing and due to personal reasons is transferring to your BVC, Please accept the application.			
Made this day		Official seal of the BVC	
Chairman of the BVC			
For official use only			
Fees paid:	BVC License/membership:	Mk For BVC	BVC Receipt Number:
	Local Fishing Vessel License:	Mk For DOF	GR Number
	Gear License:	Mk For DOF	GR Number

Date:

Date:

Date:

Date:

 Local Government Fisheries Conservation and Management By Laws Schedule 10 MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS DEPARTMENT OF FISHERIES												
Government of Malawi (A supplement to the Fisheries Conservation and Management Act No 25 of 1997 Schedule 12 (Published 28.11.97) and Supplement to Fisheries Conservation and Management (Local Community Participation) Rules, 2000 Reg 33 & 34)(Published 26.5.00)												
Restrictions on Sizes of Fishing Gear, Prohibited Fishing Periods, Times, Gears & Registration												
Gear Type	Regulations	Units	All Waters	SE Arm	L. Malawi	L. Malombe	L. Chilwa	Mpoto Lagoon	L. Chiuta	Chia Lagoon	Upper Shire	Lower Shire
Part 1: Trawl Nets:												
Trawl Nets	Min Cod end mesh size	mm		38	38		Ban					
	Max Net Mouth Size	m		37	37							
	Maximum Vessel Size	hp			100							
	Mid-Water Trawl	Banned		Ban A								
Part 2: Beach Seine Nets (& Part 4/5):												
Mosquito Nets (Usipa)	Min Cod end mesh size	mm	N Res			Ban						
	Max Headline Length	m	3									
	Max Net Depth	m	1.5									
	Closed Season	No Fishing					Dec-Mar	Dec-Mar				
Kambuzi Seine	Min Cod end mesh size	mm		Ban	19	19						
	Max Headline Length	m		A,D,E	150	300						
	Max Net Depth	m			10	NA-10						
	Closed Season	No Fishing			Nov-Dec	Oct-Dec	Dec-Mar	Dec-Mar			Nov-Dec	
Usipa Net	Min Cod end mesh size	mm			NRes-19						N Res	
	Max Headline Length	m			100						100	
	Max Net Depth	m			6						15	
	Closed Season	No Fishing			Nov-Dec							
Chambo Seine	Min Cod end mesh size	mm			95	90					18	
	Max Headline Length	m			N Res	1000					150	
	Max Net Depth	m			18	NA						
	Closed Season	No Fishing			Nov-Dec	Nov-Dec	Dec-May	Dec-May				
Nkacha (Part 6)	Min Cod end mesh size	mm			Ban	19	Ban	Ban	Ban			
	Max Headline Length	m				100-250						
	Max Net Depth	m				NRes-10						
	Closed Season	No Fishing				Oct-Dec	Dec-Mar	Dec-Mar				
Beach Seines	Min Cod end mesh size	mm					12.5		Ban	25		19
	Max Headline Length	m					300			200		200
	Max Net Depth	m					5			NA		15
	Closed Season	No Fishing					Nov-Apr	Nov-Apr				
Part 3: Gill Nets:	Minimum Mesh Size	mm		95	90	90	70		63	76-90	51-64	
	Maximum Net Depth	m		N Res	N Res	NA-4.5	3		3	NA-3	3	
	Maximum Net Depth	m										
	Maximum Net Depth	m										
Part 5: Prohibited Fishing Gears												
Chalira	Banned	Ban	Ban									
Kauni for Chambo	Banned				Ban							
Part 7: Usipa Rig Lift Nets:												
Usipa Lift Nets	Minimum Mesh Size	mm			13							
	Maximum Net Depth	m			N Res							
Species Size Limit (Schedule 15):												
Chambo		mm	150									
Kasawala	Other Tilapia	mm	100				100					
Mpasa		mm	300									
(File Ref: A PFM Mammal/3 By Laws Schedule 10-Gear Restrictions) (Key: Ban = Prohibited, NA = No applicable, NRes = No restriction,)												



Government of Malawi

Local Government Fisheries Conservation and Management By Laws

Schedule 11

MINISTRY OF NATURAL RESOURCES AND ENVIRONMENTAL AFFAIRS

DEPARTMENT OF FISHERIES

Assembly Physical And Financial Micro-Project Work Plan and Progress Report

Assembly:

Year:

Period Month/Quart

Sl No	Name of Project (By Sector)	Location	Beneficiaries		Outputs Type/Units	Physical Targets					Financial Targets (Mk)					Operational Cost (Mk)							Issues/Problems Actions Taken Remarks	
			(People)			Target	Previous Period	This Period	Total To Date	% To Date	Program Amount	Disbursed To Date	Disbursed This Period	Total Disbursed	% To Date	Operations Amount	Of Total Project Co	Disbursed To Date	Disbursed This Period	Total Disbursed				% To Date
			Plan	Actual																				
	1. Fisheries Sector																							
1									0	####				0	####		#####			0	####			
2									0	####				0	####		#####			0	####			
3									0	####				0	####		#####			0	####			
4									0	####				0	####		#####			0	####			
5									0	####				0	####		#####			0	####			
6									0	####				0	####		#####			0	####			
7									0	####				0	####		#####			0	####			
8									0	####				0	####		#####			0	####			
9									0	####				0	####		#####			0	####			
10									0	####				0	####		#####			0	####			
11									0	####				0	####		#####			0	####			
12									0	####				0	####		#####			0	####			
13									0	####				0	####		#####			0	####			
14									0	####				0	####		#####			0	####			
15									0	####				0	####		#####			0	####			
16									0	####				0	####		#####			0	####			
17									0	####				0	####		#####			0	####			
18									0	####				0	####		#####			0	####			
19									0	####				0	####		#####			0	####			
20									0	#####				0	#####		#####			0	#####			
	Total:			0	0					#####	0	0	0	0	#####	0	#####	0	0	0	#####			

(File Ref: APFM Manual/3 By Laws Schedule 11-M&E Fisheries)